

THE
LIFE AND TIMES
OF
JOHN KELLY,
TRIBUNE OF THE PEOPLE.

BY
J. FAIRFAX McLAUGHLIN, A. M.

AUTHOR OF "SKETCHES OF DANIEL WEBSTER," "A LIFE OF A. H.
STEPHENS," ETC., ETC.

"I REGARD JOHN KELLY AS THE ABLEST, PUREST, AND TRUEST STATESMAN
THAT I HAVE EVER MET WITH FROM NEW YORK."—ALEXANDER H.
STEPHENS.

WITH PORTRAITS IN ARTOTYPE.

TAKEN AT 35, 50, AND 58 YEARS OF AGE

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and affection, yours truly

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PREFACE.

The life of John Kelly, written without partisan bias, and to promote no other object but the vindication of the truth of history, is presented to the reader in the following pages.

The narrative is associated with three great epochs in American history, in each of which John Kelly has acted a prominent and conservative part. If he appears in the foreground of the picture which the author has attempted to sketch of those epochs, it is because no true history of them can be written without according to him such a place. He was the champion of civil and religious liberty during the era of Know-Nothingism, and contributed as powerfully to the overthrow of the Know-Nothing party as any man in the United States, with the single exception of Henry A. Wise, of Virginia, who slew the monster outright.

In the fierce war between Barnburner and Hunker, and Hard Shell and Soft Shell Democrats, which broke out in 1848, and continued to rage throughout the State of New York with intense bitterness for eight years, John Kelly, in 1856, played the conspicuous part of pacificator both in the State and National Conventions of his party. The re-union which then took place between the Hards and Softs resulted in the nomination of Buchanan and Breckenridge at Cincinnati, who were elected President and Vice-President of the United States.

The third epoch covers the contest with the Tweed Ring, and the expulsion of the Ring from Tammany Hall in 1872, when the Reformers were led by John Kelly. Grand Sachem Tweed had to give place to Grand Sachem Augustus Schell; and Sachems Peter B. Sweeny, A. Oakey Hall, and Richard B. Connolly were succeeded by Sachems Horatio Seymour, Samuel J. Tilden and John Kelly. It was not merely a change, but a revolution.

To achieve the results reached in 1872, and in the few years immediately following, a leader of consummate power was necessary. Honesty, courage,

and sagacity in the highest degree were required in that leader. A man of action—not a visionary in the closet, was what the times demanded. Upon John Kelly, who sought not the position, but had it thrust upon him, then devolved the leadership of the Democratic party in New York. The events of that period have passed into history, and although there were some who at the time called Kelly a dictator, posterity will be more apt to remember him as a benefactor.

For years the subject of this memoir has been the target of calumny and misrepresentation. His whole life from childhood to the present hour is here laid before the reader, as the best answer to his maligners.

J. F. McL.

THE ILLUSTRATIONS.

The author has been at much pains to procure good pictures of Mr. Kelly. The caricaturists have taken so many liberties with his face, and presented it in so many ridiculous lights, that public curiosity is felt in every part of the United States to know exactly how John Kelly does look *in propria persona*. To gratify this curiosity the book has been embellished by three excellent likenesses of Mr. Kelly, taken at the ages respectively of thirty-five, fifty, and fifty-eight. To Mr. Edward Bierstadt, whose picture of President Garfield has been much admired, the reproduction in artotype of the pictures for this volume was intrusted. Fine engravings were used to get the likeness, and the artotypist has executed his work with great success.

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INTRODUCTORY CHAPTER.

John Kelly is the best abused man in America. Fifty or sixty years ago Andrew Jackson was subjected to similar treatment. The hero of New Orleans lived down the slanders which were hurled thick and fast upon him by political opponents. Mr. Kelly will do the same thing, for the people, though easily imposed upon for the moment by artful men, soon correct their own misconceptions, and invariably render justice to public characters. The malice which invents slanders is incapable of transmitting them into history.

Fugitive and imperfect sketches of John Kelly's career have appeared from time to time in the newspapers. No detailed narrative of his life has hitherto been submitted to the public. The writer of these pages is conscious of the difficulty of portraying the character of a living man. Appreciation of merit should not run into panegyric; condemnation of faults should not be spared where faults are found. The advantages possessed by the present writer to discharge the task he has undertaken have been derived from an acquaintance with Mr. Kelly extending over thirty years, and from participation in public affairs in which that gentleman has been a conspicuous actor. Mr. Kelly has figured in transactions which will form an interesting chapter in the history of the present times. The testimony of a contemporary who preserves a distinct recollection of the events he describes will always be an aid to the historian of the next age, who must sift evidence in order to get at the truth, and who should reject whatever falls below that standard. There would not be so many fictions in American biography, if those who have participated in the scenes would record their honest recollection of them. The testimony of an eye-witness is in the nature of primary evidence, and the historian can have no more helpful auxiliary than such a reminiscence. The following pages are offered to the public as the contribution to American biography of one who has enjoyed unusual advantages of knowing the man he writes about.

Mr. Kelly is one of the few remarkable men the present political generation has produced. The public has read so much about him both of pure fiction and coarse abuse, that an outline sketch of his life will no doubt prove acceptable to candid readers, and furnish, at the same time, a corrective of current misrepresentations. It might seem strange to those who do not stop to consider the causes of it, that a life-long citizen of New York, who has acted a prominent part in its affairs, should have come to be misunderstood by so many people. But to those who look into the matter more closely the explanation is not difficult to find. Mr. Kelly is a man of very positive character. He has antagonized powerful men, and on several memorable occasions thwarted their schemes of ambition and self-aggrandizement. He has thus excited resentments, and in their disappointment his opponents have sought revenge. Some of these gentlemen control great combinations of corporate wealth, and possess enormous private fortunes. They have not found it difficult to enlist a large section of the press into a species of anti-Kelly crusade. The weapons of partisan warfare are not very choice, and this crusade has been carried on without much regard to the amenities of journalism, but with a resolute and persistent attention to the main idea, namely, the elimination of Mr. Kelly as a political leader, by proclaiming him to be the representative of one of the worst elements of American politics. But this mode of attack, while it may answer a temporary purpose, is always in the end a weak one. Intelligent people become interested to know more of a man who excites his opponents into storms of abuse, torrents of invective, and hurricanes, as it were, of rage. Is it all real, or does it cover a purpose? That becomes the question which the public soon ask, and its answer is always favorable to truth, and fatal to the manipulators of an artificial excitement, for intelligent people have an independent way of getting at the truth the moment they suspect it is being kept back, and get at it they will, and they do.

In this manner John Kelly's political opponents have really done him a service. The universal gaze has been directed towards the man, and the monster painted by reckless partisans of other and rival politicians has been found to be no monster at all, but a plain, quiet man, honest and straightforward as old Nat. Macon himself—to whom he was once likened by the late Alexander H. Stephens—of very original and rugged order of mind, of powers of command scarcely equalled by any other statesmen in the United States to-day, a foe to humbug, a terror to corruptionists—one, in

short, to inspire love and respect rather than hatred and ill-will in the minds of disinterested people.

The writer thinks he knows John Kelly intimately and thoroughly. His mind is powerful, without the acuteness of a Calhoun, or the imagination of a Webster, but as far as he sees his objects he sees with the eye of a statesman, and no judgment was ever sounder. Of ideas in their simplicity men in general have but a partial cognition, an apperception of consciousness, as philosophers term it, and not the clear perception. But the perceptive faculty is Mr. Kelly's pre-eminent feature. He is deliberate in mental operation, trusting nothing to fancy or imagination, and not distinguished for impulsive celerity of action, but almost invariably sure in his conclusions. Thus it has been sometimes, that his plans, when suddenly deranged in action by unforeseen circumstances, were not rapidly reformed, and defeat came upon him. But when he is in rest, and left to himself to devise and map out movements, his judicious arrangement and skill in deciding upon what is best to do have proved almost faultless. Incapable of fear, he has seemed to some to go forward to his objects with blind obstinacy. But those who think so have a superficial knowledge of the man, for prudence is his controlling quality. Before he reaches a decision, every circumstance and consideration is maturely weighed, all suggestions are patiently heard, all doubts exert restraint upon him. Indeed, his prudence has exposed him to the charge by more hot-headed men of being a plodder, so carefully does he labor to mature plans. It is only when he has reached a decision that his purpose becomes fixed and immovable, and he goes through with it, no matter what obstacles beset his path, or what less courageous friends may advise to change his resolution. Mr. Kelly has, in fine, granite firmness, and there is a broad distinction between firmness and doggedness.

Nature has given him a high temper, but reflection and habits of self-command have reduced it to almost perfect subjection. If aroused, however, and goaded to passion, he is one of the most tremendous men in his wrath, and one of the most formidable in his mode of delivering battle. A man of warm affections and commanding presence, his personal magnetism is simply wonderful. His name, wherever he is well-known, is never mentioned at public meetings without storms of applause immediately breaking forth. His appearance at public gatherings is always the signal for

hand clapping and expressions of welcome of that unmistakable sort only bestowed on a favorite. In this respect John Kelly almost rivals Henry Clay, and since the death of the illustrious Mill Boy of the Slashes no other man in America has had such an enthusiastic personal following.

While his liberality is great it is unpretentious. Publicity in well-doing is repulsive to his nature. His charity, which is almost ceaseless, is consequently always silent. The solidest kind of man in build and character, he delights in action more than words, and is known in New York as the safe leader. His natural ascendancy over men is instinctively recognized. For these and kindred qualities his influence in American politics is as potent as that of any other statesman in public life, and the reader of the following pages will find, it is believed, that this influence has been always beneficially exerted.

CHAPTER II.

HIS PARENTAGE AND EARLY LIFE—SCHOOL DAYS—EMPLOYED BY JAMES GORDON BENNETT—APPRENTICED TO JACOB B. CREAMER—DAVID C. BRODERICK—KELLY, CAPTAIN OF EMMET GUARDS—ATHLETIC SPORTS—HIS FONDNESS FOR PRIVATE THEATRICALS—RELIGIOUS STRIFE—A BATTLE AT THE POLLS—KELLY AS LEADER—THE KNOW-NOTHING PARTY.

John Kelly was born in the city of New York, April 20, 1822. The home of his parents and spot of his nativity was in Hester Street near Mott, in the old Sixth, afterwards changed into the Fourteenth Ward, famous for its politicians. He springs from that stalwart race of men who have played so conspicuous a part in the history of the United States—Tyrone County Irishmen. From Tyrone County came Richard Montgomery, whom Bancroft places second only to Washington as the military genius of the Revolutionary War; thence also came Alexander Porter, the illustrious Louisiana statesman, and one of the great lights of the United States Senate in its palmy days. Archbishop Hughes, who left his impress on the age in which he lived as one of its most remarkable men, and General James Shields, one of the heroes of two American wars, who enjoyed the unprecedented distinction of having been elected to the United States Senate at various times by three great States of the Union, were both emigrants from Tyrone County, Ireland. Out of this Milesian hive, seeking his fortunes in the New World in the early part of the present century, came Hugh Kelly, father of the subject of this memoir. He married Sarah Donnelly, of County Fermanagh, a small county adjoining Tyrone. The marriage took place in Ireland. There were seven children born to the parents, of whom John was the fourth. The others were five daughters and a son, the last named after the father, Hugh. Old New Yorkers, who were acquainted with the mother of John Kelly, have informed the writer of this memoir that she was a woman of remarkable force of character, a devout Christian, and a mother who brought up her children in the love and fear of God. The children were all vivacious, and very communicative among themselves in the family circle, with the exception of John, who was quiet and thoughtful, and a better listener than talker. On one occasion a neighbor

paid a visit to the Kellys, and brought news of an excursion, a pic-nic, or some such affair, that pleased and greatly excited the little ones, each of whom, save John, had something to say about it. At length the neighbor looked over at John, who had remained a silent listener, and exclaimed, "Look at John there, with his big head, taking it all in, and not saying a word." "Oh, yes," said the mother, "that is his way; he thinks a great deal more than he talks, but be sure he is not dumb." A New York newspaper once cynically characterized him as an ox, but the dumb ox, to use the figure of Albertus Magnus, has given a bellow which has been heard round the world. The devotion of Mrs. Kelly to her elder son was peculiarly tender. At one time, when he was a small boy, he had to cross the East River daily. The mother would often accompany him to the boat in the morning, and always went to meet him on his return in the afternoon. Other boys going and returning at the same time observed that young Kelly's mother never failed to be at the landing in the afternoon to accompany her son home. The mischievous boys sometimes cracked jokes at his expense, and teased him about his mother's apron strings. He stood the bantering well enough for a time, but at length grew tired of it. One of the tallest and strongest of the boys hearing that Kelly had threatened to thrash the next fellow that annoyed him on the subject, took it into his head to try his mettle. "Say, Kelly," exclaimed this one, "how's your mother? Boys, he's got a good mother, sure. She won't let him go running about the streets with the gang for fear he might learn something wicked, but comes for him and takes her little boy home every night. Come along, Johnny, and be tucked in your little bed. Bah!" A flushed face and clenched fist told that Kelly would stand no more raillery of that sort. A smart battle took place on the spot between the two youngsters, and ended in the discomfiture of the larger boy. Kelly's victory made him a favorite among his companions, and they all soon came to look upon him as a sort of leader, although he would not loiter with the crowd at street corners of evenings, nor haunt the purlieus of the city where youth loses its innocence, and flaunting vice slopes the way to ruin. Such a mother is a guardian angel to her children, and Mrs. Kelly's afternoon escort to her son provoked no more jibes at the expense of the latter. This incident affords an insight into the methods of his boyhood, and shows how, under the fostering hand of his mother, the character of the future man was moulded. The American sin of cursing and swearing is first picked up by children running idly about the streets into all sorts of

company. John Kelly was never addicted to this bad habit, and it may be doubted whether his most intimate friend of to-day ever heard him utter a profane oath. The Psalmist's aspiration to walk soberly and chastely in the day before the Divine Face should be the aim of the rising generation. With that object in view children should be kept out of temptation in the pitfalls of a great city. After awhile, when the habits of a promising youth are formed on the right side, temptation assails him in vain, and whether it be from the cot of poverty or the mansion of wealth, a hero steps forth for life's battle, who may be depended upon to make his way, and render a good account of himself.

In the case of young Kelly, it was from the cot of poverty he emerged. His father's and mother's business of a small retail grocery store afforded the family a modest but comfortable living. But while John was still a small boy of eight years his father died, and the widow and her elder son had to become the bread-winners—the former managing the store, and the latter, when about ten years old, going out in quest of employment. John had attended for some two or three years the parochial school attached to old St. Patrick's Cathedral in Mott Street. Now he had to give up the school and go to work. It was a sore trial to him, for he was ambitious of book learning, and the dream of his life was to get a good education. But he started out with a brave resolution to seek employment. For a long time the search was tedious and unsuccessful. He had to take many surly replies from ill-bred people, and often went home tired at night after a fruitless day's rounds, to begin the work over again in the morning. But he told his disappointments to no one, unless indeed to whisper them to the fond mother whose strong heart went out in such sympathy with his own, and whose sound practical sense helped him to form some new plan for the morrow. It is probable that the lesson he learned then of "man's inhumanity to man" during his first humble trials to make his way in life was never forgotten. When the day came for himself to mount to power, and to be called upon by many young and old seeking a friendly hand to help them to their feet, John Kelly proved to be a real philanthropist, uttering the gentle word, cheering the drooping heart by the overflowing generosity and charity of his own, and never allowing a human being to pass out of his doorway without feeling better and stronger for having carried his sorrow to him.

One day John went into the *Herald* office, then in its infancy, and asked James Gordon Bennett whether he wanted an office boy. Mr. Bennett scanned the boy over from head to foot without making a reply. Seemingly satisfied with the first scrutiny, he began a conversation with him, which continued for five or ten minutes. There was no better judge of character than the elder Bennett, and he was always quick in making a decision. "Come in here, my lad, and take off your hat and get to work," said he, and John Kelly found himself an employ   forthwith of the great editor. No two men have ever made their mark more thoroughly in the metropolis of the United States than James Gordon Bennett and John Kelly. Did the editor descry in that first glance at the boy the latent powers which ultimately have made Kelly so distinguished? "It is said," remarked the editor of the *Utica Observer*, in a notice of Mr. John Kelly in that paper, "that old James Gordon Bennett took a great fancy to him. This speaks much in his praise, for the founder of the *Herald* was quick to see the possibilities of greatness or usefulness in an undeveloped youth."^[1]

Evening schools then but recently had been established in New York, and the youth was quick to avail himself of the advantages they afforded to boys in his situation for acquiring an education. He became a regular attendant at one of those night schools, was a diligent and close student, and, like the great Sir Thomas More, "rather greedily devoured than leisurely chewed his grammar rules." The editor of the *Utica Observer*, one of Mr. Kelly's most energetic opponents and Governor Robinson's ablest advocate in the press, during the celebrated New York gubernatorial struggle of 1879, declared of Kelly, in the heat of that campaign, and in an article containing an attack upon him, "that there is a great deal to admire in the character of John Kelly." Of his education the editor added: "His thirst for learning had not been satisfied in his youth, and he proceeded by study to enlarge the scope of his understanding. He became a good scholar in French, as well as in English, and for twenty years he has devoted several hours of every day to the pursuit of literature and science. If anybody has imbibed the impression that Mr. Kelly is an ignorant man, he does not want to confront that delusion with an actual examination of Mr. Kelly's acquirements. A Utica man who met him once in the presence of Prof. Bonamy Price, of Oxford, says that he held his own in a discussion on Political Economy with England's foremost teacher of that science."^[2] He proved to be an excellent

office-boy, was always at his post, and was as punctual as the clock in fulfilling engagements. He became a great favorite with Mr. Bennett, and when, at length, as he grew older he resolved to give up his employment in the *Herald* office in order to learn some regular business or trade, Mr. Bennett tried to dissuade him from his purpose, and offered additional compensation as an inducement for him to remain. But while greatly appreciating his employer's kindness, young Kelly replied that his mother and her large family mainly looked to him, the elder brother, for support, and that it had always been his intention to go into business on his own account. The time had now come to carry out that purpose. Mr. Bennett, in his brusque but kindly Scotch voice, gave John some parting advice and wished him well, predicting that success awaited him in his future career. The boy now apprenticed himself to Jacob B. Creamer, a grate-setter and soap-stone cutter at 346 Broome Street, then on the corner of Broome and Elizabeth, and speedily learned that trade. He had grown to be a large boy, with the thews and sinews of a young Hercules, and although he was not quarrelsome, he was high spirited and courageous, and would brook no insult from anyone. In the factory where he worked there was another young man, three or four years older than himself, a dark complexioned powerful fellow, of a domineering temper, with a reputation for fisticuffs. One day this person got angry with Kelly and struck him. Kelly returned the blow. The men in the establishment separated them, but the blood of both was up, and a fight was agreed upon between them as soon as the bell should be rung for dinner. They went into the factory yard and prepared for battle. The hands about the establishment finding the boys meant to fight, undertook to secure fair play in the encounter. Kelly was much shorter than his antagonist, and no one supposed he had any chance to win. At it they went pell mell, with a lively interchange of heavy thuds. The older youth fought rapidly, and brought Kelly down several times with furious blows. Fighting was not allowed while either of the boys was on the ground, and in this way matters progressed for fifteen or twenty minutes, Kelly getting the worst of it all the time, but showing great endurance, and urging that no one should interfere. He had made thus far but very little impression on his antagonist. He observed, however, that one of his chance blows had caused the other to wince with pain. From that moment he took all the punishment the larger boy could inflict, and made the battle one of strategy, reserving himself to give a blow in the same place, which he found to be the other's

weak spot. The tide now began to turn, and it soon became evident to the onlookers that the big swarthy fellow was no match either in courage or endurance for Kelly. The latter, selecting the weak spot, laid his antagonist on his back several times by well-directed blows. The last time he fell both his strength and courage collapsed, and he bellowed out crying that he was whipped and would fight no more. One of the men who had witnessed the encounter with the closest attention from beginning to end, and saw that Kelly had won it by superior intelligence, now rushed up to him, and taking his hand exclaimed, "Well Johnny, my boy, you are a born general sure, and you will yet be a great general over men when you grow up to be a man yourself." A few years ago an aged man entered Mr. Kelly's crowded office at 117 Nassau street, and sent in his name with the rest. When his turn came he was admitted. "Do you not know me, Mr. Kelly?" said the old man. "No," was the reply, "I do not recall you." "Do you remember when you were a boy the fight you had with that big swarthy fellow in Creamer's factory yard, when one of the men told you you would one day become a great general over men? Well, I was that very man, and didn't I tell the truth, sir?" Mr. Kelly remembered the occurrence and his visitor too, immediately, whom he had not seen for many years, and laughed heartily over the reminiscence of his youth as he shook the old man's hand.

He worked industriously at his new occupation, and is said to have displayed mechanical skill of no mean order. In due time he set up in business for himself, made friends rapidly, and secured an excellent line of custom. He became a prosperous young man, and was remarked upon for sobriety, modesty of deportment and attention to business. It was not long before he found himself able to branch out on a more extensive scale, for his friends were numerous and willing to lend him a helping hand when the needs of his business made it expedient to ask credit. While yet a very young man, his success was sufficiently assured to justify him in establishing a soap-stone and grate factory at 40 Elizabeth street, and he also opened an office where he took business orders, in a frame building on Broome street, next door to the church over which Dr. Maclay at that time presided, and of which Dr. Cohen, in subsequent years, became the pastor. Among his customers were Thomas O'Connor, father of Charles O'Connor, the lawyer; John A. Dix, afterward Governor of New York; Horace F. Clark, and many other influential people. John Kelly had now become a prosperous man. His first care was for the beloved mother who had shaped

the days of his youth in the ways he should walk, but who departed this life in the most edifying sentiments of piety when he was quite a young man, scarcely twenty-one years of age. His next care was for his younger brother and five sisters, towards whom he acted as a father, and for whose education and welfare he was now able to provide in a suitable manner. His own early struggles for education had taught him to appreciate it highly in others, and he secured to his brother and sisters advantages which disciplined their youthful years and qualified them for the duties of after life. Later on he took his brother into partnership with him, but that brother and all his sisters, save one, Mrs. Thomas, who lives near Mexico, in Oswego County, New York, died many years ago. Mr. Kelly, as already mentioned, owed to his mother's care the blessing of right training in his youth, and the consequent formation of his character in the practice of the Christian virtues. An old New Yorker who knew his mother, has told the writer she was a thorough disciplinarian, and taught her children to love the truth in all things, and that the beginning of wisdom is the fear of the Lord. His mother died before her son's brilliant success began; she who had equipped him for the battle stayed not to enjoy its triumphs.

At this period of his life John Kelly had not a dream of ever entering upon a political career. In this respect he resembled another distinguished New York statesman, the late Daniel S. Dickinson, who began life as a mechanic, became a woollen manufacturer, and, beyond being an earnest Democrat, passed several years with no inclination whatever for the field of politics. It was true, however, that even from his boyhood John Kelly displayed rare capacity to lead others, and he now found himself, in spite of preoccupation in the manufacturing business, constantly called on by neighbors seeking his advice and instinctively following him. He was once asked by a newspaper reporter if he ever sowed wild oats in his youth. "That may be called a leading question," he replied; "I was in a gambling-house once in my life, but it was on business—not to gamble. And I never was in a house of assignation in my life. I don't know what the inside of such a house is." "It is charged against you," the reporter said, "that you attend church very regularly, and that you do it for effect." "Well," Mr. Kelly said, "that's a queer charge to make against any one. I had a good careful mother who sent me to the Sunday-school regularly. I have been to church regularly ever since. Under such training, no doubt, I ought to be a great deal better Christian than I am. I suppose I have been very wicked

sometimes, and yet I can't recall any time when I have been wilfully bad.”^[3]

“During Tweed’s ascendancy in New York politics,” said the well informed Utica editor, in the article already quoted from, “Mr. Kelly retired from Tammany Hall. Between him and Tweed the bitterest hostility always existed. It is pleasant to believe that Kelly’s superior virtue made him distasteful to the burly champion of corruption. But that does not account for their feud. During the glow of his guilty glory, Tweed’s ambition was to secure the endorsement of men of unimpeachable character. By turning back a page in political history, we might show how well he succeeded. But he could not make terms with John Kelly, for Mr. Kelly would accept no position but that of ruler. William M. Tweed swore a solemn oath that John Kelly never should control Tammany Hall—and we all know what came of it.”

Shortly before his death, while he was a prisoner in Ludlow Street Jail, Tweed was interviewed by a New York *Herald* reporter, and gave with undeserved freedom his impressions of the leading men he had known in politics. “Whom,” said the reporter, “do you regard as the most successful city politician of New York in the thirty years of your experience?” “John Kelly,” said Tweed. “He was always a plodder—always saving something and learning something. He stood well with the Church—rather a high class man in the Church—and got his support there. I never did but one thing for him; twenty years ago I helped him beat Walsh for Congress.” “When you came to politics,” asked the reporter, “did you ever remotely entertain the idea of such proportions as the Ring afterwards assumed?” “No,” said Tweed. “The fact is, New York politics were always dishonest—long before my time. There never was a time when you couldn’t buy the Board of Aldermen, except now. If it wasn’t for John Kelly’s severity, you could buy them now.”^[4]

The reporter of the *World*, with an odd sort of unconscious humor in his interview, not unlike Tweed’s commercial valuation of piety as an investment, so naively suggested by the words, “rather a high class man in the Church,” bluntly told Mr. Kelly that it was not only complained against him that he attended Church, but that he aggravated the matter by attending it very regularly. No wonder Kelly should have thought that a “queer charge” to make against him.

An old citizen of New York, acquainted with him from his youth, is authority for the statement that Kelly was as fully a leader of the young men of his neighborhood when he first grew up, as he became of the Tammany Democrats at a later day. He was of a social disposition, and while always temperate in his habits, he would go occasionally, after getting through with his day's work, to the Ivy Green, a famous hostelry in those days in Elm street, kept by Malachi Fallon, who went to California in 1849, and which was afterward kept by John Lord. The Ivy Green, like Stonehall's in Fulton Street, was a popular gathering place for politicians and their friends. John Clancy, Peter B. Sweeny, Matthew Brennan, David C. Broderick, and many other active young fellows, who afterwards became prominent in politics, were in the habit of visiting the Ivy Green, and John Kelly would sometimes call there for a chat with the boys. Less frequently, but once in a great while, Kelly and Broderick, the latter being a warm friend of Kelly's, also dropped in at the Comet, another place of resort of the same kind, kept by Manus Kelly on Mott street, where they would meet the same jolly crowd that frequented the Ivy Green, and whither came quite often the celebrated Tom Hyer, Yankee Sullivan, and other champions of the manly art of self-defence. "But," said the writer's informant, "none of these fighting men ever intermeddled with Kelly or Broderick. The best of them would have had his hands full if he had done so." Poor Broderick, who afterwards became a United States Senator from California, finally fell in a duel in that State.

Young Kelly was very fond of athletic sports. He was a good oarsman, was often on the water, and pulled a shell with the best. There was a crack company called the Emmet Guards in New York, when Kelly was a young man. He was first lieutenant of this company during the captaincy of James McGrath, upon whose death he was elected captain, and being fond of military matters, he brought his company to a high state of efficiency. Captain Kelly retained the command until he was elected Alderman in 1853. The Old Volunteer Fire Department was then in its zenith. He was a member of it, and one of its leading spirits. While he was in the Fire Department an incident occurred which has exercised a restraining influence over him through life. At a fireman's parade, while he was in line of March, a burly truckman attempted to drive through the ranks. Kelly was near the horses and kept them back. The driver sprang to the ground, and made a furious attack on the young fire laddie. He received in return a blow

from Kelly's fist which ended the battle by rendering the truckman insensible. He was borne to a neighboring doctor's office, and was resuscitated with much difficulty. For two or three days the truckman was disabled. Kelly, who had acted strictly on the defensive, nevertheless was greatly distressed for his antagonist. He had been unaware of the almost phenomenal force of his own blow, and his tremendous hitting power was first fully revealed to him by the effect of his fist on the truckman. To one of his intimate friends he declared that he deeply regretted this affair, but that, perhaps, it had served a good purpose, for he was now unalterably resolved never again as long as he lived to strike any man with all his force, no matter what the provocation might be.

His herculean strength and known courage have sometimes been seized upon by opponents for disparaging paragraphs in the newspapers, just as the combativeness of Andrew Jackson, in his earlier days, was often commented upon to his detriment. But as there was nothing mean or domineering in the temper of Jackson, any more than there is in Kelly, only the high and unconquerable spirit that felt "the rapture of the strife," Old Hickory did not suffer in popular esteem on account of his early scrimmages. In 1828 Dr. James L. Armstrong, one of his old opponents in Tennessee, gathered up and published as a political nosegay a list of nearly one hundred pistol, sword and fist fights in which Jackson had been engaged between the ages of 23 and 60. Jackson replied to this by promising to cudgel Armstrong on sight. The courage of some men is so conspicuous that they are recognized at once as heroes. In his admirable life of Nelson, Southey relates many acts of apparently reckless intrepidity on the part of the hero of Trafalgar; but, as it was with Jackson, so was it with Nelson, his conduct was not the result of real recklessness; it was not the courage of the bull-dog, the maddened bull or the enraged lion, but rather the play of a spirit which rose with the occasion, the exhibition of a will not to be appalled by dangers common natures shrink from. It was such a courage the poet had in view when he made Brutus say—

"Set honor in one eye, and death i' the other,
And I will look on both indifferently."

On several occasions in his career John Kelly has exhibited this heroic quality. Through his agency, at a stormy political convention in New York,

when several of the most notorious partisans of Tweed, while clutching to retain the power which had been wrested from their fallen chief, were beaten at every point, a resort to brute force was threatened, and several of the vilest desperadoes in the city were despatched from the hall to waylay Kelly and take his life as he passed along the street. Some of his friends divined the purpose of the would-be-assassins, and admonished Mr. Kelly of their movements. A carriage was sent for, and he was urged to get into it and be driven home, in order to avoid the bravos. Augustus Schell, Horace F. Clark, and several other friends tried to persuade him to enter the carriage. Mr. Kelly replied that he generally went home by a certain route, pointing to the street where the thugs were in hiding, and it was his intention to go that way then. If anybody wanted to kill him, the opportunity would be given, as he would neither seek nor avoid such miscreants. "My friends," he quietly remarked, "if you run away from a dog, he will be very apt to bite you." He went out of the hall and approached the corner, keeping his eyes steadily fixed on the sinister group gathered there like beasts of prey, passed on, and was not molested. Determined to take his life, but deterred by cowardice when Kelly confronted them, the villains made a plan to secrete themselves in a small unoccupied frame house on Lexington Avenue, between 33d and 34th streets, on the following morning, and to shoot him as he went down town to business. An old man living in the neighborhood, by the merest accident overheard a part of the muttered plot of the conspirators, and saw them early next morning enter the deserted house. He was a friend of Mr. Kelly, and suspected that he was to be attacked. He went out, and meeting Mr. Kelly, told him of his suspicion, and pointed out the house in which the men were concealed. John Kelly crossed the street, and proceeded deliberately to enter the house and room from which the Ring desperadoes in dumb astonishment watched his approach. Thinking they had been betrayed—for it must have flashed upon them that Kelly would not have the madness to do such a thing unless he had assistance at hand—the terrified assassins fled from the rear of the house as he entered at the front. He went into the room they had just quit, and saw four men running through a vacant lot as fast as their legs could carry them into the next street. Alone and absolutely unassisted, save by the cool judgment and unflinching courage which eminently distinguish his character, he adopted this hazardous line of conduct as the most effective

way of confounding a gang of murderous ruffians, and stamping out their cowardly plots. He succeeded. The Ring men beset his path no more.

Those acquainted with John Kelly are aware that there is a humorous side to his character, and that he possesses mimic powers of a high order. It is not generally known, but it is a fact however, that when he first grew up to manhood he was one of the organizers of an Amateur Dramatic Association, which had its headquarters in a hall at the corner of Elm and Canal Streets, and which sent forth several professional actors who afterwards attained eminence on the stage. Charles Place, Samuel Truesdale, Mr. Godwin, John Kelly and other well known citizens of New York were members of this company; and several great tragedies, notably some of the now neglected ones of Shakespeare, were essayed by these aspiring youths. "Many of Mr. Kelly's friends," said a writer in September, 1880, in a New York weekly paper called *The Hour*, "will be surprised to learn that he once, in the character of Macbeth, sturdily challenged Macduff to 'lay on'; that as the sable-clad Hamlet he was accustomed to win applause as he expressed the wish that his 'too, too solid flesh would melt'; and that his passionate outbursts as the jealous Moor in 'Othello', were wont to bring down the house. Equally astonished will they be to hear that, in the versatility of his genius, he was as much a favorite in 'Toodles' and other of Burton's eccentric comedy parts as in the higher walk of tragedy."

In Kelly's younger days religious persecution and hostility to foreigners had begun to be shown in not a few localities. This intolerant spirit, which had lain dormant in America from the days of Washington to the end of Monroe's administration, broke forth with great fury in several parts of the country after the close of the "era of good feeling." The fathers of the Republic were liberal men who kept this spirit at a distance. Archbishop Carroll of Baltimore, the friend of Washington, was chosen by a unanimous resolution of Congress, and in compliance with the desire of the clergy and laity of all denominations, to deliver the first anniversary address upon the father of his country after his death. The address was delivered February 22, 1800, and is still preserved. Bishop Cheverus of Boston, afterwards Cardinal Archbishop of Bordeaux, France, was the warm personal friend of John Adams, and when the Bishop was about to build a church in Boston, the first name on the list of his subscribers was that of President Adams. When Bishop Dubois, the friend of Lafayette, was driven into exile by the

French Revolution, he found a place of refuge in Virginia, a home in the private residence of James Monroe, afterwards President, friends in his host and Patrick Henry, and, having no church of his own, a chapel in the capitol at Richmond which the legislature of Virginia placed at his disposal to be used for the offices of religion. These halcyon days of Christian charity and toleration in America were now about to be rudely interrupted. In 1831, the same Dubois, then Bishop of New York, had the mortification to see his church of St. Mary's, in that city, set on fire by an incendiary and burned down. The first Catholic college in the State of New York was built in the neighborhood of Nyack, on the Hudson, in 1833, by this prelate. Religious bigotry incited by Rev. Dr. Brownlee and other enemies of the Catholics, soon applied the torch to the structure and reduced it to ashes. In 1834 the Ursuline Convent at Charlestown, Massachusetts, was burned and sacked. Two or three years later an anti-Catholic mob formed the design of burning St. Patrick's Cathedral in New York. A pious churchman, Bishop Dubois was also a man of courage. If the civil authorities would not stay the fury of the mob, he determined to protect himself, and defend his church from destruction. John Kelly, then a well grown youth and a favorite of Bishop Dubois, was selected by him on account of his prudence and extraordinary courage as a sort of *aid de-camp* to Lawrence Langdon, the leader of a large body of citizens who assembled in the vicinity of the Cathedral for defense. The streets were torn up for a considerable distance; paving stones, wagons and omnibuses were used for barricades; armed men filled the Cathedral, and the walls of the adjoining grave-yard glistened with swords and bayonets. The Bishop enjoined the utmost forbearance upon his people, and gave them positive orders not to begin the assault, and to avoid collision with the mob until the Cathedral might be attacked. Conspicuous in carrying out the orders of the leader, and in directing the movements of the defending party, and maintaining constant communication between Langdon and his followers, was young John Kelly of the Fourteenth Ward. The mob approached through Broadway, a dense body extending for several blocks, marching in solid line and filling the street from one side to the other. They turned into Prince Street and approached the Cathedral. Kelly carried the order at this moment for the defenders to lie down in the grave-yard and keep perfectly quiet. It was night, and the mob marched on until stopped by the barricades, when they found the whole neighborhood in a state of siege. The ample preparations to receive them disconcerted the

church-burners, and the silence of the defending party, of whose presence they had become aware, made the incendiaries wary and apprehensive. They faltered and lost heart, and slunk away in the direction of the Bowery, terrified from their wicked design by the intrepid courage of one old Bishop. They passed along the sidewalk adjoining the burial-ground in lines six deep, with frightful oaths upon their lips, while the men in the city of the dead remained as still and motionless as the tenants of the tombs below, but every finger was on a trigger, and every heart beat high with resolve to defend St. Patrick's Cathedral and the graves of their fathers from sacrilege and desecration. Driven by cowardly fear from the church, the mob crossed to the Bowery, wrecking the houses of several Irishmen, and the tavern called the Green Dragon, on the way, and finally their fury was let loose on the private residence of Mr. Arthur Tappan, the famous abolitionist, whose windows and doors they broke, and otherwise injured his property. Thus by the prudence of the Cathedral defenders in avoiding collision with the mob, a terrible sacrifice of life was escaped, and young John Kelly, inspired by the counsel of the Bishop and his own coolness and sagacity, played a prominent part in preventing bloodshed and saving the Cathedral.

The prejudice against foreigners, an outgrowth of that aversion which the old Federal party leaders manifested towards Frenchmen, Germans and Irishmen, indeed to all foreigners except Englishmen, continued to increase in bitterness after the close of the "era of good feeling." A political party was at last organized on a platform of disfranchisement of the Irish and "the Dutch," the latter being a commonly used misnomer for the Germans. This party took the name of Native Americans. It advocated laws prohibiting Irish and German emigrants from landing on these shores, and practical denial of the right of suffrage, or of holding office, to those already here. For some years this unwise and unstatesmanlike policy of exclusion and proscription seriously checked the tide of emigration from Europe. Had the Native Americans prevailed, instead of the fifty odd millions of population in the United States to-day, there would have been less than twenty millions, and the wealth and greatness of the country would be diminished in like proportion. Instead of being, perhaps, the greatest nation in the world, the United States would occupy the position of a fourth or fifth-rate power, a little but not much ahead of Canada on the north, and the South American governments on the south.

As the greater number of the foreign population were Roman Catholics, a sectarian element was infused into the new party, and with bigotry superadded to a widespread jealousy of foreigners, the Native American party soon signalized itself by burning down Catholic churches and colleges, and by bloody chance-medleys and deliberate riots with German and Irish adopted citizens. In the year 1844 these disturbances reached a climax. A terrible riot occurred that year in Philadelphia, in which many lives were sacrificed, and the Catholic church of St. Augustine was laid in ashes by the mob. The scenes in that city bore resemblance to some of the godless excesses in Paris during the reign of terror. To be a foreigner was to brave death, to be a Catholic to court martyrdom in free America.

It was at this juncture the Native American party in the city of New York again threatened the destruction of St. Patrick's Cathedral. The *New York Courier and Enquirer*, and *Evening Express* fanned the passions of the people to white heat by appeals to sectarian and race prejudices. But there was a man then at the head of the Catholic Church in New York who possessed many of the qualities for which Andrew Jackson was distinguished. Bishop Hughes belonged to the tribe of the lions. He perceived that it was the favorite policy of the Native Americans to make New York city an anti-foreign stronghold. There, Catholics and adopted citizens were powerful; crushed there, it would be an easy matter to prostrate them everywhere. In the month of May, 1844, the Native American leaders in New York, invited their brethren of Philadelphia, who had most distinguished themselves in the deplorable events in that city, to visit New York, and to bring with them emblems of the horrible scenes in Kensington at the time of the burning of the church of St. Augustine, the better to fire the New York heart. A delegation of Philadelphians promised to accept the invitation and carry on the emblems. A public reception, and a procession through the streets, were to take place. It became evident that the purpose of this sinister movement was to re-enact in New York the scenes which had just disgraced Philadelphia. Bishop Hughes took decisive action. He admonished Catholics to keep away from public meetings and unusual gatherings of the populace, and, to avoid in a special manner, all disturbers of the peace. That great man, in looking over the city for prudent and conservative persons to aid him in carrying out his policy of forbearance, found no one on whom he more implicitly relied, and who proved more effective in the emergency than John Kelly. Bishop Hughes and John

Kelly's father were natives of the same county and neighborhood in Ireland. Between the Bishop and his fellow countryman's son a warm friendship existed. They were both endowed with minds of singular originality and power, both natural leaders of men, both possessed a remarkable hold on the respect and affections of the people. Among the Whigs, at this perilous juncture, Bishop Hughes also found several powerful supporters, chief among whom were William H. Seward, Horace Greeley and Thurlow Weed. As the time drew near for the Native American demonstration, popular excitement and fears of a terrible riot increased. Bishop Hughes now called on the Mayor of the city, Robert H. Morris, and advised him not to allow the demonstration to take place. "Are you afraid that some of your churches may be burned?" the Mayor asked. "No, sir, but I am afraid that some of yours will be burned," the Bishop said; "we can protect our own. I came to warn you for your own good." "Do you think, Bishop, that your people would attack the procession?" "I do not; but the Native Americans want to provoke a Catholic riot, and if they can do it in no other way, I believe they would not scruple to attack the procession themselves, for the sake of making it appear that the Catholics had assailed them."

"What, then, would you have me do?" asked the Mayor. "I did not come to tell you what to do," the Bishop said. "I am a Churchman, not the Mayor of New York; but if I were the Mayor, I would examine the laws of the State and see if there were not attached to the police force a battery of artillery, and a company or so of infantry, and a squadron of horse; and I think I should find that there were; and if so, I should call them out. Moreover, I should send to Mr. Harper, the Mayor-elect, who has been chosen by the votes of this party. I should remind him that these men are his supporters; I should warn him that if they carry out their designs there will be a riot; and I should urge him to use his influence in preventing the public reception of the delegates."^[5]

This characteristic stand of Bishop Hughes had its effect. No public reception of the church burners took place, but for nearly two weeks the Cathedral was guarded every night, and the mob which threatened its destruction was kept at bay. During those dark days Bishop Hughes found John Kelly to be one of the most prudent young men in the Cathedral parish, energetic in danger, conservative in conduct, and always responsive to the call of duty. His manly bearing then may be said to have laid the

foundation of that enduring confidence in his judgment, and respect for his character, which the Bishop ever afterwards felt and expressed. Mr. Kelly was not a zealot, and there is not a tinge of bigotry in his nature. He was then, as he is now, a true liberal, and has always declared that religion and politics should be kept as wide apart as the poles. But he is the foe of intolerance, and while despising the arts of the demagogue, no man in New York has done more to uphold foreign citizens in their rights, and to emancipate the ballot-box from persecution on the one hand, and fraudulent voting on the other.

The Native American party finally developed into the notorious Know-Nothing movement, the party of grips, and signs, and dark-lanterns. In many of the election districts of New York no foreigner dared approach the polls. The primaries were even worse, and were conducted in defiant disregard of the election laws. In John Kelly's ward, which was a fair illustration of every other ward in the city, any Irishman or German risked his life by going to the polls. Gangs of repeaters and thugs, as far as they could, kept all foreigners from the primaries. These tools of the Know-Nothing leaders would fill the room where the election was held, take possession of the line, crowd out their opponents by threats or violence, return again and again, force their way, after passing the spot where the votes were received, once more into the line, and repeat the farcical act of voting a second and third time, keeping up the villany until relieved by another squad of repeaters, who continued to enact the same scenes until the close of the polls. A friendly police force connived at these rascalities, and openly backed up the repeaters and ballot-box stuffers whenever a determined citizen, in the exercise of his rights, resisted expulsion from the line, or attempted to defend himself from assault. So great became the terror these law-breakers inspired, that opposition to them was practically at an end. This state of affairs was more humiliating, since the majority of voters in the Fourteenth Ward were known to be Democrats. John Kelly protested against these outrages as a private citizen, and at a meeting of Democrats declared his intention of attending the next primary election in the Fourteenth Ward, then near at hand, and exercising his right of voting at all hazards. Those who knew the man knew this was not an idle boast, but many tried to dissuade him from the rash attempt, which, if persisted in, would likely enough cost him his life.

The primary election was to take place in a hall, long since removed, in the march of the city, which then stood on the corner of Grand and Elizabeth Streets. The part of the room for the inspectors' seats was protected by a high partition, and a box desk, like a bank teller's window, with a hole only large enough for a voter's hand to be put through in handing his ballot, to the receiving inspector, was placed at one side of the partition. A narrow path in the main room, fenced in by high rails, to allow but one voter to approach at a time, afforded the only means of access to the polls. When the voter handed in his ballot, that was the last he saw of it, as the partition effectually shut off observation from without. As a matter of fact it was the practice of the inspector to throw the vote into a waste basket, on the floor at his feet, if it was not of the approved sort. This mode of taking the *vox populi* had long been in practice, and was not only an open evasion of the statute, which provided for the presence of watchers for the several parties, whose legal right it was to see that all had a fair opportunity to vote, but it was adopted with the deliberate purpose of protecting the swindling inspectors from detection while engaged in the nefarious work of making way with legal ballots. On the day of the election John Kelly was early on the scene, and was accompanied by a large number of the lawful voters of the ward, who appointed him as their watcher at the polls. He and his friends forced their way into the hall, and as the black hole, behind which the frauds were practiced, was there in violation of the statute, it was straightway demolished, in order to secure at least a semblance of fairness to the voting about to take place. The Know-Nothings were at first struck dumb with astonishment at this bold step on the part of the Democrats. To defend themselves from violence was as much as the latter had previously attempted. Rage soon took the place of surprise, and a furious attack was made on those who had removed the box screen from about the inspectors' desk. John Kelly, who had been recognized as a Democratic watcher, was also set upon by the gang of ballot-box stuffers. A fierce scuffle ensued. But the Democrats outnumbered the Know-Nothings, and drove them from the hall. The leaders of the latter party, uttering vows of vengeance, declared they would soon return with reinforcements, and make short work of Kelly and his party. They repaired to the ship-carpenters' quarters at the foot of Delaney street, and soon the news of their discomfiture was spread abroad among the thousands of mechanics in that part of the city. These mechanics were, for the most part, engaged in ship building, for those were the days

when New York's famous clipper ships whitened the seas and brought back cargoes of commerce from all parts of the world. The ship carpenters constituted a formidable body of athletic men, whose influence at elections was cast on the side of the Know-Nothings. It was not long before a body of these mechanics, over a thousand in number, was drummed up in Delaney street and vicinity, and marshalled by notorious Know-Nothing bullies, the crowd started for the hall in Grand street to inflict condign punishment upon John Kelly and the Fourteenth Ward Democrats, who had shown the unprecedented audacity of interfering with the usual Know-Nothing methods of carrying elections in that ward. In the meantime the Democrats had not been idle, but had recruited their own ranks to prepare for the threatened attack. Soon the two parties came into collision, and a desperate encounter took place. But for a second time the victory remained with the Democrats. The Know-Nothings, unaccustomed to serious opposition, were not prepared for it now, and advanced in a promiscuous manner, expecting to bear down opposition and to have everything their own way. The Democrats presented a compact front, and fought in companies of ten each. The hall was cleared a second time of the assailing party. A great multitude was now gathered in the streets threatening to tear down or burn the building, when the Democrats suddenly sallied forth with the precision of veterans, and struck the Know-Nothing mob at a dozen different points simultaneously. The mob being gathered from all parts of the city greatly exceeded the Democrats in numbers, but the sub-divisions of tens on the part of the latter worked so well that their onslaught became irresistible. Soon the mob were flying in all directions, some seeking refuge in stores, others in private houses, and the rest were pursued into and through the Bowery with great impetuosity. "The hour was come and the man." None knew it better than the Know-Nothing Dirk Hatteraicks of New York. The effect of that day's work in the Fourteenth Ward was felt all over the city of New York for years afterwards, and its immediate consequence was to break the backbone of Know-Nothingism in the ward in which it occurred. Thereafter Democrats, whether native or foreign born, were not afraid to appear at election places. The moral effect was salutary. The timid were reassured, the indifferent were roused into interest in public affairs, and fair elections became more frequent in New York city. The one strong man who had worked this revolution was John Kelly. The Irish and German population looked upon him as their deliverer, and from that day forth the

Know-Nothing power on the East side of the city dwindled into insignificance, and no further attempts to stifle the voice of the majority took place. Kelly became identified in the minds of the adopted citizens of all nationalities, but especially of the Irish, who were chiefly aimed at, as their champion. Henceforth it was not possible for this strong man, this born leader of his fellows, to follow the bent of his inclinations and remain in a private station. He was elected to the Board of Aldermen, and next to the Congress of the United States. The Know-Nothings, by their excesses in New York, had raised up an adversary to their oath-bound secret organization who was destined to accomplish as much in the Empire State for equal rights to all citizens, native and foreign-born, as Alexander H. Stephens, in a similar contest, wrought out in Georgia, and Henry A. Wise, by his great anti-Know-Nothing campaign accomplished in Virginia.

FOOTNOTES:

[1] *Utica Observer*, Sept. 16, 1879.

[2] *Utica Observer*, Sept. 16, 1879.

[3] *New York World*, Oct. 18, 1875.

[4] *New York Herald* October 26, 1877.

[5] Clarke's *Lives of the Deceased Bishops*, vol. ii., pp. 111-112.

CHAPTER III.

THE GREAT COMMONER OF GEORGIA—SPEECH OF A. H. STEPHENS—HENRY A. WISE OF ACCOMAC—HENRY WINTER DAVIS—HIS CHARACTER—JOHN KELLY MEETS HIM IN DEBATE—KELLY'S STANDING IN CONGRESS—HIS CHARACTER DESCRIBED BY LEWIS CASS, BY A. H. STEPHENS, AND JAMES GORDON BENNETT—THE ERA OF KNOW-NOTHINGISM—KELLY'S PART IN ITS OVERTHROW.

The future historian of the United States, when he comes to treat of that extraordinary movement in American politics called Know-Nothingism, will not do justice to the subject unless he assigns the post of honor in the work of its overthrow as a national organization to Stephens of Georgia, Wise of Virginia, and Kelly of New York. A glance at the great work accomplished by these three men is all that can be attempted in this memoir.

“True Americanism,” said Alexander H. Stephens in his memorable Anti-Know-Nothing contest in Georgia in 1855, “as I have learned it, is like true Christianity—disciples in neither are confined to any nation, clime or soil whatever. Americanism is not the product of the soil; it springs not from the land or the ground; it is not of the earth, or earthy; it emanates from the head and the heart; it looks upward, and onward and outward; its life and soul are those grand ideas of government which characterize our institutions, and distinguish us from all other people; and there are no two features in our system which so signally distinguish us from all other nations as *free toleration* of religion and the doctrine of *expatriation*—the right of a man to throw off his allegiance to any and every other State, prince or potentate whatsoever, and by *naturalization* to be incorporated as a citizen into our body politic. Both these principles are specially provided for and firmly established in our Constitution. But these American ideas which were proclaimed in 1789 by our ‘sires of ’76’ are by their ‘sons’ at this day derided and scoffed at. We are now told that ‘naturalization’ is a ‘humbug,’ and that it is an impossibility. So did not our fathers think. This ‘humbug’ and ‘impossibility’ they planted in the Constitution; and a vindication of the same principle was one of the causes of our second war of independence. Let no man, then, barely because he was born in America,

presume to be imbued with real and true ‘Americanism,’ who either ignores the direct and positive obligations of the Constitution, or ignores this, one of its most striking characteristics. An Irishman, a Frenchman, a German, or Russian, can be as thoroughly American as if he had been born within the walls of the old Independence Hall itself. Which was the ‘true American,’ Arnold or Hamilton? The one was a native, the other an adopted son.”^[6]

Mr. Stephens had declined to be a candidate for Congress in 1855, and the Know-Nothings taunted him with cowardice, because, they said, if he should run he knew he was doomed to defeat. His letter on Know-Nothingism to Judge Thomas, from which the preceding extract is quoted, was denounced furiously by the Know-Nothings, who loudly predicted that the letter would prove to be his political winding-sheet. These taunts were published throughout the country, and induced Mr. Stephens to change his mind, and re-enter the field as a candidate for the Thirty-fourth Congress. In a speech at Augusta, Georgia, in which he announced this purpose, he said: “I have heard that it has been said that I declined being a candidate, because a majority of the district were Know-Nothings, and I was afraid of being beaten. Now, to all men who entertain any such opinion of me, I wish to say that I was influenced by no such motive. I am afraid of nothing on earth, or above the earth, or under the earth, except to do wrong—the path of duty I shall ever endeavor to travel, ‘fearing no evil,’ and dreading no consequences. Let time-servers, and those whose whole object is to see and find out which way the popular current for the day and hour runs, that they may float upon it, fear or dread defeat if they please. I would rather be defeated in a good cause than to triumph in a bad one. I would not give a fig for a man who would shrink from the discharge of duty for fear of defeat. All is not gold that glitters, and there is no telling the pure from the base until it is submitted to the fiery ordeal of the crucible and the furnace. The best test of a man’s integrity and the soundness of his principles is the furnace of popular opinion, and the hotter the furnace the better the test. I have traveled from a distant part of the State, where I first heard these floating taunts of fear—as coming from this district—for the sole and express purpose of announcing to you, one and all, and in this most public way to announce to the other counties, without distinction of party, that I am again a candidate for Congress in this district. The announcement I now make. My name is hereby presented to the district; not by any convention under a majority or a two-third rule—but by myself.

“I know, fellow-citizens, that many of you differ with me upon those exciting questions which are now dividing—and most unhappily, too, as I conceive—dividing our people. It is easy to join the shouts of the multitude, but it is hard to say to a multitude that they are wrong. I would be willing to go into one of your Know-Nothing lodges or councils, where every man would be against me, if I could be admitted without first having to put myself under obligations never to tell what occurred therein, and there speak the same sentiments that I shall utter here this night. Bear with me, then, while I proceed.^[7] It is to exhibit and hold up even to yourselves the great evils and dangers to be apprehended from this ‘new,’ and, I think, most vicious political ‘monster,’ that I would address you; and against the influences of which I would warn and guard you, as well as the rest of our people. While the specious outside title of the party is that ‘Americans shall rule America,’ when we come to look at its secret objects as they leak out, we find that one of its main purposes is, not that ‘Americans shall rule America,’ but that those of a particular religious faith, though as good Americans as any others, shall be ruled by the rest.

“But it is said the ‘proscription’ is not against a religious but a political enemy, and the Roman Church is a political party, dangerous and powerful. Was a bolder assertion, without one fact to rest upon, ever attempted to be palmed off upon a confiding people? The Roman Church a political party! Where are its candidates? How many do they number in our State Legislatures or in Congress? What dangers are they threatening, or what have they ever plotted? Let them be named. Was it when Lord Baltimore, a Catholic, established the colony of Maryland, and for the first time on this continent established the principle of free toleration in religious worship? Was it when Charles Carroll, a Catholic, signed the Declaration of Independence? But it is said that great danger is to be apprehended from the Catholics because of a ‘secret order’ amongst them, known as Jesuits. ‘No one,’ says a Know-Nothing writer, ‘knows, or possibly can know, the extent of their influence in this country. One of them may eat at your table, instruct your children, and profess to be a good Protestant, and you never suspect him. Their great aim is to make their mark in America. Perjury to them is no sin, if the object of it be to spread Catholicism or acquire political influence in the country.’ Whether this be true of the Jesuits or not I cannot say. But I submit it to the consideration of candid minds how far it is true of the new order of Know-Nothings, which is now so strenuously endeavoring to make

its mark in America, and to gain political influence in the country, not only by putting down all foreigners, and all native-born citizens who may be of Catholic faith, but also all other native-born citizens who will not take upon their necks the yoke of their power. Do not hundreds and thousands of them go about daily and hourly, denying that they belong to the order, or that they know anything about it? May they not, and do they not ‘eat at your table,’ attend your sick, and some of them preach from your pulpits, and yet deny that they know anything about that ‘order’ which they are making such efforts to spread in the land? I do not say all of them do this; but is it not common with the ‘order,’ thus by some sort of equivocation and slippery construction, to mislead and deceive those with whom they converse? There is nothing worse that can be said of any man or any people indicating a destruction of morals or personal degradation, than that ‘the truth is not in him.’ It is the life and soul of all the virtues, human or divine. Tell me not that any party will effect reformation of any sort, bad as we now are in this land, which brings into disrepute this principle upon which rests all our hopes on earth, and all our hopes for immortality. And my opinion is that the Protestant ministers of the Gospel in this country, instead of joining in this New England, puritanical, proscriptive crusade against Catholics, could not render a better service to their churches, as well as the State, in the present condition of morals amongst us, than to appoint a day for everyone of them to preach to their respective congregations from this text, ‘What is truth?’ Let it also be a day set aside for fasting, humiliation and prayer—for repentance in sackcloth and ashes—on account of the alarming prevalence of the enormous sin of lying! Was there ever such a state of general distrust between man and man before? Could it ever have been said of a Georgia gentleman, until within a few months past, that he says so and so, but I don’t know whether to believe him or not? Is it not bringing Protestantism, and Christianity itself, into disgrace when such remarks are daily made, and not without just cause, about Church communicants of all our Protestant denominations—and by one church member even about his fellow-member? Where is this state of things to lead to, or end, but in general deception, hypocrisy, knavery, and universal treachery?

“Was ever such tyranny heard of in any old party in this country as that which this new ‘order’ sets up? Every one of them knows, and whether they deny it or not, there is a secret monitor within that tells them that they have pledged themselves never to vote for any Roman Catholic to any office of

profit or trust. They have thus pledged themselves to set up a religious test in qualifications for office against the express words of the Constitution of the United States. Their very organization is not only anti-American, anti-republican, but at war with the fundamental law of the Union, and, therefore, revolutionary in its character, thus silently and secretly to effect for all practical purposes a change in our form of government. And what is this but revolution? Not an open and manly rebellion, but a secret and covert attempt to undermine the very corner-stone of the temple of our liberties.

“Whenever any government denies to any class of its citizens an equal participation in the privileges, immunities, and honors enjoyed by all others, it parts with all just claim to their allegiance. Allegiance is due only so long as protection is extended; and protection necessarily implies an equality of right to stand or fall, according to merit, amongst all the members of society, or the citizens of the commonwealth. The best of men, after all, have enough of the old leaven of human nature left about them to fight when they feel aggrieved, outraged and trampled upon; and strange to say, where men get to fighting about religion they fight harder, and longer and more exterminatingly than upon any other subject. The history of the world teaches this. Already we see the spirit abroad which is to enkindle the fires and set the fagots a blazing—not by the Catholics, they are comparatively few and weak; their only safety is in the shield of the constitutional guarantee; minorities seldom assail majorities; and persecutions always begin with the larger numbers against the smaller. But this spirit is evinced by one of the numerous replies to my letter. The writer says: ‘We call upon the children of the Puritans of the North, and the Huguenots of the South, by the remembrance of the fires of Smithfield, and the bloody St. Bartholomew, to lay down for once all sectional difficulties,’ etc., and to join in this great American movement of proscribing Catholics. What is this but the tocsin of intestine strife? Why call up the remembrance of the fires of Smithfield but to whet the Protestant appetite for vengeance? Why stir up the quiet ashes of bloody St. Bartholomew, but for the hope, perhaps, of finding therein a slumbering spark from which new fires may be started? Why exhume the atrocities, cruelties, and barbarities of ages gone by from the repose in which they have been buried for hundreds of years, unless it be to reproduce the seed, and spread amongst us the same moral infection and loathsome contagion?—just as it is said the plague is sometimes

occasioned in London by disintombing and exposing to the atmosphere the latent virus of the fell disease still lingering in the dusty bones of those who died of it centuries ago. Fellow citizens, Fellow Protestants, Fellow Americans—all who reverence the constitution of your country—I entreat you, and I envoke you to give no listening ear to such fanatical appeals.

“When the principles of the Constitution are disregarded, when those ‘checks and restraints,’ put in it as Mr. Madison has told us, for ‘a defence to the people against their own temporary errors and delusions,’ are broken down and swept away, when the whole country shall have been brought under the influence of the third degree of this Know-Nothing order, if that time shall ever come, then, indeed may the days of this Republic, too, be considered as numbered.

“I wish to say something to you about this third degree, the union degree, as it is called. For under this specious title, name or guise, the arch-tempter again approaches us, quite as subtly as under the other of ‘Americans shall rule America.’ The obligation taken in this degree is ‘to uphold, maintain and defend’ the Union, without one word being said about the Constitution. Now, as much as we all, I trust, are devoted to the Union, who would have it without the Constitution? This is the life and soul of it—this is its animating spirit. It is this that gives it vitality, health, vigor, strength, growth, development and power. Without it the Union could never have been formed, and without it it cannot be maintained or held together. Where the animating principle of any living organism is extinguished, this is death, and dissolution is inevitable. You might just as well expect that the component parts of your bodies could be held together by some senseless incantations after the vital spark has departed, as that this Union can be held together by any Know-Nothing oaths when the Constitution is gone. Congress is to be done away with, except in so far as its members may be necessary, as the dumb instruments for registering the edicts of an invisible but all-powerful oligarchy. Our present Government is to be paralyzed by this boa-constrictor, which is now entwining its coils around it. It is to be supplanted and displaced by another self-constituted and secretly organized body to rise up in its stead, a political ‘monster,’ more terrible to contemplate than the seven-headed beast spoken of in the Apocalypse.

“I have seen it stated in the newspapers by some unknown writer, that my letter to Col. Thomas will be my political winding-sheet. If you and the

other voters of the Eighth Congressional District so will it, so let it be; there is but one other I should prefer—and that is the Constitution of my country; let me be first wrapped in this, and then covered over with that letter, and the principles I have announced this night; and thus shrouded I shall be content to be laid away, when the time comes, in my last resting-place without asking any other epitaph but the simple inscription carved upon the headstone that marks the spot—‘Here sleep the remains of one who dared to tell the people they were wrong when he believed so, and who never intentionally deceived a friend, or betrayed even an enemy.’”^[8]

Thus spoke Alexander H. Stephens, Georgia’s greatest statesman, of the pernicious tendencies of the Know-Nothing party. On that speech he ran for Congress and was elected by three thousand majority. Know-Nothingism was thus slain in Georgia. Since the death of Mr. Stephens some scribbler with a talent for forgery has taken the quotation marks from the paragraph about the Jesuits in the foregoing speech, affixed Mr. Stephens’s name to it, and sent it on its rounds through the press as the declared opinion of the dead statesman concerning the followers of Loyola. Mr. Stephens quoted the paragraph from a Know-Nothing writer, not to approve the attack on the Jesuits, but for the opposite purpose of showing it applied to the Know-Nothings themselves. No man in this country could use the weapon of retort with more effect than Alexander H. Stephens, and his remarks on the paragraph in question afford a favorable instance of his power in that line. That this stupid calumny on the great man who battled so nobly for the equal rights of Catholics and Protestants, Jews and Gentiles, foreign born and native Americans, should have been palmed off on the public, is less surprising than that it should have found its way into certain Catholic newspapers, in the columns of at least one of which the present writer read it shortly after the death of Mr. Stephens.

The ever memorable conflict in Virginia of 1855, between the Know-Nothings and Democrats, was led on the part of the latter by the gallant Henry A. Wise. That conflict was one of great national magnitude. If the Know-Nothings, theretofore victorious, had then succeeded, it is likely a civil war precipitated by religious fanaticism would have followed, not to be conducted between the States, as later unfortunately occurred, but between citizens of the same cities, and towns and neighborhoods throughout the Union, with a fury to make humanity shudder—in every

sense of the word a civil war. The Virginia election of that year was, therefore, watched with intense interest by the whole American people, and a feeling of feverish excitement was everywhere visible. Henry A. Wise, the uncompromising enemy of the Know-Nothings, was named as the Democratic candidate for Governor of Virginia. Never was such a canvass before. He went everywhere, pouring out fiery eloquence in the Western Mountains, in the Blue Ridge that milks the clouds, upon the Potomac, lovely River of Swans, on the Rappahannock, the Piankatank, Mob Jack Bay, James River, Elizabeth River, down to the North Carolina line; and wherever he went this second Patrick Henry stirred the people's hearts as they had not been stirred before. One of the best stump speeches ever heard in this country was made by Mr. Wise at Alexandria. He had declared hostility to the Know-Nothings in a letter to a citizen of Virginia, written September 18, 1854.

In that letter he said: "I am a native Virginian; my ancestors on both sides for two hundred years were citizens of this country and this State—half English, half Scotch. I am a Protestant by birth, by baptism, by intellectual belief, and by education and by adoption. I am an American, in every fibre and in every feeling an American; yet in every character, in every relation, in every sense, with all my head and all my heart, and all my might, I protest against this secret organization of native Americans and of Protestants to proscribe Roman Catholic and naturalized citizens. As early as 1787 we established a great land ordinance, the most perfect system of eminent domain, of proprietary titles, and of territorial settlements, which the world had ever beheld to bless the homeless children of men. It had the very house-warming of hospitality in it. It wielded the logwood axe, and cleared a continent of forests. It made an exodus in the old world, and dotted the new with log-cabins, around the hearths of which the tears of the aged and the oppressed were wiped away, and cherub children were born to liberty, and sang its songs, and have grown up in its strength and might and majesty. It brought together foreigners of every country and clime—immigrants from Europe of every language and religion, and its most wonderful effect has been to assimilate all races. Irish and German, English and French, Scotch and Spaniard, have met on the Western prairies, in the Western woods, and have peopled villages and towns and cities—queen cities, rivalling the marts of Eastern commerce; and the Teutonic and Celtic and Anglo-Saxon races have in a day mingled into one undistinguishable

mass—and that one is American. The children of all are crossed in blood in the first generation, so that ethnology can't tell of what parentage they are—they all become brother and sister Jonathans. As in the colonies, as in the revolution, as in the last war, so have foreigners and immigrants of every religion and tongue contributed to build up the temple of American law and liberty until its spire reaches to heaven, whilst its shadow rests on earth. If there has been a turnpike road to be beaten out of the rocky metal, or a canal to be dug, foreigners and immigrants have been armed with the mattock and the spade and if a battle on sea and land had to be fought, foreigners and immigrants have been armed with the musket and the blade.

“We can name the very hour of our birth as a people. We need recur to no fable of a wolf to whelp us into existence. As a nation we are but seventy-eight years of age. Many persons are now living who were alive before this nation was born. And the ancestors of this people about two centuries only ago were foreigners, every one of them coming to the shores of this country to take it away from the aborigines, and to take possession of it by authority either directly or derivatively of Papal Power. His Holiness the Pope was the great grantor of all the new countries of North America. Foreigners in the name of the Pope and Mother Church took possession of North America, to have and to hold the same to their heirs against the heathen forever. And now already their descendants are for excluding foreigners, and the Pope's followers from an equal enjoyment of this same possession. So strange is human history. Christopher Columbus! Ferdinand and Isabella! What would they have thought of this had they foreseen it when they touched a continent and called it theirs in the name of the Holy Trinity, by authority of the keeper of the keys of Heaven, and of the great grantor of the empire and domain of earth? What would have become of our national titles to northeastern and northwestern boundaries, but for the plea of this authority, valid of old among all Christian powers?”

Writing thus in September, 1854, Mr. Wise, although he had been a Whig years before, was nominated for Governor by the Democrats in December of the same year. In his famous Alexandria speech, before discussing Know-Nothingism, he told the people some practical truths explanatory of the decadence of the prosperity of Virginia, of the causes producing it, and the remedies to be applied. “You have,” he said, “the bowels of your Western mountains rich in iron, in copper, in coal, in salt, in gypsum, and

the very earth is so rich in oil that it sets the rivers in flame. You have the line of the Alleghany, that beautiful Blue Ridge which stands placed there by the Almighty, not to obstruct the way of the people to market, but placed there in the very bounty of Providence to milk the clouds, to make the sweet springs which are the sources of your rivers. And at the head of every stream is the waterfall murmuring the very music of your power to put spindles in motion. And yet commerce has long ago spread her sails and sailed away from you; you have not as yet dug more than coal enough to warm yourselves at your own hearths; you have set no tilt-hammer of Vulcan to strike blows worthy of gods in the iron foundries. You have not yet spun more than coarse cotton enough, in the way of manufacture, to clothe your own slaves. You have had no commerce, no mining, no manufactures. You have relied alone on the single power of agriculture; and such agriculture! Your sedge patches outshine the sun. Your inattention to your only source of wealth has scarred the very bosom of mother earth. Instead of having to feed cattle on a thousand hills, you have had to chase the stump-tailed steer through the sedge patches to procure a tough beef-steak. You are in the habit of discussing Federal politics; and permit me to say to you, very honestly and very openly, that next to brandy, next to card playing, next to horse-racing, the thing that has done more harm to Virginia than any other in the course of her past history, has been her insatiable appetite for Federal politics. She has given all her great men to the Union. Her Washington, her Jefferson, her Madison, her Marshall, her galaxy of great men she has given to the Union. Richmond, instead of attending to Richmond's business, has been too much in the habit of attending to the affairs of Washington city, when there are plenty there, God knows, to attend to them themselves. * * "Puritanism," said Mr. Wise, has disappeared, and we have in place of it Unitarianism, Universalism, Fourierism, Millerism, Mormonism—all the odds and ends of isms—until at last you have a grand fusion of all those odds and ends of isms in the *omnium gatherum* of isms called Know-Nothingism. Having swept the North, the question was: How can this ism be wedged in in the South? And the devil was at the elbow of these preachers of 'Christian politics' to tell them precisely how." [At this point Mr. Wise was interrupted by cat-calls, derisive cheers and other manifestations of the Know-Nothing element of the meeting.] "There were three elements in the South," continued the speaker, "and in Virginia particularly, to which they might apply

themselves. There is the religious element, the 103,000 Presbyterians, the 300,000 Baptists, the 300,000 Methodists of Virginia. Well, how were they to reach them? Why, just by raising a hell of a fuss about the Pope!

“Cæsar’s kingdom is political, is a carnal kingdom. And I tell you that if I stood alone in the State of Virginia, and if priestcraft—if the priests of my own Mother Church dared to lay their hands on the political power of our people, or to use their churches to wield political influence, I would stand, in feeble imitation it may be, but I would stand, even if I stood alone, as Patrick Henry stood in the Revolution, between the parsons and the people. These men, many of whom are neither Episcopalians, Presbyterians, Baptists, Methodists, Congregationalists, Lutherans, nor what not—who are men of no religion, who have no church, who do not say their prayers, who do not read their Bible, who live God-defying lives every day of their existence, are now seen with faces as long as their dark-lanterns, with the whites of their eyes turned up in holy fear lest the Bible should be shut up by the Pope! You tell the people that Catholics never gave aid to civil liberty; that they never yet struck a blow for the freedom of mankind. Who gave you alliance against the crown of England? Who but that Catholic king, Louis XVI. He sent you from the Court of Versailles Lafayette, the boy of Washington’s camp, a foreigner who never was naturalized, but who bled at the redoubt of Yorktown, when Arnold, a native, like Absalom proved traitor.

“And, Sir, before George Washington was born, before Lafayette wielded the sword, or Charles Carroll the pen for his country, six hundred and forty years ago, on the 16th of June, 1214, there was another scene enacted on the face of the globe, when the general charter of all charters of freedom was gained, when one man, a man called Stephen Langton, swore the Barons of England for the people against the power of the King—swore the Barons on the high altar of the Catholic Church at St. Edmundsbury, that they would have Magna Charta or die for it. The charter which secures to every one of you to-day trial by jury, freedom of the press, freedom of the pen, the confronting of witnesses with the accused, and the opening of secret dungeons—that charter was obtained by Stephen Langton against the King of England, and if you Know-Nothings don’t know who Stephen Langton was, you know nothing sure enough. He was a Catholic Archbishop of Canterbury. I come here not to praise the Catholics, but I come here to

acknowledge historical truths, and to ask of Protestants—what has heretofore been the pride and boast of Protestants—tolerance of opinion in religious faith.

“All that I have to say to the Democracy is that you want active, earnest organization. Remember that if these Know-Nothings hold together they are sworn compact committees of vigilance. Go to work then. Organize actively everywhere. Appoint your vigilance committees, but take especial care that no Know-Nothings are secretly and unknown to you upon them. Be prepared. I have gone through most of Eastern Virginia, and in spite of their vaunting I defy them to defeat me. There are Indians in the bushes, but I’ll whack on the bayonet, and lunge at every shrub in the State till I drive them out. I tell them distinctly there shall be no compromise, no parley. I will come to no terms. They shall either crush me, or I will crush them in this State.”

Mr. Wise, though his health was impaired, conducted his campaign with extraordinary energy, travelling about 3000 miles, to every point in the State, and speaking fifty times before the election. He was triumphantly elected Governor of Virginia, receiving upwards of ten thousand majority over his Know-Nothing competitor. The impartial verdict of history is that Henry A. Wise did more to kill the Know-Nothing party than any other man in the United States.

Many Know-Nothings were elected to Congress from the Northern States, and a few from the Southern States. In the Senate and House of Representatives there were seventy-eight members of that party in 1855. Conspicuous among them all, on account of his prejudices no less than his ability, was Henry Winter Davis, a member of the Thirty-fourth and Thirty-fifth Congresses from Baltimore.

The celebrated controversy upon the floor of Congress between Davis and John Kelly on the Know-Nothing question entitles the Know-Nothing leader to some notice here.

Henry Winter Davis was born at Annapolis, Maryland, August 16, 1817, and received his education at Kenyon College, Ohio, where he was graduated in 1837. His father was an Episcopalian minister. Young Davis was sent to the University of Virginia in 1839 by his aunt, a Miss Winter of Alexandria, Virginia, and entered upon his preparatory legal studies at that

institution. He afterwards opened a law office at Alexandria, where he struggled with poverty for some years, making but little mark in that community, save as an occasional contributor of political essays to the *Alexandria Gazette*, but applying himself closely to his studies, and becoming an able lawyer. Reverdy Johnson recognized his talents and advised him to remove to Baltimore, where he would find a wider field for their display. Mr. Davis acted on this advice, and made Baltimore his home. He had married a Miss Cazenove of Alexandria, who soon died, and subsequently he married a daughter of John S. Morris, a wealthy and prominent citizen of Baltimore. Mr. Morris opposed the marriage on account of Davis's peculiar political views.

Henry Winter Davis was a man of genius, with a natural bent for an opposition leader. In person he was handsome, in manners haughty and reserved, in demeanor elegant; and he possessed the gift of a fine oratory, both logical and persuasive. A morose temper and a cynical and cold nature served to heighten the picturesque effect of his character, and to make him delight in fomenting discord and violence. "The ignorant Dutch and infuriated Irish, let them beware lest they press the bosses of the buckler too far," is said to have been a form of expression he applied to Germans and Irishmen in the course of one of his invectives on the stump in Baltimore. He soon became an acknowledged leader of the Know-Nothings, and no man knew better how to fire the rage and incite to acts of bloodshed the Plug Uglies of that city. Had Davis lived during the era of the Alien and Sedition Laws, his genius probably would have placed him at the head of that conspiracy, and his name would have become famous in history. He was a contemner of the sanctions of authority. The sacredness of institutions handed down from generation to generation unimpaired by the ravages of time, awakened no sense of reverence in the mind of this iconoclast. Burke's beautiful allusion to the bulwarks of civil society which have been stamped with the "mysterious virtue of wax and parchment," must have appeared to him only as a figure of rhetoric or a ridiculous fetich. How contemptuously he regarded the warning of Washington to his countrymen in the Farewell Address against entangling alliances with the nations of Europe is discovered in the following passage, found at page 367, of a book written by Mr. Davis, called "The War of Ormuzd and Ahriman in the Nineteenth Century."

“They who stand with their backs to the future and their faces to the past, wise only after the event, and refusing to believe in dangers they have not felt, clamorously invoke the name of Washington in their protest against interference in the concerns of Europe. With such it is useless to argue till they learn the meaning of the language they repeat.”

With many similar sophistries he declared it would be wise policy on the part of the United States to take part in European controversies, and pretended to find warrant in the Monroe doctrine for this radical reversal of Washington’s maxim. But that Davis was a demagogue in the offensive sense of the word is evident from the fact that the very advice of General Washington against foreign influence, which he scouted at in his book, was soon after relied upon by the same Davis as his chief argument in Congress for the exclusion of foreigners from the rights and privileges of citizenship. In the course of a Know-Nothing speech, delivered in the House of Representatives, January 6th, 1857, he said: “Foreign allies have decided the government of the country. * * * * Awake the national spirit to the danger and degradation of having the balance of power held by foreigners. Recall the warnings of Washington against foreign influence, here in our midst, wielding part of our sovereignty; and with these sound words of wisdom let us recall the people from paths of strife and error to guard their peace and power.” The insincerity of Davis is further shown from his conduct in regard to the Republican party. He denounced that party in the speech above quoted from, saying, among other things, “the Republican party has nothing to do and can do nothing. It has no future. Why cumbers it the ground?” In the course of a few years he became a Republican, and notwithstanding his former denunciation of them, swallowing at a single breath the most ultra tenets of that party. Consistent only in his inconsistencies, he again prepared to bolt from the Republican organization shortly before his death, and was the author of the celebrated Wade-Davis Manifesto in 1864, against the renomination of Abraham Lincoln. Once having been invited by a literary society of the University of Virginia to deliver the annual address before that body, he took up some eccentric line of political conduct before the commencement day occurred, and compelled the society in self-respect to revoke its invitation. He affected the Byronic manner, and the contagion spread to other members of Congress. Roscoe Conkling, after he entered the House of Representatives, is said to have become a great admirer of Henry Winter Davis, and to have fallen into his

peculiarities of style as a public speaker. Mr. Conkling's famous parliamentary quarrel with Mr. Blaine soon after occurred.

Such was the man the Know-Nothings recognized as their leader in the House of Representatives when John Kelly entered that body. In the early part of 1857 Mr. Kelly replied to a sneering assault of Mr. Davis on the Irish Brigade, and in the debate which followed not only proved himself able to cope with the Know-Nothing leader, but in a running debate with Mr. Kennett of Missouri, Mr. Akers of the same State, and Mr. Campbell of Ohio, who entered the lists against him, Kelly established his reputation as one of the best off-hand debaters in Congress.

A few extracts from the speeches on the occasion, which are taken from the *Congressional Globe*, will furnish an idea of the style of the speakers, and the merits of the controversy. In referring to the Presidential election of 1856, and the victory of the Democrats, Mr. Davis said: "The Irish Brigade stood firm and saved the Democrats from annihilation, and the foreign recruits in Pennsylvania turned the fate of the day. They have elected, by these foreigners, by a minority of the American people, a President to represent their divisions. The first levee of President Buchanan will be a curious scene. He is a quiet, simple, fair-spoken gentleman, versed in the by-paths and indirect crooked ways whereby he met this crown, and he will soon know how uneasy it sits upon his head. Some future Walpole may detail the curious greetings, the unexpected meetings, the cross purposes and shocked prejudices of the gentlemen who cross that threshold. Some honest Democrat from the South will thank God for the Union preserved. A gentleman of the disunionist school will congratulate the President on the defeat of Mr. Fillmore. The Northern gentlemen will whisper 'Buchanan, Breckenridge and Free Kansas' in the presidential ear, and beg without scandal the confirmation of their hopes. * * But how to divide the spoils among this motley crew—ah! there's the rub. Sir, I envy not the nice and delicate scales which must distribute the patronage amid the jarring elements of that conglomerate, as fierce against each other as clubs in cards are against spades. * * The clamors of the foreign legion will add to the interest of the scene. They may not be disregarded, for but for them Pennsylvania was lost, and with it the day. Yet what will satisfy these indispensable allies, now conscious of their power? That, Sir, is the exact condition of things which will be found in the ante-chamber—exorbitant

demands, limited means, irreconcilable divisions, strife, disunion, dissolution—whenever the President shall have taken the solemn oath of office and darkened the doors of the White House.

“The recent election has developed in an aggravated form every evil against which the American party protested. Foreign allies have decided the government of the country—men naturalized in thousands on the eve of the election. Again in the fierce struggle for supremacy, men have forgotten the ban which the Republic puts on the intrusion of religious influence on the political arena. These influences have brought vast multitudes of foreign born citizens to the polls, ignorant of American interests, without American feelings, influenced by foreign sympathies, to vote on American affairs; and those votes have, in point of fact, accomplished the present result.”

Mr. Kelly replied to the Know-Nothing leader. He said: “I rise for the purpose of submitting as briefly as I can a few remarks in reply to the very extraordinary speech of the honorable member from Baltimore city. In the great abundance of his zeal to assail the President of the United States, the gentlemen from Baltimore could not permit so good an occasion to pass without hurling his pointless invectives against my constituents, in terms and temper which demand a reply. * * * His ambition seems restless and insatiable, for he cannot conclude his speech without trying a bout with what he denominates the ‘Irish Brigade.’ What particular class of our fellow-citizens this fling was aimed at, I am at a loss to conjecture. There is a body known to history under that appellation—a body of historical reputation, whose deeds of bravery on every battle-field of Europe have long formed the glowing theme for the poet’s genius and the sculptor’s art. But, sir, they were too pure to be reached by the gentleman’s sarcasm—too patriotic to be measured by his well conned calculation of the ‘loaves and fishes’ which have unfortunately slipped through his fingers—too brave to be terrified by the menaces or insults of those who would justify brutal murder—the murder of defenceless women and helpless children—the sacking of dwellings and the burning of churches, under the insolent plea of ‘summary punishment.’ Sir, the Irish Brigade of history was composed of patriots whom oppression in the land of their birth had driven to foreign countries, to carve out a home and a name by their valor and their swords. The brightest page of the history of France is that which records the deeds and the names of the ‘Irish Brigade.’ France, however, was not the only

country in which the Irish Brigade signalized its devotion to liberty, and its bravery in achieving it. Sir, the father of your own navy was one of that glorious band of heroes who shed lustre on the land of their birth, while they poured out their life-blood for the country of their adoption. John Barry was a member of the Irish Brigade in America—he, who when tempted by Lord Howe with gold to his heart's content, and the command of a line-of-battle-ship, spurned the offer with these noble words: 'I have devoted myself to the cause of my adopted country, and not the value or command of the whole British fleet could seduce me from it.' He, who when hailed by the British frigates in the West Indies and asked the usual questions as to the ship and captain, answered: 'The United States ship Alliance, saucy Jack Barry, half-Irishman, half-Yankee. Who are you?' Sir, saucy Jack Barry, as he styled himself, was the first American officer that ever hoisted the Stars and Stripes of our country on board a vessel of war. So soon as the flag of the Union was agreed on, it floated from the mast-head of the Lexington, Captain John Barry. But Captain John Barry was not the only member of the 'Irish Brigade' whose name comes down to us with the story of the privations and bravery of our revolutionary struggle. Colonel John Fitzgerald was also a member of that immortal band. Of this member of the 'Irish Brigade' I will let the still living member of Washington's own household, the eloquent and venerable Custis speak:

“‘Col. Fitzgerald,’ says G. W. P. Custis in his memoirs of Revolutionary Heroes, ‘was an Irish officer in the Blue and Buffs, the first volunteer company raised in the South, in the dawn of the Revolution, and commanded by Washington. In the campaign of 1778 and retreat through the Jerseys, Fitzgerald was appointed aid-de-camp to Washington. At the battle of Princeton occurred that touching scene, consecrated by history to everlasting remembrance. The American troops, worn down by hardships, exhausting marches and want of food, on the fall of their leader, that brave old Scotchman, General Mercer, recoiled before the bayonets of the veteran foe. Washington spurred his horse into the interval between the hostile lines, reigning up with the charger's head to the foe, and calling to his soldiers, ‘Will you give up your General to the enemy?’ The appeal was not made in vain. The Americans faced about and the arms were leveled on both side—Washington between them—even as though he had been placed as a target for both. It was at this moment Colonel Fitzgerald returned from conveying an order to the rear—and here let us use the gallant veteran's own words.

He said: ‘On my return, I perceived the General immediately between our line and that of the enemy, both lines leveling for the decisive fire that was to decide the fortunes of the day. Instantly there was a roar of musketry followed by a shout. It was the shout of victory. On raising my eyes I discovered the enemy broken and flying, while dimly, amid the glimpses of the smoke, was seen Washington alive and unharmed, waving his hat and cheering his comrades to the pursuit. I dashed my rowels into my charger’s flanks and flew to his side, exclaiming, ‘Thank God, your Excellency’s safe.’ I wept like a child for joy.’”

“This is what history tells us of another member of the ‘Irish Brigade.’ Now, Sir, if the gentleman from Maryland will only suppress his horror, and listen with patience, I will tell him what tradition adds concerning this brave aid-de-camp of Washington—this bold and intrepid Irishman. After peace was proclaimed and our independence achieved—after the Constitution had been put in operation, and Washington filled the office of chief-magistrate of the nation—he sent for his old companion in arms, then living in Washington’s own county of Fairfax, and invited him to accept the lucrative office of collector of the customs for the port of Alexandria. This tradition will be found to correspond with the records of the Treasury Department, on which may be read the entry that Colonel John Fitzgerald was appointed collector of the customs at Alexandria, Virginia, by George Washington, President of the United States, April 12, 1792. Thus we find that the Father of his country, were he now living, would come under the denunciations of the gentleman from Maryland, and his Know-Nothing associates, for conferring office on one of the ‘Irish Brigade.’

“The gentleman from Baltimore city professes great devotion to the memory and fame of the illustrious Clay. He was the gentleman’s oracle while living. Hear his eloquent voice coming up to us as if from his honored grave. He, too, is speaking of the ‘Irish Brigade,’ and in his warm, honest and manly soul the only words which he can find sufficiently ardent to express his feelings are ‘bone of our bone, and flesh of our flesh.’ ‘That Ireland,’ exclaims the orator of America in a speech delivered as late as 1847, ‘which has been in all the vicissitudes of our national existence our friend, and has ever extended to us her warmest sympathy—those Irishmen who in every war in which we have been engaged, on every battle-field from Quebec to Monterey, have stood by us shoulder to shoulder and shared

in all the perils and fortunes of the conflict.' If anything, Mr. Chairman, were wanting after this to ennoble the 'Irish Brigade,' and give it its proper and constitutional position in the family of American freemen, it is the obloquy of His Excellency Henry J. Gardner of Massachusetts, and the Hon. Henry Winter Davis, of Baltimore.

"I now propose, Mr. Chairman, to address myself for a few moments to the honorable gentleman from Missouri (Mr. Akers), who is, I learn, a minister of the gospel. While his friend from Baltimore city exhausts all his powers upon the 'Irish Brigade,' he, with an equal stretch of fancy, but a much vaster stride over space, obtrudes himself at a bound into the cabins of the Irish peasantry, far away across the Atlantic. Hailing from a State first settled by Catholics, whose chief city was named by its pious founders after the sainted crusader King of France, the gentleman from Missouri calls on you to hear the Irish priest beyond the Atlantic holding converse with his enslaved parishioners. Mr. Chairman, from boyhood to manhood, I have known more priests of native and foreign birth than Mr. Akers ever saw. I have seen them at the cradle of infancy; I have been with them at the death-bed of old age; but, sir, my ears are only those of a man; I never heard a word of the speeches the gentleman from Missouri puts into their lips. Is it not known, sir, to every candid and impartial traveler who has visited that beautiful but ill-fated Island that the only true, devoted, loyal, self-sacrificing friend that the Irish peasant has in the land of his birth is the Catholic priest? He stands between him and the oppression of his haughty, blood-stained rulers; and when he cannot ameliorate his condition he bears on his own shoulders his full share of the burden. In suffering and misfortune he administers to him the consolations of his religion and the counsel of a friend; he sympathizes with him in all his trials, and when the minister of a strange faith, armed with all the terrors of the law, sends his bailiffs and his minions to seize the very bed on which his sick wife is preparing to meet the God of her fathers—when under the maddening spectacle a momentary burning for revenge perhaps seizes upon his agonized soul—the priest is by his side whispering in his ear 'Vengeance is mine, saith the Lord'; takes him by the hand, provides with his last penny for the safe removal of the sick and the helpless, and leaves them not until the hour of their trial is passed—a trial that will continue to harrass and oppress the Irish Catholic so long as the national Church of England

prolongs a life of debauchery and vice on the plunder and pillage of the Irish peasant.”

Mr. Kelly made a deep impression on the House. The Know-Nothing members held a consultation while he was speaking, and decided that he must be interrupted and overcome if possible by a running fire of cross-questions. Luther M. Kennett of Missouri, formerly Mayor of St. Louis, and Lewis D. Campbell of Ohio, Chairman of the Committee of Ways and Means, were selected to open fire upon him. Mr. Kennett began by saying, “Will the gentleman from New York allow me to interrupt him for a moment?”

Mr. Kelly: “Certainly, sir.”

Mr. Kennett: “I see, Mr. Chairman, that my colleague to whom the gentleman refers, is not in his seat. I will, therefore, with his permission, say that I think he has unintentionally misinterpreted my colleague’s remarks. The inference which I drew from the argument of my colleague on this floor was that he was opposed to the consolidation of political and religious questions and to the proscribing of any man on account of his religious belief—and such are the principles and policy of the American Party. My colleague said further that the American Party was the first party that ever introduced that principle in their political platform.”

Mr. Kelly: “I must insist, Mr. Chairman, with all deference to the gentleman from Missouri, that I have not misunderstood the remarks of his colleague. I listened to his speech, as I have already said, with attention, and read it very carefully as it is printed in the *Globe*, and as it now appears in that paper to speak for itself. While I admit an apparent effort on the part of the gentleman from Missouri to *look* liberal, I must be permitted to remark that he seems no way solicitous to *talk* liberal, and an unbiased perusal of the gross libel which he has published in the *Globe* concerning the Irish Catholic priesthood will lead his colleague, however reluctantly, to the same conclusion. But the gentleman only acts out the principles and ritual of the midnight order, which conceals all it can, and denies everything.”

Mr. Kennett: “I will answer the gentleman more fully in my own speech, and will here state that I am ready to answer any question he may propound.”

Mr. Kelly: "Then I ask the gentleman did he or does he now give his adhesion to the platform of principles adopted by the American Party in Philadelphia in February, 1856? If so, does not the gentleman by his own showing concur in the principle of proscribing Catholics because of their religious belief? I allude to the fifth article of the American platform."

Mr. Kennett: "I will answer the gentlemen by referring him to the platform laid down by the American Party of my State which proscribes no man because of his religious belief. And now let me further say that the gentleman is in error when he asserts that this debate was commenced by my colleague. It was introduced by Mr. Bowie of Maryland, in his animadversions upon his colleague, Mr. Davis."

Mr. Kelly: "The gentleman certainly is in error, for Mr. Davis himself in his wild foray against the 'Foreign Brigade,' unnecessarily and unfoundedly attributed the defeat of his party in the last election to the 'religious influences' which brought so many alien citizens to the polls. The gentleman has not, however, yet answered my question."

Mr. Kennett: "I am sorry I cannot suit the gentleman in my reply. He says the Democratic party are a unit, that they everywhere fully endorsed the Kansas-Nebraska bill; I say they nevertheless claim the largest liberty in its construction, and that construction is notoriously different in different sections of the Union among brethren of the same political faith. Now, the American party also needed a platform for the Presidential canvass, and that of February last was put forth for that purpose. If it was not perfect, it was the best we could get, and we had to take it, those of us that it did not precisely suit, with the mercantile reservation, 'Errors excepted.' Was your President, the present occupant of the White House, elected by a majority of American-born citizens? On the contrary, without the foreign vote, which was cast for him almost unanimously, he never would have been elevated to the position he now occupies."

Mr. Kelly: "Suppose he was not elected by American-born votes (which was very likely the case), were not the principles advocated by the party which elected Mr. Pierce national principles, without the benefit too of 'Errors excepted'? Was there anything in the platform laid down at Baltimore by the convention which nominated him violative of the spirit or letter of the Constitution of the United States?"

Mr. Kennett: "I have not charged the contrary to be so. My point is that the foreign-born vote holds the balance of power in our country, that that vote is almost always on the Democratic side, and thus it shapes the policy and action of the Government. This I consider wrong."

Mr. Kelly: "I will say to the gentleman that the illiberal and narrow policy parties have pursued in this country has contributed much to drive both native and foreign-born Catholics in self-defense into the Democratic party. That this is true is proved by the fact which you know full well, Mr. Chairman [Mr. Humphrey Marshall], that the large Catholic vote of Kentucky and Maryland had always been found with the Whig party, until the Know-Nothing monster and its protean brood of platforms drove them in self-respect as well as in self-defence into the ranks of the national Democracy, where they have found repose and peace under the broad shadows of the Constitution. I will add further, that with the exception of two terms the administration of this Government has been in the hands of the Democratic party. It appears to me, therefore, that the fact that the foreign-born population, in the exercise of the elective franchise being always found on the side of the dominant party, is rather doubtful evidence that they are not as loyal to the country as any other class of voters. The high state of prosperity which the country has attained under Democratic rule would, I should think, lead to quite a different conclusion."

Mr. Kennett: "The Democratic party have been sharper and more successful hitherto in bidding for their votes than we. Not that we would not have won them too, had it been in our power. Office-seekers are all in love with German honesty and the 'sweet Irish brogue.'"

Mr. Campbell, of Ohio: "I have no desire to interrupt the gentleman from Missouri, or to interfere with the very interesting colloquy between him and the gentleman from New York. I have had something to do with this matter of Americanism myself; something to do with the tariff, and, like the gentleman from Missouri, I have been a Whig. I think the greatest statesman of America was stricken down by a religious influence."

Mr. Kelly: "To whom does the gentleman refer?"

Mr. Campbell: "I refer to Mr. Clay of Kentucky. I well remember when he was last a candidate—in 1844—that there was an individual on the ticket with him—a distinguished gentleman, Theodore Frelinghuysen and I know

of my own personal knowledge that a priest of the Catholic Church said that because Theodore Frelinghuysen was placed on the ticket for Vice-President, therefore the influence of the Catholic Church of the United States would be exercised against the ticket.”

Mr. Kelly: “Supposing this to be so, does the gentleman mean to argue that because an individual Catholic priest used such a remark it is sufficient ground upon which to condemn and disfranchise the four millions of Catholics in this country?”

Mr. Campbell: “No, sir, by no means; nor would I interfere with their religion, even though it was true that they had done so. The point I make is this: That because Theodore Frelinghuysen was nominated on the ticket with Henry Clay, who was recognized as one of the greatest statesmen of his age, the influence of the Catholic Church—I mean especially that of the foreign Catholic Church, I do not include the American Catholic Church—was brought to bear against him; and wherever you find a foreign Catholic vote in referring to the election of 1844 you will find, particularly in your large cities where the power was wielded, that the power was exercised for the prostration of Harry of the West, for the reason, as admitted to me in person by a priest of your church, that Theodore Frelinghuysen was a leading Presbyterian and President of the American Protestant Bible Society; and it is against that spirit on the part of foreign Catholic influence in this country, which has sought to control, through the power of its Church, the destinies of this great nation that I make war.”

Mr. Kelly: “Allow me to say that I am a native-born citizen of Irish parents; and I wish to say to this House, and to the country, that no such feelings actuate the Catholic Christians of this Republic. There may be individual cases, but I deny that such influences have anything to do with the Catholic population. And Mr. Clay himself, in writing a letter on this very subject in the canvass referred to, made a public acknowledgement that he had as much confidence in the Catholic people as he had in any other religious sect in this Union. That letter was published in a speech which I made in this House last session, and the gentleman from Ohio can find it in the records of the House. To convict the gentleman from Ohio, however, of misrepresenting Harry of the West in this matter, I will again quote the same extract from the letter referred to:

“Nor is my satisfaction diminished by the fact that we happen to be of different creeds; for I never have believed that that of the Catholic was anti-American and hostile to civil liberty. On the contrary, I have with great pleasure and with sincere conviction, on several public occasions, borne testimony to my perfect persuasion that Catholics were as much devoted to civil liberty, and as much animated by patriotism as those who belong to the Protestant creed.’”

“I have already quoted from Mr. Clay’s speech delivered in 1847, four years afterwards, enough to show that his views and sentiments in reference to foreign-born voters and religious creeds underwent no change. But it was ever Mr. Clay’s misfortune to be damaged by his friends. We have proof this evening that the fatality follows him to the grave.”

In this debate, Mr. Kelly, who was the only Catholic in Congress, sustained the concentrated charge of the leading Know-Nothing members, and in the estimation of the House had the best of the argument over them all. His speech was published and read throughout all parts of the Union, and was received with manifestations of approval and pride by Democrats generally, but especially by Catholics and adopted citizens.

In the celebrated Hayne-Webster debate in the Senate of the United States on the Foot Resolution in 1830, Andrew Jackson, then President, was so much pleased with Col. Hayne’s speech that he caused a number of copies to be struck off on satin, and placed one of them on the walls of his library in the White House.^[9] The speech of John Kelly, from which the preceding extracts are taken, was also published on satin, and is still preserved in many households throughout the country as a souvenir of the dark days of Know-Nothingism, and of the gallant stand that was made in the House of Representatives against the proscriptionists by the future leader of the New York Democracy.

During another debate in Congress—that of May 5, 1858—on the bill for the admission of Minnesota into the Union, introduced by Alexander H. Stephens, Chairman of the Committee on Territories, Henry Winter Davis again attacked those he called “unnaturalized foreigners;” and Mr. John Sherman, then a member of the House, and at present a Senator from Ohio, and a recent aspirant for the Presidency, declared that “Ohio never did allow unnaturalized foreigners to vote, and never will.” Mr. Muscoe R. H.

Garnett, of Virginia, made a fierce attack on the same class, designating them as the “outpourings of every foreign hive that cannot support its own citizens.” When these tirades were made, Mr. Kelly rose to address the House in reply, but so bitter was the native American feeling on the subject, and especially since his refutation of the sectarian and anti-foreign speech of Davis in the preceding year, that John Sherman resorted to every parliamentary quibble to cut off Kelly’s speech. “Gentlemen here,” Mr. Kelly said, “directed many of their arguments against emigration and against the naturalization of foreigners. I intend to confine my remarks to that particular branch of the subject.” At this point Mr. Sherman objected.

Mr. Sherman, of Ohio: “I rise to a question of order. The rule requires that the debate shall be pertinent to the question before the House. If the gentleman desires to make a speech upon the benefits of emigration I hope he will make it in Committee of the Whole. Such debate is not in order here.”

Mr. Kelly: “What I shall say will be pertinent to the issue before the House.”

Mr. Sherman: “I insist on my question of order. I would inquire whether the subject of emigration, which is manifestly the question which the gentleman intends to discuss, is debatable on this bill? I do not wish to embarrass the gentleman, but desire, if he wants to debate that subject, that he shall do it in the Committee of the Whole on the state of the Union.” This objection by Mr. Sherman to Mr. Kelly’s continuing the discussion which he himself had just been indulging in, shows that Kelly’s method of handling the subject was not relished by the proscriptionists. Elihu B. Washburn, of Illinois, afterwards Minister to France, here interposed in favor of fair play.

Mr. Washburn: “I hope by unanimous consent the gentleman from New York will be permitted to continue his speech. He is upon the floor now, and the matter of naturalization is involved more or less in the merits of the question before the House.” But Mr. Sherman was ready with another quibble.

Mr. Sherman: “If unanimous consent be given, I am willing to go into Committee of the Whole on the state of the Union and allow the gentleman to speak, but I must object to it in the House.”

Mr. Wright, of Georgia: "I would remark that the gentleman from Virginia (Mr. Jenkins) introduced this particular subject yesterday, and occupied twenty-five minutes in its discussion."

Mr. Kelly: "It is singular that gentlemen should make objection, when it is a well-known fact that the whole discussion on this bill has directed itself to that particular point. But I think there is a disposition on the part of the House to let me go on."

Several Members: "There is; go ahead."

The Speaker: "Does the Chair understand that unanimous consent is given to the gentleman's proceeding?"

Mr. Lovejoy: "Not unless he is in order."

Mr. Morris, of Pennsylvania: "I object; because if the gentleman is allowed to proceed, other gentlemen must be allowed to speak in reply, and thus we would have a general debate in violation of the rules of the House, and I will not agree to violating the rules of the House."

Mr. Kelly: "Inasmuch as there are objections I withdraw my appeal. I do not desire to force myself upon the House."

Thus did the Know-Nothings wince under the lash of John Kelly of New York. Had he chosen to insist, he would have been heard, for he was now one of the leaders of the House, and the majority would have found a way to secure him the floor. He was the most formidable enemy of the Know-Nothings in the Northern States, for he knew how to act as well as to talk. Dreamers and visionaries write fine theories, but only great men reduce them to practice. Mr. Kelly's youth and early manhood were passed at a period when native American bigotry and intolerance were burning questions in State and National affairs. He had been taught by observation, and a study of the fathers of the government, that the best service he could render his country was to make war on Know-Nothingism. He had met the leaders of that party in their strongholds in the city of New York, and vanquished them. Before his day there were clubs and factions, and local leaders and captains of bands—Bill Poole and his Know-Nothings, Isaiah Rynders and his Empire Club, Arthur Tappan and his Abolitionists, Mike Walsh and his Spartans, Samuel J. Tilden and his Barnburners, Charles O'Connor and his Hunkers—but the born captain had not appeared to mould

the discordant elements to his will, and make them do the work that was to be done. When John Kelly struck the blow at Know-Nothingism at the primary election on the corner of Grand and Elizabeth streets, already described, and drove out the ballot-box stuffers, the people of New York instantaneously recognized a man behind that blow, and everybody felt better for the discovery. When he ran against the celebrated Mike Walsh for Congress, one of the most popular characters who ever figured in New York politics, and beat him, the native American proscriptionists were glad that John Kelly was out of the way, for while they feared him in local politics, they persuaded themselves that he would be swallowed up in obscurity among the great men at Washington, and that he would be heard of no more. Given a big idea lodged in the centre of a big man's head, and be sure fruit will spring from the seed. Kelly carried his idea with him to Congress, and hostility to Know-Nothingism marked his career there, as it had done at home.

When James Buchanan became President, John Kelly became one of the leaders of the Administration party in Congress. He was then thirty-four years old. One day General Cass, Secretary of State, visited the Capitol, and in conversation with a friend said: "Look at John Kelly moving about quietly among the members. The man is full of latent power that he scarcely dreams of himself. He is equal to half a dozen of those fellows around him. Yes, by all odds, the biggest man among them all. The country will yet hear from Honest John Kelly." These words of General Cass, uttered in his imposing George-the-Third style of conversation, shortly after were repeated to old James Gordon Bennett, the friend of Kelly's boyhood, and the editor took early opportunity to mention Honest John Kelly in the *Herald*, and frequently afterwards applied the same title to him. The appellation struck the public as appropriate, and soon passed into general use. The subject of this memoir has been called "Honest John Kelly," from that day to this. In a letter to the present writer, in 1880, the late Alexander H. Stephens said: "I have stood by John Kelly in his entire struggle, and have often said, and now repeat, that I regard him as the ablest, purest and truest statesman that I have ever met with from New York."

Mr. Buchanan was urged by Mr. Kelly to appoint Augustus Schell Collector of the Port of New York. Other members of the New York delegation in the House, and both the New York Senators opposed the

selection of Mr. Schell. Mr. Seward was vehement in his opposition. But John Kelly stuck with the tenacity of Stanton in the War Department, or Stonewall Jackson in the battle-field. The President nominated Mr. Schell. Senator Clay of Alabama reported the nomination favorably from the Committee of Commerce, William H. Seward and the others were overborne, and Mr. Schell was confirmed by the Senate.

When Mr. Kelly entered upon his political career, to be a foreigner, or the son of a foreigner, in New York, in the opinion of the intolerant of both parties, was deemed a matter that required an apology, or at least an explanation. In 1857 one of the leading representative men of the Federal Administration in New York was John Kelly, and those who had been persecuted and oppressed before were recognized and advanced equally with all others in the city and State of New York; and the vanishing Know-Nothings at last realized that the absent Kelly had dealt them heavier blows from Washington than he ever delivered in New York. In these later and happier days men are no longer ashamed to be called the sons of Irishmen, and at the festive board of the Irish societies the notable ones of the country gather to make eloquent speeches and drink rousing toasts. But while some men forget, true Irishmen and true descendants of Irishmen have not forgotten their Horatius at the bridge in the brave days of old. John Kelly, were he a man of vanity, in contrasting the auspicious scenes of to-day with those of the dark days of 1844 and 1854, and in viewing his own part in effecting the change, could not fail to find much cause for pride and complacent reflection; but vanity is not his weakness.



John Kelly

John Kelly
(AT THE AGE OF 35 YEARS.)

Mr. Kelly went to Washington in the winter of 1855 to succeed the brilliant Mike Walsh in the House of Representatives. How did the weighty statesmen receive him? He went into their midst a big-boned, heavy-browed, brawny stranger, with his far-seeing eye, and firm solid step, and as he strode in among the Solons of Washington they all felt an instantaneous conviction from his conversation and bearing that in the society of the most eminent men of the Republic John Kelly was exactly where he was entitled to be. He flattered no great man by the least symptom of being himself flattered by his notice. He measured his strength in discussion with the most celebrated men in Congress, and feared the face of none. At their social gatherings he responded to the brilliant *bon mots* of the wits of the capital by quiet strokes of humor, and anecdote, and story, that sent bursts of merriment through the circle, delighting the sensible, and penetrating even those who encased themselves in triple folds of aristocratic reserve.

There is nothing artificial about him, but he has been always, and was so particularly in those days, the child of nature, with no shadow of pretension or affectation in his manners. He was not simply a man lifted up from the ranks of toil to be noticed by the world's favored ones, but he was endowed with that greatness of soul which always distinguishes its possessor above his fellows, whether his lot be cast in the highest or lowest situation of life. It is not strange that New York has felt, and will continue to feel, the moral influence of this man as long as he continues to take part in its affairs, loved by the masses for his lion-like courage, and by friends who meet him face to face in retirement for his almost womanly gentleness, while for obvious reasons he is hated and vilified by those who do not appreciate such qualities. And this courage and gentleness and unruffled equanimity come all in a breath, perfectly natural and free, for they come of their own accord. His composure under all circumstances has often been remarked upon, and in the hurly-burly of New York politics, and the headlong rush of the tide of life in the great metropolis, John Kelly is as sedate and recollected as the ascetic in his cloister. But there is nothing of sourness in his temper. Reflecting much at all times, he possesses the rare gift of thinking while he is talking, and when he is expressing one idea his thoughts never outrun the present sentence, as do those of nine-tenths of people, to frame words for the next one. He does not, in short, think of what he is going to say next, but of what he is saying now. Among the finer shades of character that distinguish one man from another it is extremely difficult to define that

untranslatable something which gives to each person his individuality; but this intentness of Mr. Kelly upon the immediate subject under consideration, both as listener and talker, is wonderfully attractive, and constitutes one of the subtle forces of his character as a political leader. This faculty of concentration belongs exclusively to original minds. Self-reliant, and borrowing nothing from others as to style or conduct, he gets at the point without labored approaches, and acts great parts with a happy carelessness. When others have been cast down and worried with care over affairs in which Mr. Kelly was more interested than themselves, his elastic spirit has not given way. Loving thus the sunshine, he affords a conspicuous example of the truth of the inspired words, “a merry man doeth good like a medicine.” Nothing has ever dispelled his cheerfulness. Defeat, deprivation of office, desertion by those he trusted, and who owed all they were to him, have neither embittered him, cast him down, daunted his courage, nor shaken his faith in himself. Domestic afflictions such as few men ever know—the death of his entire family—have come upon him, and while the keen shaft scarred the granite, his constancy has remained, and neither head nor chastened heart succumbed to misanthropy or rebellion against Providence. Surely something more substantial than wit, or genius, or equable temper was required to sustain John Kelly in the trials he has borne. The natural can only accomplish the natural, but a good man draws from supernatural fountains to replenish the well-springs in the arid plains of the desert, and Christianity, not for holiday show but daily use, must have been this man’s sheet-anchor.

Those acquainted with Mr. Kelly will be proper judges of the fidelity or shortcomings of this picture. They who have read the absurd delineations of him in some of the newspapers, and accept them without more inquiry as reliable, may reject this description of his character as contradictory of their preconceived notions on the subject. There is a third class of witnesses—an increasing class—perhaps more impartial than the two former ones, whose testimony on the point is important. These are strangers who have formed violent prejudices against the man after reading certain newspapers, but who on becoming acquainted with him repudiate their own opinions as rash and preposterously unjust.

“Oh!” but say his enemies, “this is not a fair test; Kelly is plausible and fair-spoken, and has great personal magnetism. Strangers when they meet

him fall under his spell.” The objection is a weak one, for these strangers never relapse into their former absurd opinions after they have gone away, and withdrawn themselves out of his spell. Let such strangers decide as to the faithfulness or unfaithfulness of the picture sketched here. A case of the kind occurred at the Cincinnati Democratic Convention in 1880. A delegate to the Convention from the State of Rhode Island was very severe on John Kelly. He had been reading an unfriendly newspaper. He denounced him as a boss, and uttered many just sentiments on the evils of bossism. While he was speaking John Kelly and Augustus Schell passed by, and the former was pointed out to him. “Is that Kelly?” said he. “Well, he doesn’t look much like a New York rough, or bar-room bully anyhow. I have been told he was both.” An introduction followed, and a conversation took place between the delegate and the subject of his recent execrations. “I am greatly obliged to you,” said the Rhode Island delegate to the author of this memoir, who gave the introduction, after Mr. Kelly had parted from him and re-joined Mr. Schell. “I honestly detested John Kelly, as a low, ignorant ward politician, who had conducted a gang of rowdies to this Convention to try and overawe it. So I had been told again and again. Now I don’t believe a word of it. I never talked to a more sensible man, and modest gentleman than John Kelly. This opens my eyes to the whole business.”

In the course of this chapter particular attention has been directed to Mr. Kelly’s war on Know-Nothingism as his chief claim to distinction and the gratitude of his country during his younger days. He became identified with the cause of equal rights in the minds of adopted citizens of various nationalities, especially of the Irish, and contributed as much, after Henry A. Wise, towards the overthrow of the Know-Nothing party, as any man in the United States. The adopted citizens were proud of their champion, and the place which he gained in their affections became so deep that, like Daniel O’Connell in Ireland, he could sway them by his simple word as completely as a general at the head of his army directs its movements. Mr. Kelly never abused this confidence, and consequently has retained his influence to the present day. Many have marvelled at his hold on the people of New York, as great when out of power, as when he has had the patronage of office at his disposal. Among the causes which have conspired to give him the largest Personal following of any man of the present generation, his patriotic services in the old Native American and Know-Nothing days must be reckoned among the chief. Such a hold Dean Swift had upon Irishmen in

the eighteenth century. Nothing could break it, nothing weaken it, the King on his throne could not withstand the author of the Drapier's Letters in his obscure Deanery in Ireland. It is fortunate John Kelly is a just and honest man, unmoved by clamor, not to be bribed by place or power, nor seduced by the temptations of ambition; for were it otherwise, his sway over great multitudes of men might enable him to lead them to the right or left, whichever way he might list, a momentous power for good or evil. The politician who ignores this man's influence, the historian who omits it from his calculation of causes, has not looked below the surface of things, and knows nothing of the real state of affairs in the city and State of New York.

Alexander H. Stephens was acquainted with John Kelly for over a quarter of a century; came into daily contact with him for four years on the floor of Congress; served with him for two years on the Committee of Ways and Means in the House; and his estimate of Mr. Kelly's character, referred to at a former page, is entitled to respectful consideration from every man in the United States, especially on the part of those who know nothing about him except what they have read in partisan newspapers. "I have often said, and now repeat," declared Georgia's great Commoner, "that I regard John Kelly as the ablest, purest and truest statesman that I have ever met with from New York."

FOOTNOTES:

[6] Cleveland's Life of A. H Stephens, p. 469.

[7] The greater number of those he was addressing were Know-Nothings.

[8] Cleveland's Life of A. H. Stephens, p. 472, *et seq.*

[9] The Carolina Tribute to Calhoun (Rhett's oration), p. 350.

CHAPTER IV.

RISE OF POLITICAL ABOLITIONISM—MARTIN VAN BUREN PRESIDENTIAL
CANDIDATE OF THE ABOLITIONISTS—JOHN KELLY'S BRILLIANT
COURSE IN THE SYRACUSE DEMOCRATIC CONVENTION OF 1855.

The rise and fall of the Know-Nothing party took place when John Kelly was yet a young man. The old Federal party and its several legitimate successors, more especially the Whigs and Know-Nothings, had not been fortunate in their conflicts with the Democratic party. Founded by Mr. Jefferson, the latter party always had been distinguished for two central ideas—a strict construction of the Constitution, and adherence to the minimum scale of governmental powers. The Federalists had destroyed themselves as a national organization by opposition to the war of 1812. General Jackson declared he would have hung the men who burned blue lights at New London, when Commodore Decatur was blockaded there by the British fleet.^[10] These blue lights were said to be signals to the enemy of the movements of the American forces. The exposure by John Quincy Adams of the machinations at Boston of John Henry, the British emissary and spy, who was sent from Canada to instill treason in New England and bring about the secession of the Eastern States,^[11] had hardly less effect in sealing the fate of the Federal party than the Hartford Convention, whose object was the dissolution of the Union. Massachusetts—not South Carolina—was the birthplace of the secession doctrine.^[12] The extinction of the Federal party was followed by the “era of good feeling.” Then came the disruption during the administration of John Quincy Adams, who having first propitiated Jefferson and Madison by making war on the Hartford Convention and the Essex Junto, in the end showed he was a Federalist at heart by reviving the principles which had distinguished his father’s administration, and opening the way for the formation of the Whig party by fastening the protective system on the country, and deducing implied powers from the Constitution not found in that instrument. The inevitable tendency of these revived ideas of federalism was towards the centralization of all powers, whether delegated or not, in the General Government. The Whig party, though led by the brilliant Henry Clay, was no match for the

Democratic party. Twice it succeeded in wresting the government from the Democrats, but on each occasion the result was due to Democratic dissensions, and to the furore excited over the name of a military chieftain—Harrison in 1840, and Taylor in 1848. With Clay and Webster the Whig party died, and was succeeded by Know-Nothingism. Mr. Kelly's part in the overthrow of the American or Know-Nothing party was dwelt upon in the last chapter.

But the old Federal party, so unsuccessful with the Hartford Convention, and in its opposition to the second war with England; so short-lived in its regained supremacy under the Whigs; and so easily overthrown under its bigoted organization of Know-Nothingism; was at length about to adopt a new course, and to acquire a new vitality in its war with the party of the Constitution, the Jeffersonian Democracy, destined to place it in control of the government for a quarter of a century, and to revolutionize the institutions of the country, if not the principles of the Constitution itself. Agitation over negro slavery furnished the anti-Jefferson party with this new lease of life. That agitation became the burning question in American politics while Mr. Kelly was in Congress. A maximum of government was now to be employed, and the disciples of Mr. Jefferson, divided and routed, were soon to behold the Hamiltonian school of politicians in absolute control of every department of the Federal Government.

The commanding influence of New York in the affairs of the United States was never more conspicuously displayed than at the time of the dissolution of the Whig and organization of the Republican parties. Dissensions among the Democrats of New York proved a potent factor in this process of decay and rejuvenation among their opponents. Prior to 1848 the Abolitionists had no strength as a party organization. Mobbed in Boston, New York and other cities, denounced by Daniel Webster as "infernal Abolitionists," and by Henry Clay as "mad fanatics," they struggled in vain for long years to effect a lodgment in American politics. A rapid glance at the origin of political Abolitionism will not be without interest to the historical student. Forty-four years ago, January 28-29, 1840, an anti-slavery convention was held at Arcade, then in Genessee County, New York. Reuben Sleeper of Livingston County presided. Among the delegates were Myron Holley and Gerrit Smith. At this conclave a call was issued for a national convention, to be held at Albany April 1, 1840, to discuss the

expediency of nominating Abolition candidates for President and Vice-President of the United States. At the time and place appointed the first national convention of the anti-slavery party was held. Alvan Stewart presided, and the Liberty Party, after a long discussion, was organized. The convention was composed of delegates from six States. James G. Birney and Thomas Earle were nominated for President and Vice-President. They received a little less than 7,000 votes at the polls, the Harrison and Tyler tidal wave sweeping everything before it. In 1844 the Liberty Party again placed its candidates in the field—James G. Birney for President and Thomas Morris for Vice-President—who polled nearly 60,000 votes, and defeated Henry Clay. The politicians were not slow to perceive that the Abolitionists at last held the balance of power between the two national parties of Whigs and Democrats. But no one then dreamed that Martin Van Buren, who had achieved all his successes in life as a Democrat, whom the South had made President in 1836, and whom John Randolph described as the “Northern man with Southern principles,” would place himself at the head of the Abolitionists in 1848, and thereby defeat his own party at the Presidential election of that year. In this surprising defection of Mr. Van Buren from the Democratic party, Samuel J. Tilden likewise struck his colors and went off with the Little Magician into the camp of the Abolitionists. Lucius Robinson also bolted with Tilden. John Kelly followed the lead of William L. Marcy and Horatio Seymour, and supported Cass and Butler, the nominees of the National Democracy.

A convention of the Liberty Party was held at Macedon Locke, Wayne county, New York, June 8, 9 and 10, 1847, at which the Abolitionists nominated Gerrit Smith and Elihu Burritt for President and Vice-President. Burritt declined, and at a convention held soon after at Rochester, New York, Charles C. Foote was nominated in Burritt’s place. The politicians now began to put in their fine work. The national committee of the Liberty Party and their outside advisers had their own plans with which the nomination of Gerrit Smith conflicted. They accordingly called another convention of the Liberty Party to meet at Buffalo, October 20, 1847. The Macedon convention thereupon separated from the Liberty Party, and took the name of Liberty League. Both wings were in agreement in maintaining that slavery was unconstitutional. William Lloyd Garrison and his followers, while not endorsing the Liberty Party in all things, held that a rising of the slaves in the Southern States would be no “insurrection.” In

this view the Abolition editors concurred, as did also the Liberty Party conventions in Massachusetts and other Eastern States, those held in various parts of New York, and those convened in Ohio and other Western States. The Liberty League occupied the same ground in regard to slavery, with this difference: they took position on other public questions which the Liberty Party excluded from the scope of its operations. Gerrit Smith, who was one of the single idea Abolitionists, in fact their leader, was placed in nomination for the Presidency at the Buffalo Liberty Party Convention of October 20, 1847. His candidature would have received the hearty support of the Liberty League, for its members knew that a servile insurrection was what he desired. Thirteen years later Gerrit Smith supplied John Brown with the money to carry out his notorious Harper's Ferry raid, the revelation of which fact in Frothingham's biography of Gerrit Smith led to the suppression of the book by the friends of the latter. The managers of the convention passed over Mr. Smith, and for the first time went outside of their own ranks for candidates. John P. Hale, of New Hampshire, and Leicester King, of Ohio, were nominated for President and Vice-President. These nominations were only temporary. In 1848 the Barnburners of New York were in open revolt against the Democrats, bolted at the National Democratic Convention of Baltimore, and held a convention of their own at Utica. The anti-slavery Whigs of Massachusetts and the followers of Joshua R. Giddings and Salmon P. Chase in Ohio were ready to unite with the Abolitionists of the Liberty Party. A conference was held by the leaders of these various discordant factions, secessionists from the two old parties, which led to the call for the celebrated Buffalo Convention of August 9, 1848. In that Convention was born the Republican party of to-day. The Liberty Party was swallowed up, Hale and King withdrew, the name of Free Soil party was assumed, and two men never before considered as distinctive Abolitionists, Martin Van Buren and Charles Francis Adams, were nominated for President and Vice-President. "A party has arisen," said Daniel Webster with vitriolic humor in a speech at Abington, Massachusetts, October 9, 1848, "which calls itself the Free Soil party. I think there is a good joke by Swift, who wished to ridicule some one who was making no very tasteful use of the words '*natale solum*':

“*Libertas, et natale solum!*

Fine words. I wonder where you stole 'em.”

Thomas H. Benton, the Jackson Democrat and friend and champion of Van Buren in the long struggle between the latter and Calhoun, added his condemnation to that of Webster, the New England Whig. Of the Free Soil party, which was launched on its stormy career at the Buffalo Convention, Benton says in his "Thirty Years' View": "It was an organization entirely to be regretted. Its aspect was sectional, its foundation a single idea, and its tendency to merge political principles in a slavery contention. And deeming all such organizations, no matter on which side of the question, as fraught with evil to the Union, this writer, on the urgent request of some of his political associates, went to New York to interpose his friendly offices to get the Free Soil organization abandoned; but in vain. Mr. Van Buren accepted the nomination, and in so doing placed himself in opposition to the general tenor of his political conduct in relation to slavery. I deemed this acceptance unfortunate to a degree far beyond its influence upon persons or parties. It went to impair confidence between the North and the South, and to narrow down the basis of party organization to a single idea; and that idea not known to our ancestors as an element in political organizations. Although another would have been nominated if he (Van Buren) had refused, yet no other nomination could have given such emphasis to the character of the convention and done as much harm."^[13] The vote in 1848 was as follows: Taylor and Fillmore, 1,360,752; Cass and Butler, 1,219,962; Van Buren and Adams, 291,342. Mr. Van Buren was assisted very warmly in this crusade against the National Democratic party by Samuel J. Tilden and Lucius Robinson, and having effected his object in joining the Abolitionists, the defeat of General Cass, he turned his back on his new allies in a single year and returned to the Democratic fold. But the "harm" predicted by Benton had been done, and the prodigal's return could not undo it. It was by such exploits that Mr. Van Buren won the title of "Fox of Kinderhook."

Four years later, in 1852, the Free Soil party again held a national convention, and nominated for President and Vice-President John P. Hale of New Hampshire, and George W. Julian of Indiana. They polled 157,685 votes at the election.

At the succeeding Presidential election the Whig party was dead, and the seed sown at the Buffalo Convention of 1848 by the Free Soilers had flowered in the interval into its natural fruit—the Republican party, a sectional organization founded on the single idea of opposition to slavery.

The mission of this party was proclaimed by its leader. William H. Seward, to be an “irrepressible conflict” between a solid North and a solid South. John C. Fremont and William L. Dayton were nominated for President and Vice-President by the Republican National Convention of 1856. Francis P. Blair, Mr. Van Buren’s old friend of the *Globe*, was the political inventor of Colonel Fremont. Buchanan received 1,838,169 votes, Fremont 1,341,264, and Fillmore 874,534.

Mr. Tilden was now back in the Democratic party, and acting in harmonious accord with Mr. Kelly. Not so Mr. Lucius Robinson. This gentleman, whose famous gubernatorial contest with Mr. Kelly twenty-three years later attracted national attention, and operated disastrously on the fortunes of Mr. Tilden, now left the Democrats and joined the Republican party. At a Fremont convention held at Syracuse, New York, July 25, 1856, resolutions denouncing the Democratic conventions, State and National, were adopted. The committee reporting these resolutions, of which Lucius Robinson was a member, also submitted an address which was adopted. “Mr. Buchanan,” it was said in this address, “the candidate of the Cincinnati Convention, stands pledged to make the resolutions of that convention his rule of practice. Such a candidate, under such circumstances, we cannot support. Mr. Fremont, who has been nominated by the Republicans, is an acceptable choice. In his hands the Presidential office will be vigorously and justly administered. We have, therefore, nominated him for the Presidency, and his associate Mr. Dayton, for the Vice-Presidency, and will use every honorable effort to secure their election, that we may rescue the Presidential office from the degradation into which it has fallen, and the politics of the country from the corruption which is fast undermining our best institutions.” Mr. Robinson’s committee also arraigned President Pierce for the “deplorable misrule of the present administration.”

For twenty years Lucius Robinson continued to be an active Republican. In 1876 when Mr. Tilden insisted on that gentleman’s nomination as Democratic candidate for Governor of New York, Mr. Kelly called Mr. Tilden’s attention to the record of his candidate, and advised against his nomination. As Mr. Tilden still insisted, and was himself the Democratic candidate for President, Mr. Kelly gave Mr. Robinson his support, in order not to weaken the national ticket. Robinson was elected Governor. His

administration will long be memorable for the proscriptive policy adopted by the Governor against a respectable and powerful wing of the Democratic party. He surrounded himself with an inner council, or star chamber, and stretched the Executive prerogative of arraigning and removing Democratic officials to the verge of tyranny. It soon became evident that no Democrat, howsoever irreproachable in the walks of life, who did not belong to the Governor's faction, and who might be reached by Mr. Robinson, could count on his safety in office, or feel himself secure for an hour from the vengeance of the Executive. To follow John Kelly, or to adhere to the Tammany Hall Democracy, became an atrocious crime in the estimation of Lucius Robinson. The revolt against Robinson which soon took place, cleared the moral atmosphere wonderfully, and proved that the spirit of manhood which De Witt Clinton half a century earlier infused into the politics of New York, when he rebelled against a similar tyranny, was still to be relied upon in an emergency.

The rise of political Abolitionism presents a curious study, and this rapid outline of its genesis has been deemed necessary. Mr. Kelly at the juncture now reached was in a position to take an important and conservative part in the great anti-slavery controversy, about which so many angry passions have been lashed, and whose true history has not yet been written. The Democratic party of the State of New York has always been a quarrelsome family. De Witt Clinton and Van Buren were leaders of rival factions; Wright and Marcy renewed the controversy; and Tilden and Kelly, in the present generation, inherited the local feuds and marshalled the contending hosts of their party in the State. Settled first by the Dutch, New York was more rapidly colonized by the Puritans, and later by the Irish and Germans. Contrarities of race sped the growth and power of the Empire State, but produced those antagonisms among its people, which have been more intense there than in any other State in the Union. Clinton, sprung from Irish stock, was at war with Van Buren, who, although of Dutch blood, became the leader of the New York Puritans. In the days of Jackson and Calhoun the quarrel was revived over the disputes in which those two celebrated national leaders, theretofore devoted friends, were embroiled by Martin Van Buren about the year 1830. Calhoun was supplanted in Jackson's affections, and Van Buren, thanks to Peggie O'Neil, succeeded to the Presidency. But Calhoun's retributive blows in 1840 and 1844 prostrated Van Buren, and destroyed his ascendancy in the Democratic

party. Stripped of dear bought power, Van Buren resolved on revenge, and in 1848 turned on the National Democratic party itself, of which Mr. Calhoun was then the powerful leader. Persons of a retrospective imagination may indulge in day dreams over what might have been the destiny of the United States, and over what other and happier story the Muse of History might have related, had Martin Van Buren restrained his feelings, and not rushed headlong into the camp of the Abolitionists. Pursuing the same pleasing train of reflection, they might say—if the Van Buren bolt had not occurred, the supreme calamity of disunion and war, which Henry Clay and Daniel Webster by the most marvellous exercise of statesmanship averted in 1850, might not have taken place in 1860. But this is all idle speculation, like the saying that if Richard Cromwell had possessed the genius of his father, he would have fixed the Protectorate in his family, which Count Joseph de Maistre brushes away with the pithy remark, that “this is precisely the same as to declare, if the Cromwell family had not ceased to rule it would rule still.”^[14]

John Kelly was trained in the school of William L. Marcy, who, in consideration of his pre-eminent abilities, was chosen Secretary of State by General Pierce, and as the New Hampshire organ of the President, the Concord *Patriot* declared, because Mr. Marcy had “completely succeeded in re-uniting the Democracy of New York.” Mr. Kelly occupied a similar position to that taken by Horatio Seymour in relation to African slavery. Regarding slavery as an evil, Kelly believed, if the principles of Jefferson should be allowed to work out their legitimate results without infraction of the compromises of the Constitution, that the Southern States themselves in time would adopt the policy of emancipation. This was the sentiment Washington and Jefferson^[15] had often expressed, and which John Randolph put in practice by emancipating his four hundred slaves. Charles Fenton Mercer, a Virginia statesman whose zeal for the negro was no less ardent than that of Dr. Channing, the Boston philanthropist, devoted his life to the extinction of slavery in Virginia. In 1836 John Letcher and Charles James Faulkner championed a bill for gradual emancipation in the Legislature of the same State. The Emancipationists did their share in the interest of the black man, long before the Abolitionists began their agitation. In estimating the influence of the two forces upon the destinies of the negro race, greater sobriety of statement than that of partisans will be required for

the purposes of history. Whether the views of Senator Ingalls of Kansas on John Brown are more correct than those of Mr. Daniel B. Lucas of West Virginia on John Randolph, or whether the verdict of posterity will pronounce both eulogists at fault, it is beyond the power of any man of this generation satisfactorily to decide. "Scholars," Ingalls says, "orators, poets, philanthropists play their parts, but the crisis comes through some one whom the world regards as a fanatic or impostor, and whom the supporters of the system he assails crucify between thieves or gibbet as a felon. It required generations to arouse the conscience of the American people to the enormous iniquity of African slavery. The classical orators, the scholarly declaimers and essayists performed their work. They furnished the formulas for popular use and expression, but old John Brown, with his pikes, did more in one brief hour to render slavery impossible than all the speechmakers and soothsayers had done in a quarter of a century, and he will be remembered when they and their works are lost in dusty oblivion."^[16]

"In regard to African slavery," Lucas says, "which has played so important a part in our political history, Randolph was an Emancipationist as distinguished from an Abolitionist. This distinction was a very broad one; as broad as that between Algernon Sidney and Jack Cade. It was the difference between Reason and Fanaticism. On this subject Randolph and Clay concurred; both were Emancipationists, and both denounced the Abolitionists, as did also Webster and all the best, wisest and purest men of that day. Randolph was right in his denunciation of the Abolitionists. They were a pestilent class of agitators who, for the most part, with little or no stake in the community, mounted their hobby-horses, Hatred and Fanaticism, and rode them, like Ruin and Darkness, the steeds of Lucifer in Bailey's "Festus," over the fairest portion of our Republic. An exhaustless empire of land has enabled the nation to survive this substitution of the methods of Abolition for those of Emancipation; but the eternal truth remains the same, that the one was legitimate and the other internecine; and to justify the Abolitionists, because Emancipation followed their efforts would be to justify the crime of the Crucifixion because Redemption followed the Cross."^[17]

The Democratic party in New York, after the Buffalo Convention, became divided upon the subject of slavery, and the Wilmot Proviso tended

to widen the breach. Barnburners who trained under Van Buren, and Hunkers who followed the lead of Marcy, although all claimed to be Democrats, were more bitter against each other than against those of the opposite party. The election of Franklin Pierce in 1852, upon a platform which proclaimed the inviolability of the Compromise Measures of 1850, served to soften the asperities existing in the Democratic party of New York. Before that time, Marcy and Seymour, both Hunkers, had declared "that opinions upon slavery should not be made a test" of party loyalty. Daniel S. Dickinson, then a Democratic extremist, who afterwards became a Republican extremist, took opposite ground, and refused to unite with the Barnburners. This led to the division of the New York Democracy into "Hards" and "Softs." And it is here, after these divisions had taken shape, that John Kelly came forward, and acted an interesting and conspicuous part in this great sectional controversy. His action and influence in the Soft Shell Conventions of August 29, 1855, and January 10, 1856, although he was not a delegate to the latter Convention, proved him to be a statesman of commanding abilities.

The New York Soft Shell Democratic Convention of 1855 was composed of gentlemen who represented three distinct factions in the Democratic party.

First, of those who had not recanted their Free-soil sentiments of 1848, and were still simon-pure Barnburners, utterly opposed to any compromise with slaveholders, or the admission of another State into the Union with the institution of slavery recognized in its constitution.

Secondly, of those who had previously occupied the same ground as the first class, but who now enjoyed the patronage and favor of the Pierce administration in New York, and who had abandoned their Buffalo platform, and accepted the principles of the Missouri Compromise of 1820, prohibiting slavery in all territories, except Missouri, lying north of thirty-six degrees and thirty minutes north latitude.

Thirdly, of those who accepted the Webster-Clay Compromise of 1850 as a settlement "in principle and in substance" of the slavery question in all the territories, and who, therefore, acquiesced in the legislation of 1854 in re-affirmation of that memorable compromise.

The Union had been saved by the Compromise of 1850. Franklin Pierce had been elected on a platform squarely endorsing it. The Whigs had not given to it as hearty an endorsement in their platform, but rather evaded the issue. Pierce went to the people on this vital question, and beat Scott overwhelmingly. The verdict approached unanimity, only four States in the Union giving their electoral votes for Scott. The Congressional legislation of 1854, known as the Kansas-Nebraska bill, was supplementary to, and in strict conformity with the principles of the Compromise of 1850, and left the question of slavery in those territories entirely to the people thereof to settle for themselves, with no interference from without. This was the ground taken by Henry Clay in his last great effort to pacify the sections on a basis just and honorable to each. It was the ground on which Daniel Webster took his stand so patriotically in his celebrated 7th-of-March speech in 1850. The only man who maintained the same position in the New York Soft Shell Democratic Convention of 1855 was John Kelly, notwithstanding the unparalleled approval the compromise received at the hands of the people in Pierce's election. John Van Buren, who had been in company with President Pierce at the White Sulphur Springs in Virginia—an administration favorite of anti-administration proclivities—hastened back to New York, and appeared as a delegate at Syracuse, to defend, as it was reasonably supposed, the measures of Pierce in a convention composed of Democrats who enjoyed the patronage of the administration. But Prince John, as Mr. Van Buren was called, displayed his usual fickleness in this business, and went far in his dalliance with the Abolitionists, to undermine the administration in whose sunshine he was basking, and to render the renomination of that excellent President, Franklin Pierce, practically hopeless. Without exactly joining the Abolitionists of the Syracuse Convention in an unqualified crusade against slavery, he kicked over the traces of the Kansas-Nebraska bill, repudiated the compromise of 1850, and in order to find a middle ground to stand on went back to the obsolete Missouri Compromise of 1820. Dean Richmond, Sandford E. Church, and others followed Van Buren's lead in this matter, and voted for a resolution he submitted taking this position. The Abolitionists of the Convention, like General James W. Nye and Ward Hunt, pronounced the Van Buren resolution "mere patchwork," and wanted to go further in condemnation of Franklin Pierce. There was only one man in the convention who stood up to rebuke the slippery conduct of Mr. Van Buren, and to defend the National

Democracy from its false friends. This gentleman was Congressman John Kelly, the subject of this memoir.

Prominent among the delegates who took part in the Convention were Dean Richmond, chairman of the Democratic State Committee; Sandford E. Church, afterwards Chief Justice of the New York Court of Appeals; John Kelly, Congressman elect; John Cochrane, Surveyor of the Port of New York; Lorenzo B. Shepard, John Van Buren, Robert Kelly, President of the Convention; James W. Nye, Timothy Jenkins, Wm. Cassidy, Ward Hunt, Andrew H. Green, Israel T. Hatch, who was nominated for Governor, Thomas B. Alvord, Peter Cagger, Dennis McCarthy and Benjamin Wood. Although the Convention was called to nominate candidates for State officers, the debate took a wide range, and the Kansas-Nebraska troubles became the subject of an angry discussion.

The New York *Herald* of September 2, 1855, contained in its Syracuse correspondence a spirited sketch of the brilliant debate in the Convention, and of the exciting scenes to which it gave rise. A disruption at one time seemed inevitable. "The excitement," said the *Herald*, "had been wrought up to fever heat. There were dire menacings of a bolt. Both divisions of the army seemed ready simultaneously to throw off their allegiance, and go over to the double enemy. Mr. John Kelly of New York, had thrown out awful menacings of defection in favor of the National Democracy, if the Convention should fail to endorse the administration; and Ex-Lieutenant Governor Church, Jenkins and Hunt, of Oneida, and the good-humored member from Suffolk, General Nye, seemed to be just as ready to march off with their hosts to the Republican party. The remnant of the faction, if any were left, might have divided themselves among the Whigs or Know-Nothings, leaving only the Custom House, marshalled by John Cochrane, as the sole corporal's guard of the Administration. Such a dreadful contingency was to be avoided at all hazards and sacrifices. The recess was utilized in endeavoring to harmonize conflicting views, and to beat down the extravagant requirements of the extremists of either section. There was, therefore, intense interest manifested in the proceedings of the evening session, and when the Convention re-assembled at 7 o'clock P. M., the hall was crowded to its greatest capacity."

In the preliminary stages of the Convention two sets of resolutions had been submitted. Those of the regularly appointed committee were reported

by William Cassidy. In these the Pierce administration was endorsed, and the National Democracy sustained. Minority or supplementary resolutions taking directly opposite grounds were offered by Timothy Jenkins, a pronounced Free-soiler.

Jenkins, in a radical Barnburner speech, denounced the territorial legislation known as the Kansas-Nebraska bill, arraigned the President, and demanded a restoration of the Missouri Compromise. He was answered by John Cochrane in defence of the President, but as Mr. Cochrane had been a violent Barnburner in 1848, his argument was handicapped by his record. Besides, he was Surveyor of the Port of New York, and the newspapers had often referred to a letter said to have been written by Franklin Pierce to the bolting Barnburners' meeting in the Park in 1848, at which the standards of party rebellion against Cass and Butler and the National Democracy were first raised. If General Pierce wrote such a letter it was suppressed, but Mr. Cochrane's opponents claimed that he was the recipient of this "scarlet letter," as the *Herald* styled it, and as he subsequently obtained one of the President's fat offices, uncharitable comments were made upon General Pierce's motives in the transaction. But it is scarcely credible, in view of Pierce's antecedents, that he could have committed himself to the Van Buren bolters of 1848. His record in the United States Senate, and in New Hampshire, had been that of a Jeffersonian Democrat of the strict construction school.

John Van Buren addressed the Convention after Mr. Cochrane, but as he too had been a Barnburner, and the Rupert of debate among the bolters of 1848, his effort now to throw oil on the troubled waters proved a failure. Besides, it was a very halting effort. He moved that all resolutions in relation to the Administration, Kansas-Nebraska legislation, and Slavery be laid on the table, but did not press the motion to a vote, and shortly after withdrew it. The motion to withdraw was more consonant with Mr. Van Buren's real sentiments than the one to table the disturbing resolutions. The Convention was now face to face with Mr. Jenkins's anti-Democratic programme, and Mr. Van Buren showed a disposition to support it. It was at this juncture that Mr. John Kelly rose to stem the tide of Sewardism that was sweeping over the Convention. With an intuitive understanding of a scene which was constantly shifting, but whose inevitable end, if not now stopped, he foresaw would be the elevation of William H. Seward to a

position little short of that of dictator of the destinies of the Union, John Kelly pointed out the perilous levity of Mr. Van Buren's conduct, and made a patriotic appeal to the Convention to close up its ranks and redeem the State from Know-Nothingism, and the sectional Republican party. "The firebrand of discord," said Mr. Kelly, "which gentlemen of the old Barnburner persuasion are now on this floor throwing into the ranks of the Democratic party, would have even worse consequences than their course had produced in 1848, when they defeated General Cass for the Presidency, and enabled the Whigs to slip into control of the Legislature, and elect Mr. Seward United States Senator to succeed a Democrat. The fate of the Union now trembled in the balance, and dissensions in this Convention would go far to destroy the National Democracy, and place the sceptre of power in the hands of the arch-agitator, William H. Seward. Mr. Van Buren's constituents," continued Mr. Kelly, "will approve of the resolutions of the Committee in favor of the National Democracy, though that gentleman may not do so. I admire Mr. Van Buren's personal character, but not his political tergiversations. I hope the Convention will sustain the administration of Franklin Pierce, and not divide the Democratic party by passing the supplementary resolutions of the gentleman from Oneida. But to preserve harmony here I am willing to leave out all matters relating to Kansas, and so will be the delegation from New York city, who are prepared now to vote for the resolutions of the regular committee."^[18]

General Nye, former political associate of Gerrit Smith, the John Brown Abolitionist, took the floor to reply to Mr. Kelly. Bowie knives, and pistols, and pronunciamientos in Kansas formed the burden of his speech. In conclusion the eloquent but somewhat comical General Nye declared: "I would say, President Pierce, you have openly insulted the spirit of your countrymen. Let us speak out and make this declaration. I know it is our opinion, and think it is his. I don't think my friend Kelly would withdraw from the Convention if we passed the Jenkins resolutions; but if he should do so, we should obtain legions by adopting them. The Republican Convention is counting on our ominous silence."

Another Free Soil resolution was introduced at this point by Sandford E. Church, declaring uncompromising hostility to the extension of slavery into free territory. John Van Buren again took the floor and loudly advocated the Church resolution. An administration resolution was next offered by

Lorenzo B. Shepard, declaring that the people in the Territory of Kansas should be left to settle their own matters as to slavery without interference from the North or South. A Mr. Hinckley, of Ontario County, made a violent Abolition speech, and caused roars of laughter by assuming a tragic attitude and declaring, "I feel like a brave Indian on the battle field."

John Van Buren, whose mission in the Convention seemed to be to destroy his friend President Pierce, now offered the following resolution:

"Resolved, That while the Democracy of this State will faithfully adhere to all the compromises of the Constitution, and maintain all the reserved rights of the States, they deem this an appropriate occasion to declare their fixed hostility to the extension of slavery into free territory."^[19]

He supported this resolution in a long speech, in which he tried hard to leave the Administration without a leg to stand on. As a death-blow to Pierce, the effort was eminently successful. In conclusion, he moved to lay the whole subject on the table. Having shot his parthian arrow into the side of the National Democracy, Prince John was not disposed to give its friends a chance to be heard. A sharp running debate now took place between Mr. Kelly and Mr. Van Buren. The New York *Herald* published a synopsis of it:

"Mr. John Kelly, of New York, hoped the gentleman would not press his motion, but would give other gentlemen an opportunity of expressing their sentiments."

Mr. Van Buren: "I will withdraw it, for I am going to dinner (laughter), provided you or the gentleman who shall speak last agrees to renew it in my name."

Mr. Kelly: "I will agree to that if the Convention agrees to go to dinner now." (Laughter.)

Mr. Van Buren: "But if the Convention does not now take a recess, I want to make the same bargain. I want the last man who speaks to renew the motion in my name."

Mr. Kelly: "I will do no such thing."

Mr. Van Buren: "Then I insist on my motion."

Mr. Kelly: "I expected more generosity from the gentleman from the Thirteenth District of New York, than to do anything of this kind."

At this point a recess was taken until 3 o'clock P. M. On the re-assembling of the body Mr. John Kelly addressed the Convention, and showed a determination not to be choked off by Mr. John Van Buren and the Seward contingent of Disunionists and Abolitionists, who, notwithstanding their noisy demonstrations, constituted only about one-third of the Convention. He made a powerful speech in defense of the National Democracy, and the Administration of General Pierce. He reviewed, in scathing terms, the treason to Cass and Butler on the part of the bolting Barnburners in 1848, and when he declared sternly and with unmistakable indignation, that, if this treason was now to be repeated he would leave the Convention, and never again affiliate with Barnburners, a great sensation occurred, and it became evident that the schemes of the fanatics had been arrested and thwarted by Mr. Kelly. A hurried consultation took place between the friends and opponents of the Administration. Mr. Kelly's demand that a delegation of true Democrats, and not Seward Democrats, should be sent to the Cincinnati National Convention, and that a platform endorsing the territorial legislation of Congress in 1854, the Kansas-Nebraska bill (in effect a re-affirmation of the Webster-Clay Compromise of 1850) should be adopted, was reluctantly but finally conceded. The sectional and disturbing resolutions of Jenkins, Church and Hunt were withdrawn, and in return for these concessions it was agreed to by Kelly and his friends that the appointment of the delegation to Cincinnati should be postponed to a later day, and the drafting of an address and resolutions expressive of National Democratic principles should be deferred until the meeting of another convention, at which the National Convention delegates should be chosen. In view of this compromise any further conflict over the Van Buren Free-soil resolution was avoided, and it was adopted by the Convention.

No full report of Mr. Kelly's important speech, which brought about the administration victory, was taken down at the time of its delivery, indeed none of the speeches before the convention was fully reported. The New York *Herald*, of September 1st, 1855, contained the following synopsis of what he said:

"Mr. John Kelly, of New York, took the floor. He came here, he said, to represent the Democracy of the city of New York, and he was determined to do so. He was always led to suppose that it was not upon principle, but upon personal grounds that the Democratic party was divided. He belonged

to the Tammany Hall section of the party, but if it were resolved to force down the throats of the Convention resolutions derogatory to the honor of the Democratic party, and of the administration, he, for one, would not remain in the Convention. Let these dividing questions, he said, rest as they are. If the resolutions reported by the Committee were brought up, the city delegates would sustain them. But if on the other hand, the resolutions of the gentleman from Oneida were forced down the throats of the body, he would leave the Convention, and never attach himself again to this branch of the party. (Sensation and applause.) He asked was it desirable for one-third of this Convention to be the means of severing the ties which connect the party together? He knew that the constituents of the gentleman from New York who last spoke (Mr. Van Buren) would endorse the administration, and endorse the Kansas-Nebraska bill. If it were the desire of that gentleman to try and distract the Convention, he should have come from another district, and not disgrace that which sent him. (Hisses and applause.) When he—Mr. Kelly—remembered the causes of the division of the Democracy in 1848, he thought that the ‘isms’ and those causes of division were to be forever buried in oblivion. But they come here again. Shall it be said that the Democratic party of New York shall not sustain a Democratic administration? If so, let it go forth that the administration portion of the Democratic party of New York has refused to endorse and sustain it. He trusted the Convention would consider these matters well, and see what they were going to do. They were going to divide the party and dis sever it, never to be brought together again in its present strength. They were going to give the power to the proscriptive Know-Nothing party, which would bring the country to ruin and desolation. Let them consider the matter well, and ask their consciences whether they could do such a thing as this. He, for one, would vote for the resolutions endorsing the administration, and if it were necessary to endorse the Kansas and Nebraska bill, he would vote for such resolution, too, and he was sure that the majority of the New York delegation would do so.”

General Nye: “It is not on the issue of the Kansas-Nebraska bill that the Democratic party of New York can hope to triumph, nor on it that my friend from New York city, Mr. John Kelly, can expect to be sent to Congress in 1856.”

Mr. Kelly: “On that issue alone I was elected.”

General Nye: "It so happens, however, that the opposing candidate voted for the bill, and you could not have much advantage over him there. (Laughter.) Besides, the very district which my friend Mr. Van Buren is said to misrepresent—the Thirteenth—elected John Wheeler, who voted against the bill."

Mr. Kelly: "Will you also state that John Wheeler was elected by the Know-Nothing party?"

General Nye: "No: I know nothing of that party. (Laughter.) I wish this Convention to treat the subject in a manly way. If you do, I do not believe Mr. Kelly will withdraw from the Convention; but even if he does, better he should go than that the hosts that I see around me should do so."

Mr. Ward Hunt, of Oneida, made a violent Free soil speech, in the course of which he said:

"Another gentleman from the city of New York, a member of Congress elect (Mr. John Kelly), threatened to walk out of the Convention, if it happened to adopt a course not in accordance with his views. He would only say that if that gentleman did walk out, his blessing would go with him, and the delegation of the city of New York might go with him, too."

Mr. O'Keefe: "Except Van Buren." (Laughter.)

Mr. Hunt: "Well, I am glad to see that there is one good man left in the city of New York."

Mr. Van Buren: "I will not give notice, like my friend from the Fourteenth Ward, Mr. Kelly, that if the procedure of the Convention should not please me I would bolt. Perhaps if I did, the Convention on that very account would persist in adopting such measures." (Laughter.)

The repeated references by the leading opposition members of the Convention to Mr. Kelly's notice of his determination to retire, if the Seward wing of the party persisted in its factious course, and the concessions which followed, showed that the blow had been sent home. The one strong man had been found to arrest the progress of disunion, and to aid materially in staving off in 1856, the calamity which finally overtook the country in 1860.

Had New York entered the Democratic National Convention of 1856, distracted by intestine feuds, as was the case in 1848, the election of the Republican candidate for President, John C. Fremont, probably would have followed, together with the dreadful appeal to arms which shook the continent four years later. The State ticket placed in the field by the Soft Shell Convention of 1855, was not successful at the polls. The State was carried by the Know-Nothings by decisive majorities. Samuel J. Tilden was the candidate on the Soft Shell ticket of that year for Attorney General. A short time before the election Mr. Tilden received the following letter from Josiah Sutherland, nominee for the same office on the State ticket of the other wing of the party:

NEW YORK CITY, Friday, Oct. 12, 1855.

SAMUEL J. TILDEN, ESQ.,

MY DEAR SIR:—I was nominated for the office of Attorney General of this State, by that portion of the Democratic party of the State called the Hards; you were subsequently nominated for the same office by that portion or section of the Democratic party of the State called the Softs. I look upon the resolutions passed and published by the Convention which put me in nomination (a copy of which I herewith enclose) as truly, emphatically and unequivocally expressing great principles of the National Democracy and of the Constitution. The third resolution, as you will observe, firmly enunciates the great Democratic principle, "That it should be left to the people of the States to determine for themselves all local questions, including the subject of slavery;" it expresses also "an unqualified adherence to the Kansas-Nebraska Bill," and a firm opposition to "any effort to re-establish the Missouri prohibition."

I approve of these resolutions and have endorsed them, and do now endorse them in letter and spirit. Do you look upon these resolutions as truly and faithfully expressing principles of the National Democracy and of the Constitution? Are you in favor of the Kansas-Nebraska Bill, and of the great principle of the exclusive constitutional right and liberty of the people of the Territories on the subject of slavery, thereby affirmed?

Do you believe that in the organization of future Territories Congress will have no right or power, under the Constitution as it now is, to prevent the inception, existence or continuance of slavery in such Territories as a domestic or Territorial institution; that the question and subject of slavery as a domestic or Territorial institution, in the absence of any express provision or clause of the Constitution giving such right and power to Congress, will and must of necessity belong exclusively to the people of such Territories—of natural, if not of constitutional right; and that the only constitutional and legitimate way in which a citizen of Massachusetts or of New York can interfere with or act upon that question, is by exercising his undoubted right to move to the territory where the question is pending, and to become a citizen or resident thereof?

Are you opposed to the political, verbal “Black Republican” fanatics and demagogues of the North, who, using words for things, oppose this great principle, and call for a restoration of the “Missouri Compromise line?” Are you opposed to the State ticket lately put in nomination in this State, headed by Preston King, and to the declared principles and grounds upon which that ticket was nominated?

The opinions, propositions, or principles which would be implied in the affirmative answers to the foregoing questions appear to me to be plainly expressed, or necessarily implied in the resolutions of the Convention which put me in nomination, and of which you herewith receive a copy.

Please answer these questions by letter at the earliest possible day; for if you answer them in the affirmative, I shall take great pleasure in immediately laying your letter before the State Committee of the party which put me in nomination, and shall at the same time inform that Committee that I decline any longer to be considered a candidate. I will not stand in the way of a union of the Democratic party of this State upon principle. The Constitution and the Union now need the united force of the Democratic party of this State for their protection.

With the most sincere desire to promote such a union of that party, and with high regard for yourself personally, I have the honor to be,

Your obedient servant,

JOSIAH SUTHERLAND.

MR. TILDEN’S REPLY.

NEW YORK, Thursday, Oct. 18, 1855.

DEAR SIR:—I have received your letter, offering, on certain conditions, to send your declension to the State Committee of the party by which you were nominated, with my letter of compliance, and to open to me the opportunity of running before that Committee for their nomination in the vacancy.

I think that, on reflection, you will see that it is impossible for me to entertain any negotiation, or discuss any conditions, for a fusion of a part of the two State tickets, as proposed by you, or of the entire ticket, as proposed in other quarters. Still less can I initiate such an arrangement for my individual advantage, irrespective of the other gentlemen nominated on the ticket with me, and which, even if not intended for that purpose, may result in a call for some of them to reciprocate your withdrawal. Discussions as to the feasibility, propriety or terms of any union of the two tickets belong not to me, but to the party which nominated me, or its authorized representatives. The only countenance I could, in any event, give to the suggestion would be in retiring myself, and not in being made instrumental in, or even a party to, causing others to do so. Those who have done me the honor to make me their candidate know that no delicacy toward me need restrain them from anything of this nature which they think it advisable to do. Very respectfully, your obedient servant,

HON. J. SUTHERLAND. [\[20\]](#)

S. J. TILDEN.

It will be observed that Mr. Tilden made no answer to Judge Sutherland's inquiries on the vexed question of slavery in the territories. Mr. Tilden was one of the Free soil bolters at the Baltimore Convention of 1848, and supported Van Buren and Adams in the Presidential contest of that year. His views on the subject of Slavery in the Territories, which he did not disclose in this correspondence, were frankly stated five years later in his letter of October 26, 1860, to Judge William Kent. "I never held any opinion," said Mr. Tilden in the Kent letter, "which could justify either the policy or the organization of the Republican party. If I had done so I should not hesitate to frankly renounce so grave an error. * * * But, in truth, I never adopted the doctrine of absolute and universal exclusion, by federal legislation, of slavery from all territories, and still less that of the exclusion of new slave States, or the philosophical theories on which the doctrines are founded."

Mr. Kelly's energetic protests in the Soft Shell Convention of 1855 bore ample fruit in the Convention of the same party held at Syracuse January 10, 1856. The delegates chosen to represent the Softs at Cincinnati were headed by Horatio Seymour, and were National Democrats of conservative convictions and feelings. Mr. Kelly was a delegate from the Fourth Congressional District. An able and elaborate address, written by Nicholas Hill, Jr., was adopted by the Convention, and was replete with sound Democratic doctrine of the broadest national character. Not a word of Free soilism appeared in it. The resolutions were of the same conservative kind, and adverted to the triumph of the principles of the Kansas-Nebraska bill as shown in the recent elections. The fourth resolution was in these words:

"Resolved, That the determination of Congress, avowed in the Kansas-Nebraska bill, to reject from the National councils the subject of slavery in the Territories, and to leave the people thereof free to regulate their domestic institutions in their own way, subject only to the Constitution of the United States, is one that accords with the sentiments of the Democracy of this State, and with the traditional course of legislation by Congress, which under Democratic auspices, has gradually, in successive Territorial bills, extended the domain of popular right and limited the range of Congressional action; and that we believe this disposition of the question will result most auspiciously to the peace of the Union and the cause of good government."

Thus the principles advocated by John Kelly were embodied in the address and resolutions of this Convention, while those which John Van Buren had urged were entirely rejected. Franklin Pierce was unfortunate in the selection of his political representative in the State of New York, at this important juncture. He was an aspirant for renomination, and his brilliant

but unstable counsellor, Prince John, landed him in a Serbonion bog, and left the coveted prize to James Buchanan. John Kelly would have proved a safer adviser for the eloquent and patriotic Pierce. The differences between the two wings of the New York Democracy, led respectively by Horatio Seymour and Greene C. Bronson, were harmonized at Cincinnati, and on motion of Mr. Bayard of Delaware, both were admitted on an equal footing in the National Convention.

It has been said that William L. Marcy desired John Kelly, in place of John Van Buren, to be made the mouthpiece of the Administration in New York at this critical period. But from the day of Pierce's election John Van Buren had been assiduous in his attentions to him. He went early to Concord before the inauguration, and was closeted with the President elect. [21] He was with him at the White Sulphur Springs, in Virginia, just before the Syracuse Convention of 1855. Mr. Van Buren was a man of varied and fascinating accomplishments, and found it an easy task to capture the President's heart. Notwithstanding the preference of Mr. Marcy for John Kelly as administration leader in New York, on Prince John was bestowed that distinction. William L. Marcy, with the exception of De Witt Clinton, the greatest Democratic statesman the Empire State has yet furnished to the country, died at Ballston Spa, New York, July, 4, 1857.

Mr. Kelly won a national reputation by his brilliant course in the Syracuse Convention of 1855. His services in the cause of the Democracy were recognized on all sides before he took his seat in Congress at the meeting in December of that year. General Cass, successor of Mr. Marcy in the State Department, introduced and welcomed his old New York supporter of 1848 into the councils and friendship of the Administration of Mr. Buchanan. John Kelly entered the field of Federal politics, as a member of the Thirty-fourth Congress, under favorable auspices for a successful career.

FOOTNOTES:

[10] Ingersoll's Hist. Second War between the United States and Great Britain. Vol. 1, p. 439.

[11] Message of President Madison to Congress, March 9, 1812. Vt. Gov. and C., Vol. V., 478-9. Henry himself for \$50,000 revealed the matter to Madison. Ibid. Committee on Foreign Relations Ho. Rep. June 3, 1812, also arraigns England. Ibid, 499.

[12] January 14, 1811, in the debate in the House of Representatives upon the erection of the Louisiana purchase into a State, Josiah Quincy, of Massachusetts, opposed the measure. "He expressed his deliberate opinion that so flagrant a disregard of the Constitution would be a virtual dissolution of the bonds of the Union, freeing the States composing it from their moral obligation of adhesion to each other, and making it the right of all, as it would become the duty of some, to prepare definitively for separation, amicably if they might, forcibly if they must! This declaration, the first announcement on the floor of Congress of the doctrine of Secession, produced a call to order from Poindexter, delegate from the Mississippi Territory." Hildreth's Hist. U. S., Vol. III., p. 226.

[13] Vol. 2, p. 723.

[14] Generative Principle of Political Constitutions, p. 19.

[15] Jefferson's Complete Works. VII., 159.

[16] Address by Hon. John J. Ingalls at Ossawatimie, Kansas, August 30, 1877, on the dedication of a monument to John Brown and his associates.

[17] John Randolph of Roanoke. An Address delivered before the Literary Societies of Hampden-Sidney College, June 13, 1883, by Daniel B. Lucas, LL.D.

[18] New York *Herald* August 31, 1855.

[19] "New York Hards and Softs," p. 70.

[20] New York Hards and Softs, pp. 71-2.

[21] New York Hards and Softs, p. 39.

CHAPTER V.

KELLY, AS ALDERMAN AND CONGRESSMAN—SKETCH OF MIKE WALSH—GREAT STRUGGLE FOR SPEAKERSHIP—STORMY DAYS IN CONGRESS—JOSHUA R. GIDDINGS PLAYS PART OF CASSANDRA—CULLEN OF DELAWARE TALKS OF EGGING THE CATHOLICS—KELLY REPLIES—READS IMPORTANT LETTER OF LAFAYETTE ON PRIESTS WHICH THE KNOW-NOTHINGS HAD GARBLED—KELLY THE ONLY CATHOLIC IN THE HOUSE.

Although a political rather than a chronological order has been observed in the preceding chapters, it is necessary now, for the preservation of important threads of the narrative, to speak of some events as they transpired.

John Kelly, then captain of that popular company the Emmet Guards, was elected Alderman for the Fourteenth Ward at the election in November, 1853, to serve for two years, beginning January 1st, 1854. Twenty-five or thirty years ago the people of the city of New York selected the strongest men in the community to represent them in the Board of Aldermen. To attain, at that period, the place of a City Father was an object of ambition with those who sought an attractive rank among their fellow-citizens, and many men were elected Aldermen who have since become famous in State and National politics. The Boards of which Mr. Kelly was a member in 1854-5, were exceptionally able bodies. At his election, November 8th, 1853, the whole number of votes cast for Alderman of the Fourteenth Ward was 1938, of which John Kelly received 1097; Thomas Wheelan, 566; and Morris Miller, 275. Mr. Kelly's majority over all was 256. He was a member of the Committee on the Almshouse Department in the Board of Aldermen, and of the Committee on Annual Taxes in the Board of Supervisors, the latter body being composed of the Mayor, Recorder and Board of Aldermen. The Aldermanic list for 1854 contains the well-known names of Nathan C. Ely, President of the Peter Cooper Insurance Company, and also President of the Board of Aldermen; William Boardman, jun.; Abram Wakeman, Amor J. Williamson, Thomas Christy, Anson Herrick, Daniel D. Lord, John Kelly, Richard Mott and Thomas Woodward. To these were added, in 1855, Isaac O. Barker, who succeeded Mr. Ely as President

of the Board, Orison Blunt, William Chauncey, George W. Varian, and others, the new members taking the seats of those whose terms expired in 1854.

Mr. Kelly's aptitude for affairs was soon recognized by his fellow members. President Barker placed him on no less than five committees in his second year in the Board, and appointed him chairman of the most important committee of the body—that on Annual Taxes in the Board of Supervisors. The members of this Committee were John Kelly, Henry R. Hoffmire and Daniel D. Lord. The Know-Nothings were then powerful in New York, and John Kelly was their sleepless opponent in the Board of Aldermen. His constituents were warmly attached to the man, and duly appreciated his services in official life. Some even went so far as to predict that he would soon become a dangerous rival to the celebrated Mike Walsh, then in the meridian of his popularity. Kelly and Walsh both lived in the Fourth Congressional District, and the latter was at that time representing the District with great acceptability in the Thirty-third Congress. The prediction was verified, and Kelly became Walsh's competitor at the ensuing election. The interest which this contest excited was not confined to the city, but extended to all parts of the State of New York. The plan adopted in these pages of giving outline sketches of the more conspicuous men with whose names that of Mr. Kelly has been associated in political controversies, certainly cannot be disregarded in the case of Mike Walsh, that wayward genius, gifted orator, and child of misfortune.

Michael Walsh was born in the town of Bandon, County Cork, Ireland, in 1815, and came to this country with his parents when he was a child. His father was an intelligent, industrious, hard working man, and the owner of a mahogany yard in Washington Street, New York. He entertained peculiar views in regard to a republican form of government, and on that account never became a citizen of the United States. His son Michael possessed a great deal of talent, and was educated at St. Peter's school in Barclay Street. When he was about sixteen years of age his father indentured him to a lithographer at Broadway and Fulton Street, with whom he learned that business. He was hardly twenty-one when he began to be exceedingly active in political affairs in New York, and the whole country. As an orator, for his age, he had probably no equal. He possessed literary ability, and was equally ready with pen or tongue. His forte, however, was sarcasm, and

unfortunately for himself he had an unrivaled knack for coining slang expressions. Many of the slang sayings peculiar to New York at this day were invented by Mike Walsh. He was naturally humorous, and was endowed with powers of mimicry that would have made his fortune on the stage. He could describe the weaknesses of human nature, and lay bare the motives which influenced public men in their actions with a mastery which no other man of his time possessed.

He was elected to the lower branch of the Legislature of New York before he was twenty-one years of age, and although he had little or no business ability, he distinguished himself in the House by his fine oratorical powers. His speeches were not only interesting and amusing, but often full of information. Without previous thought or reflection, he could make a capital off-hand speech, expressing his views very intelligently, and enlisting the attention of his audience throughout. The Democratic party in New York, at that period, was under the control and influence of men who had very little respect for Walsh, as his manners were not only objectionable, but sometimes his language was abusive. He was very strong, notwithstanding, with the people, and on that account was feared by the leaders. He was re-elected to the Assembly several times. He established and edited a paper which he called "The Subterranean," and his squibs, sometimes clever but often coarse, were sent forth in its columns. There was a furniture dealer in the Fifth Ward named John Horsepool, between whom and Walsh a bitter feud existed. Several times Horsepool had him arrested for libel. At last "The Subterranean" belched forth an angrier flame than usual, and Horsepool got his revenge. Walsh was indicted, tried and convicted, and sent for a short term to the penitentiary. But this served to excite sympathy for him and increase his popularity. He was a very companionable man, was full of anecdote, and had a very retentive memory. He recollected, without particular effort, nearly everything he had ever read, and if called upon would recount a story or any other matter with great precision. Among his companions, for several years, were Tom Hyer, the pugilist, and Jack Haggarty, son of the old New York auctioneer of that name. They generally made their headquarters at the Hone House, a hostelry kept by Morgan L. Mott. This was formerly the private residence of Philip Hone, and took its name from him. Walsh and his coterie would gather together here daily, and relate stories and anecdotes of their checkered experiences. Having no business occupations and some money to

spend, they all shortened their days by the immoderate use of alcoholic stimulants. As long as Mike Walsh survived he was the life of the company. During the Presidential canvass of 1844 Walsh formed a political organization on the East Side of New York city, which he named the Spartan Band. This body was in opposition to the Empire Club of Captain Isaiah Rynders. Both of these clubs were exceedingly active during the Polk and Dallas campaign, and rendered efficient service to the Democratic ticket. Walsh was proud of the influence he wielded over his men, and of the power his position brought to him as a leader. The singular notion occurred to him of giving high-sounding titles to his several lieutenants, and he consequently called them after the distinguished French Marshals who fought in the wars of Napoleon the First. All the men who were prominent in those days in the Spartan Band and Empire Club have long since passed away, with the exception of Captain Rynders, who still figures in New York politics at eighty-one, as erect of carriage and almost as brisk of step as he was fifty years ago.^[22]

A curious anecdote is told of the way in which Mike Walsh and David C. Broderick, subsequently Senator from California, ceased to be friends. After Walsh was sentenced to Blackwell's Island, an understanding is said to have been reached between them that Walsh should commit suicide on his way to the penitentiary by jumping from the ferry-boat into the East River. Walsh being regarded as the champion of the poor as against the rich, and many believing he had been sentenced to Blackwell's Island because of his advocacy of the interests of the poor, his death in the manner indicated, it was thought, would be avenged by his followers as that of a martyr in their cause. In view of the disgrace visited upon him, Walsh is said to have promised Broderick that he would sacrifice his life by drowning, and thus stir up the vengeance of the populace in retaliation upon his and their oppressors. But Walsh showed better sense than to do so foolish a thing, and Broderick became his enemy, and branded him as a coward, because he did not kill himself according to promise.

During the summer months Mike Walsh was in the habit of frequently sleeping all night in one or another of the parks of the city, because, as he claimed, the night air hardened his constitution. For the same reason he seldom wore an overcoat in winter. He was an inveterate joker, and was in his element whenever he could play a trick on the unwary or uninitiated. He

was the author of the Frank McLoughlin hoax, which all old New Yorkers will remember. McLoughlin was a noted sporting man in New York forty years ago, and a great toast among horse men, pugilists, and like people of that day. He was one of the California pioneers of 1849 when the gold excitement broke out. In a few years he returned to New York. Mike Walsh happened to be passing through the City Hall Park, and met McLoughlin as he was on his way from the ship to the house of his relatives.

“Well, Frank,” said Mike, “I see you have returned.”

“Yes,” was the reply.

“Do you expect to remain here?”

“Yes, sir,” said Frank, “I hope to spend the remainder of my days in New York. I have been in no place since I left here that I like as well.”

“I suppose,” said Mike, “all of your friends will be glad to see you?”

“Yes, I am sure they will, and I shall be glad to see them.”

Thus they separated. Walsh hastened over to the Pewter Mug on Frankfort Street, Thomas Dunlap proprietor, then known as Tammany Hall. Passing into the bar-room, Walsh exclaimed to those present that he had just seen Frank McLoughlin, and that he had gone to a public-house on the Bowery, and requested his friends to call on him there at once. McLoughlin being a favorite, a great many persons started out to find him, but as it was Sunday they encountered some difficulty in obtaining admittance to the hotel. The bar-keeper there perceived the joke in an instant, and said McLoughlin had been at the hotel, but had gone to John Teal’s, on the corner of Stanton and Forsyth Streets, having left word, if any of his friends should call, they were to go there and see him. Walsh took care to circulate the hoax all over the city, sending people to various points in quest of McLoughlin, who was the bearer, quoth Mike, of many letters and presents to the boys in New York from old acquaintances in California. Proprietors of drinking saloons reaped a large harvest by selling extra quantities of their beverages to the victims of the hoax. In sportive tricks of this sort Mike Walsh was continually engaged.

In 1852 he was nominated for Congress in the Fourth Congressional District, and elected. He served in the House of Representatives for two years, and attracted by his peculiar powers much attention in that body. He

was nominated the second time in 1854 by the Hard Shells. The Soft Shells nominated John Kelly. A very bitter and exciting contest followed. Many thought Walsh was invincible in the Fourth District, but his opponent was very popular, and the struggle between them was carried on with great enthusiasm and energy. Mr. Kelly came out the victor, but only with eighteen plurality. The whole number of votes was 7,593, of which John Kelly received 3,068; Mike Walsh, 3,050; Sandford E. Macomber, 824; John W. Brice, 626; James Kelly, 1; and scattering, 24.

After the election Walsh served notice on Kelly that he would contest his seat, on the ground that illegal votes had been cast in the Fourteenth Ward, where the majority against Walsh was quite large. Mr. Kelly at once acted on information that had been given to him by a friend of Walsh's father, the late John Griffin, that Walsh was not a citizen of the United States, his father not having been naturalized, and he himself having neglected to take out citizen's papers when he reached the proper age. He was not, therefore, a citizen of the United States. A certificate of his baptism was procured from the parish priest at Bandon, Ireland, where he was born, and Walsh, fearing the result of an exposure, withdrew, and the contest ended.

The subsequent career of Mr. Walsh was a checkered one. He was employed by George Steers, the well-known ship-builder, as his agent to go to Russia to negotiate a contract in his favor to build ships for that Government. Walsh obtained letters of introduction from the Secretary of the Navy of the United States to officials of the Russian Government, and set out on his mission with fair prospects of a successful issue to the business. Instead, however, of conducting the affair well, the unfortunate man fell into riotous living in Europe, and spent the remittances his employer sent to him. He returned to the United States in the steerage of one of the steamships plying between Liverpool and New York.

He was never a candidate for office again, after his memorable contest with Mr. Kelly in 1854. In the winter of 1859 poor Mike, while on his way home one night, slipped and fell down a cellar-way on the 8th Avenue, near 16th Street, and was supposed to have been instantly killed, as he was found dead the next morning by the police. Although at the time it was thought that he had been murdered, the evidence taken at the inquest showed that this was not the case, and the jury returned their verdict that his death was caused by an accidental fall in an open cellar-way. His death called forth

expressions of profound sorrow in New York, for, in spite of the infirmities of his nature, Mike Walsh had a powerful hold on the popular mind, and over his new-made grave many an eye was dimmed with unhidden grief, and all that was gentle and noble in his nature was feelingly recalled.

Although John Kelly had been an ardent Hunker, or Cass and Butler man, in 1848, he was now acting with the Soft Shells, having, when the reconciliation took place between the Hunker and Barnburner factions in 1849, followed the leadership of William L. Marcy and Horatio Seymour, the two eminent Hunkers, who became Soft Shells. It was by the Soft Shells he was nominated against Walsh in 1854. The country was roused to a high pitch of excitement by the Kansas imbroglio when he took his seat as a Representative of the city of New York in the Thirty-fourth Congress. For the first time in the history of the government a purely sectional candidate, sustained exclusively by sectional votes, was elected Speaker of the House of Representatives in 1856. This was Nathaniel P. Banks, of Waltham, Massachusetts. The struggle was the most bitter and protracted one that ever took place in the House, beginning when Congress assembled on the first Monday of December, 1855, and continuing from day to day for nine weeks. The contending forces were so evenly balanced, and party spirit ran so high, that it seemed impossible to break the dead-lock. There were three candidates in the field, and the followers of each supported their respective favorites with unflinching resolution. William A. Richardson of Illinois, who had brought in the Kansas-Nebraska bill at the last session, and carried it through successfully, was the caucus nominee of the Democrats; Nathaniel P. Banks, of Massachusetts, of the Republicans; and Henry M. Fuller, of Pennsylvania, of the Know-Nothings. It was the beginning of the great sectional conflict, and the ominous mutterings of the storm were now heard in the House of Representatives whose thunder in a few years was to break forth on a hundred battle-fields. There was Joshua R. Giddings, the ancient Abolitionist, who for years like Cassandra in the gates had been uttering prophecies of woe, and now in anticipation of victory was goading the Hotspurs of the South to fury, such as Keitt, and Brooks, and Caskie, and Bowie, and Extra Billy Smith, and Fayette McMullin. There, too, were Humphrey Marshall, Henry Winter Davis, Zollicoffer and Cullen, Know-Nothing birds of evil, shouting their No-Popery cry in the House, like Lord George Gordon in the British Parliament, seventy-five years before. There were Alexander H. Stephens, who on the outbreak of sectionalism left the

Whigs forever, and now took sides with the National Democrats, John Kelly, Howell Cobb, James L. Orr, and William A. Richardson, marshalling the forces of the administration, and striving to pluck success from the aggressive and powerful sectionalists. They would have succeeded in electing the Democratic candidate, William Aiken, finally settled upon in place of Messrs. Richardson and Orr, but for the officious intermeddling of a blunderer, who revealed the plans of the Democrats before they were fully matured, and nominated Aiken in a theatrical speech which repelled the two or three wavering votes, only needed to elect him. This was Williamson R. W. Cobb of Alabama. In the homely words of Mr. Stephens, as will be explained more fully a few pages further on, he “plugged the melon before it was ripe.”^[23] It was true that Aiken was first nominated by John Kelly in a few tentative words, that attracted several and did not repel any votes. Mr. Kelly made no kite-flying speech, and the anti-Banks Whigs, such as John Scott Harrison, Haven, Cullen and Barclay, who opposed an out-and-out Democrat, were interested in Mr. Kelly’s off-hand manner of presenting William Aiken’s name, and showed a disposition to vote for him as against Banks. Harrison had avowed his intention to do so.^[24] But W. R. W. Cobb of Alabama, let the secret out that Aiken was the Democratic dark horse, and the masterly plans of Alexander H. Stephens and John Kelly, just as victory was in reach, were dashed to the ground. An opinion further prevailed among many that one or two Democrats were corruptly bought off.

On the 18th of December, 1855, after nearly two weeks had been spent in a fruitless effort to organize the House, John Letcher of Virginia proposed that all the members should resign, and new elections be held. This proposal was not made seriously, but rather as a protest against the dead-lock. Joshua R. Giddings of Ohio chose to treat the proposition seriously, and on the 18th of December spoke of the Democrats as follows: “These are the gentlemen who propose here to the majority of the House, that we shall resign and go home, if they will. The proposition is unfair. We are endeavoring to organize this House; they are endeavoring to prevent an organization. To illustrate my idea, I will remark that I am reminded of the criminal standing upon the gallows, the rope fastened to the beam over his head and around his neck, the drop on which he stands sustained by a single cord, which the sheriff stands ready with his hatchet to cut. ‘Now,’ says the criminal to the

sheriff, 'if you will resign, I will, and we will go home together, and appeal to the people.' Let me say to gentlemen, we are each of us now writing our biography with more rapidity than we generally imagine. Gentlemen of the Democratic party, I say again, in your attempt to extend this sectional institution, you have called down the vengeance of the American people upon your heads. The handwriting upon the wall has been seen and read of all men. Your history is written, and your doom is sealed; the sentence is pronounced against you, 'depart, ye cursed!' I have already given my views upon Republicanism. They are expressed in the language of that immortal instrument the Declaration of Independence. That is the foundation of my Republicanism, as it is that of a vast majority of the Whigs and Know-Nothings of the North. You, gentlemen of the Democratic party, stand forth here denying this doctrine. You say men are not endowed by their Creator with the inalienable right of liberty. * * * I would to God I could proclaim to every slave in Virginia to-day—You have the right of self-defence, and when the master attempts to exercise the right of dominion over you, slay him as he would slay yourselves!"^[25]

Here then the incendiary appeal in favor of a servile insurrection, which John Brown tried to carry out with arms in 1859, was openly made on the floor of Congress in 1855.

That Giddings was either blinded by his fanaticism, or was a dishonest pettifogger, became clearly established a few weeks after he made this seditious speech. On the 18th of January, 1856, the House still being in the wrangle over the Speakership, Mr. Giddings took the floor, and advocated the adoption of the plurality rule. Mr. Banks had the largest number of votes of the several candidates. Giddings, who had bitterly opposed this rule in 1849, now, to help his candidate, as earnestly advocated it.

He said: "We have but one precedent in the history of the Government for our guidance. In 1849 this body found itself in the same condition for three weeks that it now finds itself in during almost seven weeks. There were then, as now, three parties in the House. No one party had sufficient numbers to decide the election. No one party now has sufficient numbers to elect."

Mr. Jones of Tennessee rose to a question of order.

Mr. Giddings: "I do not blame the gentleman (Mr. Jones) for rising to a question of order. He then stood with the party which established a precedent which shall go down in all time to the condemnation of his party. I mean that under the circumstances, the Democratic party, as a party, in its caucus, speaking by a party organ, then declared the plurality rule to be the proper and only rule which could be adopted for the organization of the House."

Mr. Howell Cobb, "Mr. Clerk, the gentleman is mistaken."

Mr. Giddings: "No, sir; I stand upon the record. I have the record before me, and the gentleman must contradict that before he contradicts me. I read from the Congressional Globe. 'The House had now' says the record, 'reached the contingency contemplated in the proposition of Mr. Stanton. It had exhausted the three votings therein provided for, without a result, and had arrived at that point where, in fulfillment of an agreement entered into between the two parties, a Speaker was to be elected by a plurality vote.' Here, sir, stands the record. Now we stand precisely where we then stood. I do not know the number of times that we, on this side of the House, have endeavored to follow this established precedent that was then adopted. It was adopted by gentlemen on the other side of the House, and under it the gentleman from Georgia (Mr. Cobb) himself was exalted to that chair. The Republican party stands ready to carry out that precedent now. The Republicans stand upon the great principle which was avowed by both of the great parties, Whigs and Democrats."

Mr. Cobb: "I corrected the gentleman in a statement of fact. I rise now for the purpose of putting that statement correctly before the country in connection with his remarks. He stated that the Democratic party had in 1849 adopted the plurality resolution in caucus. The truth is simply this: the plurality rule was adopted in caucus by the Whig party. When it was reported by the Committee of Conference of the two parties to the Democratic caucus, it was rejected there by a decided majority. And, if he desires to stand by the record, there was no man on the floor more violent or more denunciatory of the operation of the plurality rule than the gentleman from Ohio. My recollection is that he offered a substitute for it, which declared that it was wrong in principle, dangerous in its tendency, and ought not to be adopted."

Mr. Giddings: “I only repeat what was said by a leading member of the Democratic party, the Hon. Mr. Stanton, of Tennessee, on this floor, and in the presence of the gentleman from Georgia, and his party in this House. That gentleman sat silently in his seat when Mr. Stanton declared the plurality rule to have been agreed to by the Committee, and he did not deny it; no member of his party denied the fact. I call the attention of the country to the fact that in their caucus the Democratic party, as a party, agreed with the Whig party, as a party, that this should be the rule. I do not involve gentlemen; I only involve the Democratic party. I mean to pin it on that party.”

Mr. Edmundson: “Anybody who asserts that the Democratic party agreed to adopt the plurality rule, asserts what is not true.”

Mr. Orr: “I was present on the occasion to which I suppose reference is made; and I state distinctly that no such resolution as that referred to by the gentleman from Ohio was adopted by the Democratic caucus, either directly or indirectly.”

Mr. Millson, and other members who had attended the Democratic caucus of 1849, made similar denials.

Mr. Cobb: “Fortunately the gentleman from Tennessee (Mr. Stanton), although not a member of this House, is here, and I assert, without one word of conference with him, that he never intended to say before this House, nor did a single member of the House at that time so construe his language—that the Democratic party had adopted the plurality rule in caucus.”

At this point Mr. Jones, of Tennessee, referred to the *Globe* of 1849, and showed that the words put in Mr. Stanton’s mouth by Mr. Giddings had not been used by him at all, but were words of the reporter distinctly employed in another connection. This revelation, so damaging to Mr. Giddings’s character for fair dealing, was clinched by Mr. Letcher, who quoted from a speech made in the House by Mr. Giddings himself, in 1849, five days after the adoption of the plurality rule, in which he declared the Whig party had forced the rule upon the House. Having quoted the passage from Mr. Giddings’s speech contradictory of himself, Mr. Letcher remarked: “Now, Sir, I submit that whatever may have been the opinion of other people, it does not become the gentleman from Ohio to rise here in his place, and

undertake to charge that the Democratic party adopted that rule, after he has sent out to the country and published a speech, revised and printed in pamphlet form, in which he purports to give the facts as they occurred in 1849.”

Mr. Giddings: “I repeat what I said when I first rose, that the Democratic party in its caucus, speaking through its committee, did agree to the resolution.”

Mr. Edmundson: “I want to let the gentleman from Ohio know that he is asserting what is not true. I am stating facts within my own knowledge. The Democratic caucus voted down the resolution, and refused to adopt it. Now, any statement made in conflict with that, I say this from my own personal knowledge, is a statement which is not true, and he who makes it knows, at the time he is making it, that it is not true.”

Mr. Giddings:

“‘Go, show your slaves how choleric you are,
And make your bondmen tremble,’

but do not come here to make any imputations upon me.”

Mr. Edmundson (advancing towards Mr. Giddings, who had sprung Shakespeare on him unexpectedly): “I want to hear what the gentleman from Ohio is saying.”

Mr. Giddings: “Let gentlemen keep cool.”

Mr. Edmundson: “I will keep cool, if you will state the facts.”

At this point there were loud cries of “Order, order,” and much confusion and excitement in the hall.

Mr. Cobb: “When the gentlemen from Ohio stated that the Democratic party had adopted as a party the plurality rule, I unhesitatingly denied that statement. When he said that the resolution was introduced by Mr. Stanton, he read the language of Mr. Stanton to show that he made the statement to the House, and to the country, to that effect. I stated then that it was a misconstruction of the language of Mr. Stanton, and that it must have been so from the facts as they were. Now, Mr. Clerk, I ask this House, and I put it to the candor of every man on this floor, if, at the time this declaration was

made, it was not its understanding that the language quoted was the language of Mr. Stanton?"

Several members: "He so stated, expressly."

Mr. Cobb: "I put it to the memory and candor of gentlemen here, if the gentleman from Ohio did not so intend it, then he made a charge against the party without any particle of ground to stand on. If he did intend it, it was an effort to falsify the record on which he was standing. This language was the language of the reporter, giving an account of the proceedings of the day, and does not occur in connection with Mr. Stanton's name at all. There is a vote intervening between the time when Mr. Stanton addressed the House, and the remarks here made by the reporter, which had no earthly connection with them whatever. Where, then, is the point of the gentleman's remarks when he charges me with sitting by and allowing Mr. Stanton to state that the plurality proposition was the result of an agreement between the two parties, unless it be because he had put in Mr. Stanton's mouth the language of the reporter? I submit the facts to the House; I shall not characterize them."

Mr. Orr: "Since the debate commenced, Mr. Stanton has come within the limits of this hall. I have had an interview with him, and he has authorized me to state, that when the proposition to elect by plurality was presented to the Democratic caucus, it was almost unanimously rejected by them, and that when he offered the plurality resolution he did it upon his own individual responsibility."

These crushing refutations of the charges of Mr. Giddings raise a strong doubt of his honesty in this matter. He was a sharp politician, and sought without regard to the means to elect Mr. Banks Speaker of the House.

The Know-Nothings, recruited as were the Republicans from the same parent stem of John Adams Federalism, were the allies of the Sectionalists led by Mr. Giddings in 1856. The folly of the Southern Know-Nothings in the great conflict over the Speakership in the Thirty-fourth Congress was remarkable.

Some of them, like Zollicoffer and Humphrey Marshall, were afterwards such violent Secessionists that they became Generals in the Confederate army. Even Henry Winter Davis was so much opposed to the Republican

party at this time, and for several years after, that he denounced it as a miserable, useless faction, and sneeringly asked, "Why cumberst it the ground?" Mr. Zollicoffer, a Southern man, of no mean powers, with surprising inconsistency refused to vote for a Democratic candidate for Speaker when none other had the remotest chance to beat Banks, and at the same time inveighed against Mr. Campbell, a Pennsylvania Know-Nothing, for voting for Banks, and thereby aiding the Sectionalists in opening the door for disunion and civil war. These men and their congeners in bigotry, like the blood-stained fanatic Lord George Gordon before them, strove to excite a religious war, and preached proscription of foreigners, and persecution of Catholics in the American Congress. No union with slaveholders, was the platform of Joshua R. Giddings; no-Popery, and no citizenship for foreigners, the platform of Henry Winter Davis.

"I go against the Catholics," said Mr. Cullen of Delaware, during the same Speakership contest. "I never will support them. They are not fit to be supported by Americans. The people of the State from which I come look upon them with abhorrence. A Catholic priest, a short time ago, came among us. He was a stranger. He taught the doctrine of purgatory. After he had proclaimed that doctrine, an honorable gentleman of the State of Delaware, and who at the last election ran for Governor on the same ticket with myself, declared that he ought to be egged! I vote against the Catholics!"

Mr. Dowdell, of Alabama: "I am exceedingly pained at the spectacle which has been presented to-night. When Rome was burning Nero was fiddling and dancing. Now, sir, we are standing upon a slumbering volcano. Upon our borders in the common territory of this country, our people are marshalling their forces to try the great question whether they are able to govern themselves, it may be with rifles in their hands. I have been reminded by the ludicrous scenes witnessed here of a parallel to be found in a book entitled, 'Georgia Scenes.' Ned Brace, the hero of the story, happened to be in a city during the prevalence of a great fire, the flames in red volumes were rising higher and higher each moment, the people were running to and fro in great consternation, women and children were screaming through the streets, and the midnight fire-bells were sending out their rapid and startling sounds, when Ned quietly took his position on the sidewalk. About this time a large old man, nearly out of breath, came

running by in great haste, whose home was threatened with destruction perhaps, and was abruptly stopped by Ned with the interrogatory: 'Sir, can you tell me where I can find Peleg Q. C. Stone?' 'Damn Peleg Q. C. Stone, my house is on fire;' was the impatient reply. Now, sir, while the fire of civil war is threatening to be kindled upon our borders, questions are propounded here quite as impertinent at this time of danger, and calculated to provoke similar impatience, if not a similar reply. I have no fear that any party in this country opposed to religious liberty will ever be strong enough to control its legislation."

Mr. Paine, of North Carolina: "I ask whether any gentleman in this House is willing to see the Government of the United States, and the Congress of the United States, in the hands of the Roman Catholics of this country? This is a matter which enters into the private feelings, however unwilling members may be to expose it. These very gentlemen themselves would not trust the government of the country and Congress in the hands of Roman Catholics."

Mr. Valk, of New York: "The honorable gentleman from Alabama (Mr. Dowdell) took occasion to draw the attention of the House to the once living embodiment of that portrait on my right—that of La Fayette. I frankly and freely do honor to his memory. But the gentleman forgets one remark which fell from the lips of that man when living. He said: 'If ever the liberties of this country are destroyed it will be by Catholic priests.'"

Mr. Bowie of Maryland: "Sparks says that is a lie."

At this point Mr. Kelly tried to get the floor to repel the furious assaults of the Know-Nothings upon his church, of which the preceding extracts are but a few specimens.

Mr. Kelly: "I should like to explain my vote."

The Clerk: "The clerk would remind the gentleman from New York that it is too late. He can proceed, however, if no objection is made." There were loud cries of "object!"

Mr. Kelly: "Does the Clerk decide that I am not in order?"

The Clerk: "The Clerk makes no decision."

Mr. Pennington: "I move that the gentleman from New York (Mr. Kelly) have leave to explain his vote, and I do so because the gentleman is a Catholic, and the only one I believe of that faith upon this floor. I think that under the circumstances it would be only common courtesy to hear him." Loud cries of "Hear him."

Mr. Bowie: "Hear him; he is the only Catholic here."

Mr. Washburn: "I will yield to the gentleman for ten minutes." Mr. Kelly, without previous preparation, now proceeded to make his second speech in the House, January 9, 1856, his first having been delivered December 19, 1855, in reply to Mr. Whitney, a New York Know-Nothing.

Mr. Kelly: "I am aware, Mr. Clerk, that it is very improper to bring religious matters into legislative business at all but when I hear such remarks as have fallen from the intelligent gentleman who has just spoken, I feel that it becomes me, as a member of the religious body which the gentleman has been assailing, to say something, at least, in its defense.

"The accusation is made here that the Catholic religion is dangerous to the institutions of this Republic. Sir, no man possessed of any intelligence would give any weight to a charge of that sort. When have the Catholic clergy urged their flocks to support particular individuals for office? When have they from their pulpits urged their congregations to support particular measures, or to vote for particular men? There is not in the history of this country an instance in which the Catholic clergy have so acted. But can the same be said of other religious denominations in this country? In the Eastern portion of the Union you will frequently find ministers from their pulpits invoking their flocks to vote for measures which interest them, and the section of the Union to which they belong. Now, Mr. Clerk, I am a Catholic, and I love this Union. I defy any man in this Congress to say that he is a better citizen, or more devoted to the true interests of this Union than I am. This is not only my sentiment, but it is the sentiment of the religious body to which I belong. It is the sentiment of our priesthood.

"I let the accusation that the Catholic religion is dangerous to our beloved country, go for what it is worth; for I am satisfied that no sane man would make such an assertion. But this charge has been frequently made since we first met here. When my colleague, Mr. Valk, made several charges against the Catholic religion, I had not an opportunity to say one word in reply but,

sir, I am surprised that the gentleman from Long Island, a man of intelligence and a Christian, as I take him to be, should rise upon this floor, and denounce his fellow Christians because he differs with them in opinion upon religious questions.” Mr. Valk, who had indulged in such denunciation, nevertheless, made a denial at this point.

Mr. Kelly: “The gentleman from North Carolina, Mr. Paine, asks, would you like to see this Government in the hands of the Catholic people? Suppose that it was in the hands of the Catholic people, have the Catholic people of this Union ever been false to its true interests? Why, sir, look at the early history of our country, and look to that State which borders upon this District. A Catholic community existed there, which extended a liberality to all other religions that could not be found in other colonies at that time. While Calvert, Lord Baltimore, was founding a free colony there, religious persecution was going on in other colonies; and when people were persecuted in other colonies, where did they go that they might worship God according to the dictates of their own consciences? They came to the Catholic colony of Maryland. These are the Catholic people to whom the honorable gentleman from Alabama has referred. Such, sir, is the history of the Catholics in this country, and such has it ever been. These people when they leave their homes in Germany, in Ireland, or in whatever country they may be found, and come here, it is to make this country their home. They imbibe the spirit of true patriotism before they leave the Old World. They come here with their parents, brethren, and friends, because here they can enjoy their liberty. And tell me, sir, is not the assertion, that they are inimical to your liberties unfounded? Are not the people who make it blinded by prejudice and bigotry? Why, sir, foreigners have always composed a large portion of the army of the country. They have fought side by side with our native-born citizens in every battle that has been fought from the earliest period of our existence as a nation, down to the present time. They have been working in a common cause to promote common objects—the blessings and prosperity of this Union. Let me say to this House, if they come not here with wealth, they come with willing hands to work and earn their bread upon your public works, from their very commencement to their completion. How could your great public works have been constructed without these men?”

The Know-Nothings, not liking Kelly's argument, at this point made a determined effort to cut him off.

Mr. Russell Sage, of New York: "I move that this House do now proceed to vote for Speaker, and upon that motion I demand the previous question."

Mr. Smith, of Alabama: "I hope the gentleman from New York, Mr. Kelly, will be allowed to proceed with his explanation."

Mr. Eustis, of Louisiana: "I hope Mr. Kelly will be allowed to proceed by unanimous consent."

Several members objected.

Mr. Leiter, of Ohio: "I appeal to the House to withdraw all objection, and allow the gentleman from New York to go on with his speech." Objection was again made.

Mr. Kelly: "I do not care about proceeding further. I wished to deny the charges made by the gentleman from North Carolina, Mr. Paine, and by the gentleman from New York, Mr. Valk, and having done that I am satisfied to let the matter rest for the present."^[26]

Mr. Kelly, had he not been cut off by objections, intended to read the letter of La Fayette, written from Paris in 1829 to a Protestant citizen of New York, whose guest the old patriot had been during his last visit to this country. This letter Mr. Valk had grossly perverted. At the earliest opportunity during that session Mr. Kelly replied to Mr. Valk and Mr. Smith, and read the La Fayette letter. The sentences in it which Mr. Valk had so garbled were in reality as follows:—"But I must be permitted to assure you that the fears which in your patriotic zeal you seem to entertain, that if ever the liberty of the United States is destroyed it will be by Romish priests, are certainly without any shadow of foundation whatever. An intimate acquaintance of more than half a century with the prominent and influential priests and members of that Church, both in England and America, warrant me in assuring you that you need entertain no apprehension of danger to your republican institutions from that quarter."

FOOTNOTES:

[22] Captain Rynders died suddenly about the middle of January, 1885, having enjoyed his usual good health up to within a few hours of his demise.

[23] Life of A. H. Stephens, by Johnston & Browne, p. 306.

[24] Ibid, p. 306.

[25] Congressional Globe, 1st Session, 34th Congress, p. 44, *et seq.*

[26] Cong. Globe, 1855-56, Thirty-first Congress, 1st Session, pp. 191, *et seq.*

CHAPTER VI.

KNOW-NOTHINGS JOIN REPUBLICANS TO ELECT BANKS—SEWARD BECOMES LEADER—SKETCH OF HIM—DEFEAT OF THE DEMOCRATIC PARTY—CAUSES OF IT—FREQUENT FIST-FIGHTS BETWEEN MEMBERS—DRUNKENNESS AND ROWDYISM IN CONGRESS—ANGRY DISPUTE BETWEEN KELLY AND MARSHALL—KELLY'S POPULARITY IN THE HOUSE—HIS RELATIONS WITH ALEXANDER H. STEPHENS.

In the last chapter the strange spectacle was presented of Southern Know-Nothings, while declaring their opposition to the Abolitionists, actually aiding them to elect a Speaker, and offering as an excuse for their conduct the dread that the Catholic Church might obtain control of the Government! The Democratic caucus had adopted a resolution denouncing the enemies of civil and religious liberty. Humphrey Marshall and the Southern Know-Nothings declared this was an insult to them, and not only Marshall, but Cox of Kentucky, and Zollicoffer and Etheridge assigned the same cause as presenting an insuperable obstacle to their voting for any Democrat for Speaker. The Know-Nothings and Abolitionists, having nothing in common, united to overthrow the party of the Constitution, the former to prevent the Catholics from seizing the Government, the latter to get rid of slavery. This ridiculous pretext of the Know-Nothings concerning the political ambition of the Catholic Church was most effectively answered by the fact that out of the whole 234 members of the House, and 7 Territorial Delegates, John Kelly was the only Catholic in the Thirty-fourth Congress. Mr. Kelly declared truly that no sane man would offer such an insult to the intelligence of the country, as a justification for his conduct, but Davis of Maryland, Cullen of Delaware, Whitney of New York, and other proscriptionists were wedded to their idols, and in order to strike down an imaginary enemy, they became the tools of a real one.

For nine weeks the stubborn contest continued. The country, from one end to another, was roused to feverish excitement. It was the first time the Republican party had shown front in a National contest. Ever since the Seward-Fillmore quarrel had led to the overthrow of the Whig party in 1853, the Freesoilers had been a heterogeneous mass of the Northern

population, unorganized, and with no common object in view. Mr. Seward keenly felt that success in the present struggle for the Speakership was vital to the perpetuity of the Republican party. He summoned to Washington his ablest friends, Thurlow Weed, Horace Greeley and James Watson Webb. These four famous leaders soon organized their followers in the House into a compact body. Mr. Zollicoffer, who subsequently became a Secessionist, and fell in battle as a Confederate General, characterized them by name on the floor of the House as the chiefs of the lobby. In the course of a speech on the 20th of December, in which he declared, with a short-sightedness unworthy of so clever a man, that he would not vote for a Democrat against Banks, Zollicoffer said: "I see here a great organization, numbering from one hundred and four to one hundred and six members, who are steadily voting for Mr. Banks. Whilst I have reason to believe that the great lobby spirits who control that organization are Greeley and Seward, and Weed and Webb, men of intellect and power at the North, who are as bitterly opposed to the American party as they are to the Democratic party, I do, upon my conscience, believe that there are gentlemen voting for Mr. Banks, from day to day, who do not belong to the Abolition, or, as they style themselves, the Republican organization. For example, I cite the gentleman from Pennsylvania (Mr. Campbell), at whose position, as he announced it here the other day, I was surprised. He says he is an American, and he spurned the idea that the American party at the North were identified with the Freesoilers of the North and yet he casts his vote steadily against a conservative National American of his own State, and gives it to Mr. Banks, a Free Soil Democrat, who has affiliated, as his record clearly shows, with the most ultra and violent Free-soil and Abolition factions."

The Capitol was alive with intrigues and with intriguers from every part of the country. The leaders retired to the Committee rooms day by day, and night by night, and runners kept them constantly informed of the movements of their adversaries. Counter-movements followed, and new plans succeeded each other on every side without avail. It was an interesting moment for the historian; the events of the hour were big with the fate of the country. Federalism and Democracy were once more, as in the year 1801, locked in a death struggle. Then, as now, it was the party of the Constitution against the party of Centralization. The Know-Nothings held the balance of power, and of course the followers of the man who wrote his own epitaph in these words, "Author of the Declaration of Independence,

and of the Statutes of Virginia for Religious Freedom,” had nothing to expect from that pestilent band of bigots. Sprung from the same parent stem of John Adams Federalism, Joshua R. Giddings and his Abolitionists, and Henry Winter Davis and his Know-Nothings, were natural allies against the disciples of Jefferson.

Seward, Weed and Greeley, to their credit be it recorded, having led the anti-Know-Nothing branch of the Whig party in New York, were not personally influential with members of the American party in Congress. But the Republican leaders were men of varied resources, and Thurlow Weed, the Whig Warwick, was equal to any emergency. The fierce philippics of Henry A. Wise against the Know-Nothings in the memorable Virginia campaign just closed, and the tremendous blows which Alexander H. Stephens had dealt the party of dark lanterns in his then recent Georgia campaign, were artfully spread abroad among the proscriptionists in Congress, and the bitterness of their defeat in both those States added to the chagrin which the unanswerable arraignments of Wise and Stephens excited among them. The resolutions of the Democratic caucus, especially the one denouncing the enemies of civil and religious liberty, and the alleged contradictory constructions placed upon the Kansas-Nebraska bill by Northern and Southern Democrats, were also used by the Seward men as electioneering appeals for Mr. Banks. In one or two Democratic quarters the Republican leaders were strongly suspected of employing corrupt appliances.

The great anti-Know-Nothing speech of Alexander H. Stephens at Augusta, largely quoted from in a former chapter of this book, was now being used by the Republicans to increase Know-Nothing enmity to the Democrats. On his part Mr. Stephens was a tower of strength to the Administration men in the House. He appreciated the magnitude of the struggle, and was indefatigable in his attempts to defeat the Republican and Know-Nothing alliance. He rejoiced at the prominence which the Republican leaders were giving to the victory over Know-Nothingism in his own State. “I think,” he said in a letter to his brother, “the Georgia election is more talked of than that of any other State in the Union.”^[27]

Lewis Cass, Stephen A. Douglas, C. C. Clay, R. M. T. Hunter, Judah P. Benjamin, and other Democratic Senators, were in frequent consultation with Alexander H. Stephens, John Kelly, Howell Cobb, James L. Orr,

William A. Richardson, and other Democratic members of the House. The relative strength of the two leading parties in the House, seventy-four Democrats and one hundred and four Republicans, was the subject of anxious thought, and all at length saw that Mr. Richardson, the caucus nominee of the Democrats, could not be elected. He was, therefore, dropped, and James L. Orr substituted as the Democratic candidate. As week after week elapsed, it became evident that the dead-lock could only be broken by the abandonment of a straight party man by the Democrats. Even then no election was likely to take place unless the plurality rule should be adopted. About ten days before the end of the contest, as alluded to already, a private consultation took place between Mr. Stephens, Mr. Kelly, Mr. Orr, and Mr. Cobb, at which the nomination of William Aiken of South Carolina was decided upon as that of the only available candidate against Banks. But in order to render this movement effective, the utmost secrecy was necessary until the time should have come to bring out the new candidate. This plan originated with Mr. Stephens. Mr. Kelly entered heartily into it. To him was assigned the important duty as a Northern Democrat of putting Mr. Aiken in nomination. He was only to do this, when Banks's election should appear imminent, or after the plurality rule had been adopted, with Orr still running against Banks. The nomination was not to be enforced by any set speech on the part of the mover, which might show design and premeditation, but was to be made as if on the impulse of the moment, and as the sudden act of an individual who had given up all hope for Orr, and now named Aiken as a sort of dernier resort to beat Banks.

It showed that the Democratic leaders reposed extraordinary confidence in Kelly's coolness, tact and good judgment, that he should have been selected to initiate this most delicate parliamentary move. Mr. Orr had agreed to withdraw at the proper moment in Aiken's favor. In the meantime Mr. Stephens was to manage the preliminary strategy necessary to put the train of affairs in motion. He sounded various members in casual conversation, and found men of the most opposite views quite favorable to Aiken, as a compromise candidate against Banks. At length, February first, when it seemed probable that Banks would be elected, and at the right moment, with admirable brevity and effect, John Kelly rose and nominated Aiken. But before Orr could get the floor to withdraw in favor of Mr. Kelly's nominee, Williamson R. W. Cobb, of Alabama, who had found members who were in the secret predicting that Aiken would win, now

sprang up and in a cut-and-dried-speech, and with a great parade of theatrical language, declared that the time had arrived to name the winning man, that he had the pleasure of offering an olive-branch to all those who opposed the Republicans, and after giving everybody to know that he was about to announce a grand parliamentary stroke on the part of the Democrats, he nominated William Aiken of South Carolina. The effect of that supremely ill-timed speech was to drive off votes which Mr. Aiken would have otherwise won, for as soon as it dawned upon the Whigs and Know-Nothings, who had not gone over to Banks, that the latest move was a Democratic “olive-branch,” a sufficient number of them reconsidered their intention to vote for Aiken, and Banks was elected Speaker the next day, under the operation of that extra-constitutional device—the plurality rule.

The votes of John Hickman and David Barclay, two Democrats from Pennsylvania, were not given on the final ballot to the candidate supported by the Democratic side of the House. They were much censured for their course.

The Congressional Globe contains the following:

“House of Representatives, Friday, February 1, 1856.

Mr. Ball. I offer the following resolutions, and upon it I demand the previous question:

Resolved, That Nathaniel P. Banks, of Massachusetts, be, and he is hereby declared Speaker of this House for the Thirty-fourth Congress.

Mr. Kelly. I desire to offer a substitute for that resolution.

The Clerk. It is not in order to do so now, as the previous question has been demanded.

Mr. Kelly. Then I give notice, that if the pending resolution is voted down, I shall hereafter offer the following:

Resolved, That William Aiken, of South Carolina, be, and he is hereby elected Speaker of this House, for the Thirty-fourth Congress.”

The resolution declaring Banks the Speaker was lost by 102 ayes to 115 noes. Then, before Mr. Kelly could obtain the floor to name Mr. Aiken, Williamson R. W. Cobb made his fatal olive-branch speech in favor of

Aiken, and Mr. Washburne of Illinois moved to lay “that olive branch on the table.” The House by a vote of 98 to 117 refused to table the resolution. The main question of declaring Aiken Speaker was then put and lost, ayes 103, noes 110. It will be observed that the vote for Aiken was larger than that for Banks. Banks 102 to 115; Aiken 103 to 110. Mr. Kelly would have had the honor of naming the Speaker but for the precipitancy of Mr. W. R. W. Cobb. The plurality rule, a device of doubtful constitutionality, was adopted the next day, February 2d, and Banks was elected. The following was the vote: Banks 103; Aiken 100; Fuller 6; Campbell 4; Wells 1. If Henry Winter Davis and the other five Know-Nothings who voted for Fuller, or even three of them, had supported Mr. Aiken, his election would have taken place. Or if only two of those Know-Nothings, and the two Democratic back-sliders, Hickman and Barclay, had voted for Aiken, the defeat of Banks, and election of the Democratic candidate, in this momentous national contest would have resulted.

“After a prolonged struggle,” says Mr. Blaine in his *Twenty Years of Congress*, “Nathaniel P. Banks was chosen Speaker over William Aiken. It was a significant circumstance, noted at the time, that the successful candidate came from Massachusetts, and the defeated one from South Carolina. It was a still more ominous fact that Banks was chosen by votes wholly from the free States, and that every vote from the slave States was given to Mr. Aiken, except that of Mr. Cullen of Delaware, and that of Henry Winter Davis of Maryland, who declined to vote for either candidate. It was the first instance in the history of the Government in which a candidate for Speaker had been chosen without support from both sections. It was a distinctive victory of the free States over the consolidated power of the slave States. It marked an epoch.”^[28] If William H. Seward and Thurlow Weed were here to explain this “distinctive victory,” as Mr. Blaine calls it, they might, if they were in a confessing mood, call the thing by another name.

It is certain that votes were thrown away on nominal candidates, and some even were given for Mr. Banks which belonged rightfully to Mr. Aiken. The members who cast those votes not only failed to reflect the sentiments of their constituencies, but in some cases openly defied and misrepresented the will of the voters to whom they owed their seats. Why these men betrayed the Democratic party in the memorable parliamentary

battle which, as Mr. Blaine says “marked an epoch,” will perhaps forever remain one of the mysteries of the lobby of that eventful Thirty-fourth Congress.

John Kelly, Howard Cobb and others strongly suspected that corrupt appliances were at work.

Mr. Stephens, in a letter to his brother Linton Stephens, February 1st, 1856, said: “But for a *faux pas* on the part of that fool C——, I think we should have made Aiken Speaker to-day. I had set the programme for it about ten days ago. My plan was this: after the plurality rule should have been adopted (which I had all along believed after a while would be), and two ballots should have been had under it, if the Southern Know-Nothings should not indicate a purpose to go over to Orr to prevent Banks’s election (which I did not much expect them to do), then Aiken was to be put in nomination on the floor, Orr to decline, and let the last vote be between Aiken and Banks. From my knowledge of the House, its present tone and temper, knowledge of Aiken and the estimation he was held in by several of the scatterers, I believed he would beat Banks. This I communicated to a few, and a few only. I gave Cobb, of Georgia, my idea; he was struck with it, and communicated it to a few others. It took finely. I sounded some of the Western Know-Nothings,—Marshall and others,—and found that they could be brought into it. I said nothing of my plan, but simply asked carelessly how Aiken would do. I found that he would do for them. But after his name began to be talked of, he got so popular in the minds of many that C——, a fool, plugged the melon before it was ripe. If we had then been under the pressure of the plurality rule, and the choice between him and Banks, he would have been elected, sure as fate, in my opinion.”^[29]

In conversations with the writer of this memoir, and in letters to him on the subject, Mr. Stephens often spoke of Mr. Kelly’s conduct during this first great struggle between the Democratic and Republican parties in the House of Representatives, as truly admirable and patriotic. “Mr. Kelly,” said he, “never hounded on anybody against the South, but was one of the few Northern Democrats who then stood firmly by us, in defense of our Constitutional rights against the assaults of Republicans and Know-Nothings, who had formed an unholy alliance against us.” The present writer has sometimes read, with surprise, attacks on Mr. Kelly in Southern newspapers of respectability and standing, such as the *Baltimore Sun* and

Atlanta Constitution, which only could be ascribed to insufficient information on the part of the writers, or perhaps they unintentionally erred in accepting the scurrilous caricatures of *Puck*, and other Gerrymanders, for the real John Kelly.

Mr. Banks appointed the standing Committees of the House in the interest of the ultra wing of the Republican party, of which William H. Seward and Joshua R. Giddings were the leaders. M. Seward was at length at the head of a great organization, with the immense power of the popular branch of Congress at his back, and no other man in American politics ever made more of his opportunities. Five years before he had been rudely jostled from his dream of ambition by the death of President Taylor, to whose friendship for him he was indebted for his elevation to leadership in the Whig party in 1849. That event had been rendered possible in consequence of the disastrous feuds in the Democratic party of New York in 1848. While Hunkers and Barnburners fought, the Whigs captured the Legislature of New York, by which a Senator in Congress was to be chosen. Mr. Seward was elected Senator. His political sagacity soon enabled him to grasp the situation. Deeming it certain that whoever might control the Administration patronage, whether Senator or not, would control the politics of New York, he went to Washington, and paid assiduous court to that dashing Virginian, William Ballard Preston, Secretary of the Navy, to whom President Taylor was more attached than to any other member of his Cabinet. As a charmer Mr. Seward had few equals. He was addicted to aphorisms, and studied *bon mots* with the diligence of Sheridan. His affectation of philosophy was set off by good manners and easy address. He had been a school-master in Georgia, and had at his command a fund of South-of-Potomac reminiscences, saws, and anecdotes. In the company of William Ballard Preston he was never so happy as when expatiating over the types, and modes, and fascinations of Southern society. The Tazewells, Randolphs, Gastons, Lowndes, Calhouns, Crawfords, Forsyths, Lumpkins, and other famous Cavaliers, were all names familiar on Mr. Seward's lips as household words. It did not take him long to win Preston, and that gentleman soon addressed himself to the task of winning over the President to the side of Mr. Seward. But Vice-President Fillmore was Seward's bitterest enemy, and Taylor's confidence was of slower growth than Preston's. Fierce sectional passions upon the subject of slavery were already raging between the North and South, and the old hero of Buena Vista

desired to allay those passions, and render his Administration the era of pacification. Pledges were finally exacted and given, James Watson Webb representing Mr. Seward, and Secretary Preston representing the President, and the patronage of the Administration in New York was placed at Mr. Seward's disposal; in consideration of which that wily diplomat entered into engagements to take no part in the Senate of the United States in the Abolition agitation, but to pursue a policy of conciliation and compromise at Washington. He had been elected Senator to succeed a Democrat. Daniel Webster, Henry Clay and John J. Crittenden, and the other leading Whigs in the Senate and House, were friends of Mr. Fillmore, and unalterably opposed to Seward's recognition by Taylor, upon any terms, as leader of the Administration party in New York. Angry controversies took place in Administration circles. A breach occurred between the President and Vice-President, and their social relations were broken off. Preston had acquired complete personal ascendancy over Taylor, and the old soldier became a violent partisan of Mr. Seward. The Senator from New York was now recognized as the real leader of the Whig party, and wielded the Administration lash with exasperating indifference to the powerful men arrayed on the side of Mr. Fillmore. Alienations took place between life-long friends, and many of the great Whig statesmen were not even on speaking terms. The Whig party was rent in twain.

Mr. Blaine has recently discussed some of the political events of this period of American history, in his valuable work "Twenty Years of Congress," but in assigning causes for the destruction of the Whig party, he has strangely overlooked this portentous quarrel, provoked by Seward, which was the underlying cause,—the *causa causans*,—of the dissolution and utter extinction of that celebrated party.

On the 11th of March, 1850, Mr. Seward, unmindful of his pledges to William Ballard Preston, made a violent Abolition speech in the Senate. The Georgia school-master has outwitted the Secretary of the Navy. Charles Francis Adams, in his memorial address at Albany on Mr. Seward, stated that he was aware of the "agreement," as he called it, between the Auburn statesman and Taylor's Administration, but he must have been ignorant of its real terms, for a descendant of two Presidents would scarcely have regarded the violation of voluntary pledges as a fit topic for glowing eulogy.

And now in that month of March, 1850, William H. Seward was at the height of power. In all human probability he would be next President of the United States. Short-lived triumph. The summer of his glory was soon overcast with stormy portents. Within four little months Zachary Taylor lay dead in the White House, and Fillmore, Seward's dearest foe, was President. The downfall of the Whig party soon followed, and Mr. Seward and Winfield Scott sat amid its ruins. It was about this time that Daniel Webster said to his friend Peter Harvey of Boston: "One of the convictions of my mind, and it is very strong, is that the people of the United States will never entrust their destinies, and the administration of their government, to the hands of William H. Seward and his associates."[\[30\]](#)

But Mr. Webster, perhaps, underestimated the character of Mr. Seward. In 1856, upon the election of Nathaniel P. Banks as Speaker of the House of Representatives, the distinguished New York Senator became titular primate of a new and more powerful organization than the Whig party ever had been in its palmy days. England is governed by Cabinet Ministers with seats in Parliament; the United States by standing Committees of the Senate and House of Representatives, by whom legislation is initiated, secretly formulated, and then carried through both Houses by aid of caucus management, and under the whip and spur of imperious majorities. This vast energy Mr. Seward now commanded through Speaker Banks in the House of Representatives. He had admirable lieutenants. Banks was a fair Speaker in his rulings, and not a sticker over non-essentials, but in everything that seriously affected the welfare of the Republican party, he was an aggressive and tenacious partisan. The astute Thurlow Weed was even a shrewder politician than Mr. Seward himself; and Horace Greeley, adopting the maxim of Daniel O'Connell—that agitation is the life of every cause—employed his unrivaled editorial pen in the anti-slavery crusade, now fairly inaugurated throughout the Northern States. Yet with all his great advantages and skill as an organizer, Mr. Seward could not have carried the Republican party to victory, had not some of the leaders of the Democratic party, during the last five years of their ascendancy at Washington, wilfully neglected their opportunities, and given to their more vigilant opponents the vantage ground in the collision of forces on the floor of Congress.

During the latter days of the Pierce administration, and the whole of that of Buchanan, measures of great national importance were defeated through

the culpable negligence of a few Southern Democrats. Northern Representatives who stood by the South in defense of its constitutional rights, bitterly complained of this neglect on the part of those who were so deeply interested. These Northern men, like Mr. Kelly and Horace F. Clark, had to brave a false but growing public opinion at the North, on account of their heroic devotion to what they deemed the line of duty, especially on the great Territorial questions, over which the Union was being shaken to its foundations. They had, therefore, the right to expect corresponding earnestness on the part of all their fellow Democrats of the South. To hold to Jeffersonian, strict construction opinions was then becoming extremely unpopular at the North, and involved sacrifices that threatened to blight their political prospects. To maintain similar opinions at the South was a wholly different matter. Everybody there believed in the State-rights doctrine, and public men were carried smoothly on with the current in defending measures of administration.

Mr. Kelly observed some things which he could not but regard with pain during the Thirty-fourth and Thirty-fifth Congresses, for they were pregnant with ill-omens for the country, and to a man of his perspicacious brain they must have foreboded those disasters to the Democratic party which ere long overtook it. There was an incapacity for affairs on the part of a few Southern Representatives, and a proneness to intemperance among quite a number of otherwise excellent men from the same section. It was a bad symptom of the distempered state of the Democratic party to find many of its Representatives frequently, and inexcusably, absent from their seats when test votes were about to be taken, fraught with vital interest to the South, and decisive of great national policies. The fault was more grievous, when the absentees, as was often the case, would have been able to change the result by being present and voting. This was attributable in some measure to inexperience, and want of training for public life. Some there were who were addicted to pleasure parties, frequently went home to their families, and entertained fanciful ideas respecting the duties devolving on gentlemen in society. That they were honorable men who would not stoop to disreputable conduct, no one who knew them can for a moment doubt. Indeed their integrity bore refreshing contrast to the looser morality so often to be encountered in a later political generation. The trouble simply was that these men were impracticables, and out of place in the Halls of Congress during the stormy days of 1855-60. They talked politics in the parlor and

bar-room, and neglected their duties in the House and Senate. John Randolph, in his Hudibrastic vein, scores a similar class that flourished in Virginia in 1831: “We hug our lousy cloaks around us, take another *chaw of tubbaker*, float the room with nastiness, or ruin the grate and fire-irons, where they happen not to be rusty, and try conclusions upon constitutional points.”^[31]

But a still greater evil was intemperance. The Hole-in-the-Wall, in the House of Representatives, was the downward path to irretrievable ruin, where many a noble fellow of genius and promise drowned his faculties in rum, when his country most needed his services. While the Democrats and Republicans were in a deadly struggle on the floor of the House over questions involving the destinies of the Union, and the lives and fortunes of millions of human beings, the tipplers were in the bar-room drinking, or on the sofas of the lobby dozing in their cups. A vote is wanting to carry an imperiled measure to victory,—the inebriate is lifted into a sitting posture, dragged to the floor, and bid to vote aye, or no, provided he is there to mumble out the word. Too often he is absent, having been carried off to his lodgings in a state of drunken imbecility. John Quincy Adams^[32], in his Memoirs, inveighs savagely against this melancholy vice, as the besetting sin of an earlier day; and Alexander H. Stephens, in his private letters to his brother, Judge Linton Stephens, pours out indignant lamentations over the same disgraceful spectacle at the period under review.

“One vote against us,” writes Mr. Stephens to his brother, August 23, 1856, on the loss of an important bill. “Seven more Southern men absent than Northern. If our men had stayed, we should have been triumphant to-day. On several votes we lost two to three Southern men who were too drunk to be brought in.”^[33] Again, February 5, 1858, he says: “I have been more provoked at the course of Southern men on this Kansas question from the beginning than upon any other subject in my public career. I mean their culpable negligence.”^[34] He informs his brother that thirteen Southern Democrats were absent March 11, 1858, when an important vote was taken, and the Republicans prevailed. “Had the thirteen been present we should have saved the question. How shamefully the South is represented! Some of the Southern men were too drunk to be got into the House. * * Have we any future but miserable petty squabbles, parties, factions, and fragments of organizations, led on by contemptible drunken demagogues?”^[35]

The next day he writes again: "As usual we lost the question by the absence of two Southern votes. Luck seems to be against us. We had all our other men there to-day except those paired. Some were so drunk they had to be kept out until they were wanted to say 'aye,' or 'no,' as the case might be."^[36] Two years later, after the celebrated Charleston Democratic National Convention had broken up in a row, and the Douglas wing had adjourned to meet in Baltimore, and the Breckenridge wing in Richmond, Mr. Stephens seems to hint that drunkenness had something to do with that most fatal step the Democrats ever took. "I am sorry," he says in a letter to Professor Johnston, "things are as they are; sorry as I should be to see the paroxysms of a dear friend in a fit of delirium tremens."^[37] Mr. Kelly, who was a delegate to the Charleston Convention, returned home mortified and sad. "The drunkenness down there," said he to the author of this memoir, "was shameful. Men whose minds are inflamed with whiskey are not able to govern themselves, much less the country. Alas! for the poor Democratic party. The disruption means defeat, and unless the Douglas men and Anti-Douglas men come together and nominate a single ticket, the Republicans will carry the election."

Mr. Kelly, during his two terms in Congress, witnessed the demoralizing scenes to which Mr. Stephens refers in his letters. Kelly was often amused in spite of himself when he went out to the lobby to shake up some poor inebriated gentleman, and lead him to the floor to give an important vote. The grotesqueness and difficulties of the task, and the absurd figure cut by the tipsy Solon, always excited his risibilities, although he tried to keep a straight face during the trip to and fro. His account of some of these scenes, never mentioned except among intimate friends, was rich in comic touches and facial contortions. His mimicry of the scenes was irresistible. But he, too, equally with Mr. Stephens, saw what it would all lead to, and felt that the Democratic party was in a bad way.

Another element of Democratic weakness was the over-readiness of those called Fire-eaters to appeal to the code duello, or other forms of personal rencontre. This was made by an unfriendly press to bear the appearance of a species of terrorism, and was to some extent a revival of the bullying and domineering so common among the Federalists in Congress in their treatment of Democrats during the Administration of John Adams. Writing in 1809 of "the brow-beatings and insults," to which the Federalists

subjected the Democrats in the days of the elder Adams, Mr. Jefferson says: “No person who was not a witness of the scenes of that gloomy period can form any idea of the afflicting persecutions and personal indignities we had to brook. They saved our country, however.”^[38] The inexcusable assault of Preston S. Brooks on Charles Sumner in the Senate Chamber, May 22, 1856, had had its exact counterpart on the floor of the House of Representatives, February 15, 1798, when Roger Griswold, a member of Congress from Connecticut, with a stout hickory club, made a furious assault during the sitting of the House upon the celebrated Matthew Lyon, one of the Representatives from Vermont. Griswold was a Federalist, and Lyon a Democrat. But in the latter case the assault was made by Brooks, a Democrat, upon Sumner, a Republican. The Federalists condoned the offense of Griswold, and by the decisive majority of 73 to 21 refused to expel him from Congress. Even a resolution to censure him was lost.^[39] The Republicans of 1856, political legatees of the Federalists of 1798, did not show the same forbearance in the case of Brooks. A resolution of expulsions received 121 affirmative, and 94 negative votes in the House, not enough to expel a member under the two-thirds rule required by the Constitution, but more than enough, remembering the palliation of Griswold’s offense, to prove that all such votes reflect the partisan prejudices rather than the impartial judgment of members.

In 1856 a scuffle took place upon the floor of Congress between Mr. John Sherman of Ohio, and Mr. Wright of Tennessee. Mr. Sherman attempted to throw a handful of wafers in Mr. Wright’s face, and the latter returned the compliment by aiming a blow at Sherman with his fist. The latter put his hand in his pistol-pocket, but before he could draw members rushed between the combatants, and separated them.^[40] Intense excitement prevailed during this bear-garden performance.

A still more disgraceful scene occurred in the House, February 5, 1858. Mr. Grow of Pennsylvania, and Mr. Keitt of South Carolina became engaged in a regular fist fight, which spread to others until the flourishing conflict boasted not less than thirty active participants. The fight took place directly in front of the Clerk’s desk. In the midst of the melee Mr. Barksdale, who afterwards fell in the battle of Gettysburgh, rushed at Mr. Covode of Pennsylvania, who had lifted up a heavy spittoon and was about to hurl it at the head of the Mississippian, but at that instant some one

seized Barksdale by the head, and off came his wig, leaving his shining pate glittering in the gas light, perfectly bald. At this ludicrous vision the enraged combatants and all the spectators were moved to laughter, and finally Mr. Speaker was able, by aid of the Sergeant-at-Arms, who bore his mace on high and led his posse through the throng, to recall the House, if not to order, at least from pandemonium.

“Last night,” says Mr. Stephens, in a letter, February 5, 1858, “we had a battle royal in the House. Thirty men at least were engaged in the fisticuff. Fortunately, no weapons were used. It was the first sectional fight ever had on the floor, I think; and if any weapons had been on hand it would probably have been a bloody one. All things here are tending to bring my mind to the conclusion that the Union cannot, or will not last long.”^[41]

Mr. Kelly in the midst of these belligerent and disgraceful scenes kept cool and calm. Once, however, Mr. Humphrey Marshall, the Kentucky Know-Nothing, provoked him into momentary indignation by an insulting allusion to Mr. Kelly’s religion, and by charging Catholics with abject servitude in all civil and religious matters to the will of a foreign prince, the Pope of Rome. Kelly rose and corrected Marshall without discourtesy or bad feeling, but the huge form of the Kentuckian dilated with rage, and he repeated the offensive charge in still stronger language. Then Kelly rose with fire in his eye, and hurled back the charge in such manner as to satisfy the whole House, and Marshall in particular, that the barbaric passion for war, however held in subjection at other times, now glowed in the bosom of the New York member with irresistible fierceness. The two gentleman sat near each other, and the scene as described to the author of this memoir by a member who occupied an intervening seat, Judge Augustus R. Wright of Georgia, must have produced intense excitement throughout the House. Judge Wright, a distinguished Southern lawyer, said that after the colloquy between Mr. Kelly and Mr. Marshall, which is imperfectly reported in the *Globe*, and after Mr. Marshall had concluded his speech, the latter walked over to Mr. Kelly’s seat, and demanded to know what he meant by declaring the statement he had made was false. Marshall was known to be a believer in the code duello, and was a man of immense size. Mr. Kelly kept his eyes fixed on Mr. Marshall as he approached, and Mr. Wright said that his physiognomy would have been a study for Lavater. It was rigid and intent, but the eyes kindled with peculiar light, and he gave Marshall such a glance

that he, Wright, never could forget it as long as he lived, and he supposed Marshall never would either. To the question Kelly replied: "I meant exactly what I said; your statement was not true, Sir." Mr. Kelly was on his feet facing Mr. Marshall, and Judge Wright anticipated an immediate collision between them. It was avoided, however, and Marshall, with returning good humor, made some allusion to the plain modes of speech in vogue among New York members, and went back to his place.—The colloquy as published in the Globe, toned down considerably in asperity, is as follows:

Mr. Marshall. "I feel quite sure there should have been a distinction drawn between the Papist and the Catholic. I understand that a portion of the Catholics hold the doctrine that the Pope,—whether it springs from his spiritual power or his temporal power, or both combined, is in the last resort the ultimate judge, not only of moral right, but under the moral law, of political right; and, therefore, possesses the power in some way, to absolve the citizen from obedience to the law of the land or country to which he belongs, of which his Holiness may disapprove as an infraction of the Divine law."

Mr. Kelly. "I desire to ask the gentleman a question."

Mr. Marshall. "The gentleman can take an hour to reply to my speech."

Mr. Kelly. "The gentleman asserts what is not a fact, and I desire"—

Mr. Marshall. "I have found a great contrariety of opinions among Catholics upon this particular branch of my subject, and I do not expect that my friend from New York and I shall agree upon what are the facts in regard to it."

Mr. Kelly. "I deny that they hold any such doctrine, and the gentleman states what is not true."

Mr. Marshall. "Well, I must say that the gentleman puts his remarks in a very blunt form."

Mr. Kelly. "I say that the statement is not true."

Mr. Marshall. "Why surely one branch of the Church holds that doctrine."

Mr. Kelly. "I say there is no branch in this country that holds that doctrine; and the gentleman has never seen one that advocates that

doctrine.”^[42]

Mr. Marshall reiterated the statement, and Mr. Kelly in still more positive language denounced it as untrue, and challenged the Kentuckian to produce any evidence to sustain his allegation. The scene was becoming very animated, and as the two herculean Representatives glared at each other with angry mien and menacing front, Mr. Wright was reminded, as he afterwards said, of Milton’s picture:—

“Such a frown
Each cast at the other, as when two black clouds
With heaven’s artillery fraught, come rattling on
Over the Caspian, then stand front to front
Hovering a space, till winds the signal blow
To join their dark encounter in mid-air
So frowned the mighty combatants.”

But this dispute with Marshall was a very exceptional thing to happen to Mr. Kelly. He was a universal favorite in both Houses of Congress, and his popularity continued to grow the longer he remained at the Federal Capital. Some rare men there are in this world in whom there is such unity of character, whose talents however high are equalled by the qualities of their hearts; whose virtues however great are equalled by the warmth of their affections and the sweetness of their temper; they carry a passport to the common heart written, as it were, upon their fronts by the finger of God. “The world is a looking-glass,” says Thackeray in *Vanity Fair*, “and gives back to every man the reflection of his own face. Frown at it, and it will in turn look sourly upon you; laugh at it and with it, and it is a jolly kind companion.” Sir Thomas More was one of those rare characters who won the general heart by the sunshine that played about him. He met Erasmus at a dinner table in London without an introduction, but Erasmus knew him at once. “Aut Morus aut Nullus,” said he. “Aut Erasmus aut Diabolus,” was the waggish reply. In America occasionally some noble spirit appears who finds his way to all hearts without an effort. Such a man was Nathaniel Macon of North Carolina, simple, plain, unostentatious, the political idol of John Randolph, “the last of the Romans” as Jefferson called him; “a speaker,” says Benton, “of no pretension and great performance, who spoke more good sense while he was getting up out of his chair and getting back into it, than many others did in long discourses.”^[43] Mr. Stephens

frequently said to the present writer that John Kelly reminded him more of Nathaniel Macon than did any other man in public life. Kelly's rugged sense of right, his blunt honesty, sagaciousness, modesty, and good humor, conspired to make friends for him on all sides of the House. If he was asked to do a favor for any one, he generally did more than was asked, and never said anything about it afterwards. Kindness and service to mankind were virtues of which he was the cheerful exemplar.

Stephens and Kelly were strikingly alike in this respect, both seemed never to tire in well-doing and deeds of benevolence. The number of poor boys who have owed their education and success in life to these two men has been very large. There are hundreds of happy homes in this country to-day where poverty has been turned into comfort, and pinching want into comparative prosperity, by Alexander H. Stephens and John Kelly. The two gentlemen were deeply attached friends, and each regarded the other as the type of an honest statesman. Twenty years after the close of their Congressional relations, Mr. Stephens, in a letter to the present writer, desired to be remembered to Mr. Kelly in the kindest manner. The following is the letter, personal matters of no interest to the general reader being omitted:

LIBERTY HALL,
Crawfordsville, Georgia,
28th October, 1878.

MY DEAR SIR:

Your letter was duly received. Two days afterwards the parcel came. * * *

I am now just about leaving home for an absence of several days. I want you to read Johnston and Browne's recent book. I have ordered several copies, but none has yet reached here, or I would send you one. Give John Kelly my kindest regards when you see him. I regard him as one of the ablest and truest men in this country. * * *

With best wishes to you and all yours, I remain,

Very truly,

ALEXANDER H. STEPHENS.

Mr. Kelly's esteem for Mr. Stephens while living, and his respect for the great Commoner's memory when dead, are shown by the subjoined extract from an article which appeared in the New York Utica Observer, November 22, 1884:

“William M. Evarts, Republican, and John Kelly, Democrat, have each contributed fifty dollars to the Alexander H. Stephens Memorial Fund. John Kelly wrote as follows to the Committee: ‘I had the honor of sitting in Congress with this gentleman thirty years ago, and always entertained for him the highest regard. He was a noble example of a statesman; in fact, I never met a man who was so pure in his intentions in public life.’ Commenting upon this circumstance, the *Atlanta Constitution* says: ‘It is a good sign of the proper feeling between the South and North to see such men as W.M. Evarts and John Kelly joining in doing honor to the memory of the ex-Vice-President of the Confederacy.’”

FOOTNOTES:

- [27] Life of A. H. Stephens. Johnston and Browne, p. 299.
- [28] Twenty Years of Congress, vol. i, p. 122.
- [29] Life of A. H. Stephens. Johnston and Browne, p. 306.
- [30] *Reminiscences of Daniel Webster*, by Peter Harvey, p. 200.
- [31] Garland’s Life of John Randolph, vol. II., p. 345.
- [32] Memoirs of John Quincy Adams. X., 361.
- [33] Life of A. H. Stephens. Johnston and Browne, p. 315.
- [34] Ibid, p. 329.
- [35] Ibid, p. 331.
- [36] Ibid, p. 331.
- [37] Ibid, p. 355.
- [38] Jefferson’s Works, vol. ix., p. 508.
- [39] Annals of Congress, 1798.
- [40] Gobright’s Recollection of Men and Things at Washington, p. 164.
- [41] Life of A. H. Stephens. Johnston & Browne, p. 330.
- [42] Congressional Globe, part 3. 1st Session, 35th Congress, p. 2366.
- [43] Thirty Years’ View, vol. I. p. 117.

CHAPTER VII.

MR. KELLY IN VARIOUS DEBATES—FAMINE IN THE CAPE DE VERDE ISLANDS—"IRISH WAITERS"—MAYNARD'S SNEER AND KELLY'S REBUKE—KNOW-NOTHING RIOT IN WASHINGTON—KELLY WITNESSES THE SCENE—HIS GREAT HOMESTEAD SPEECH—OTHER SPEECHES BY HIM—WASHINGTON SOCIETY IN THE OLDEN DAY.

As a comprehensive portrayal, rather than biography in detail, is the design of this volume, a general survey of Mr. Kelly's Congressional career is all that can be attempted in these pages, with concise mention of some of its leading events and incidents. His speeches alone would fill a book of equal size to this.

In the course of a debate in the Committee of the whole on the State of the Union, May 26, 1856, Mr. Kelly delivered a strong speech upon New York politics, in which he gave an interesting review of the divisions that had prevailed in the Democratic party of that State. Tracing back those divisions to 1848, he gave a lucid insight into the history of the Hunkers and Barnburners, and of the later factions known as Hard Shells and Soft Shells. He evinced thorough acquaintance with the complexional differences between those factions, and with the political history of the Empire State, a knowledge which was to prove so useful to him in after years. He charged that many of the Hards were Know-Nothings, but attributed patriotic motives to other members of that wing of the party. He might have made the same charge of Know-Nothingism with equal justice against many of the Softs. Subsequent history probably has led Mr. Kelly to modify some of the opinions he expressed in that speech. There were good National Democrats in both wings of the party, the disturbing question of slavery being the chief cause of dissension. The anti-slavery agitation at the North, and consequent dissemination at the South of the old New England doctrine of secession, were the two growing ideas, the monomania of that age of American history. The Republican party was more largely recruited from the ranks of the Soft Shells than from those of the Hard Shells, and the resolutions and speeches in the Syracuse Soft Convention of 1855, of which

Mr. Kelly was a member, and which were discussed at large in a former chapter, clearly indicated that such would be the case.

As sound a Democrat as President Pierce was, he made the mistake of placing the chief control of his Administration in the hands of those Democrats, both at the North and South, who had opposed the compromise of 1850, such as John A. Dix and John Van Buren on the one hand, and Jefferson Davis on the other.

“Notwithstanding,” said Mr. Kelly, “the outcry raised by our enemies, who desire to destroy the influence of New York, let me assure you, Mr. Chairman, that there now exists no division among the Democratic masses there. They now happily constitute a united party, bound together by a common creed and a common interest. This union of the Hunker and Barnburner sections of the party was accomplished in 1849, the year after the unfortunate defeat of General Cass, and it has gone on strengthening ever since, in spite of the transient fanaticisms of Republicanism and Know-Nothingism, from one or the other of which the party in every section of the country has suffered temporary damage, our late reverses in New York forming no exception to the general rule. If the Democrats of Louisiana, or Tennessee, or of any other Southern States, have been prostrated when opposed to only one of these evils, is it a peculiar disgrace—is it any special evidence of impotency, that we have had to yield once or twice before the combined forces of both?”

During the year 1855 the crops in Europe and other parts of the world suffered greatly from unseasonable and excessive rains. In some places, particularly in the Cape de Verde Islands, the wet weather was succeeded by a protracted drought. For two years prior to that year the Cape de Verdes had suffered from a scarcity of food owing to similar causes, and a third visitation now reduced the inhabitants in many places to a state of starvation. The Bishop of those islands on the 12th of March, 1856, wrote an earnest appeal for succor to Archbishop Hughes, of New York. “Having exhausted all our own means,” said he, “it only remains for us to appeal to the charity of the public. If these people are not promptly succored more than twenty thousand persons will perish, victims of famine.” A movement was organized in New York to send food to the famine-stricken islanders, and a resolution was introduced in Congress by Mr. Wheeler, of New York, in which the President was requested to instruct the Secretary of the Navy

to detail twenty-five seamen to man the vessel in which the cargo of food was to be shipped to the sufferers. Archbishop Hughes had confided Bishop Patricio's appeal to Mr. Kelly, and requested him to lay it before Congress, and use his best offices with his fellow-members to secure favorable action upon it. On the 19th of May, Mr. Kelly asked and obtained the unanimous consent of the House, after the introduction of Mr. Wheeler's resolution, to have the letter to Archbishop Hughes read. The picture which the Bishop of the Cape de Verde Islands had drawn of the dreadful scourge deeply impressed members. In the course of the debate some objections were made to the passage of the resolution, to which Mr. Kelly replied as follows:

“This resolution, Mr. Speaker, merely proposes to relieve the poor people in those islands, who are now in a state of starvation on account of the blight to their vine crop; and it is astonishing to me that any member of this House should object to a resolution of this kind. It asks no appropriation of money; it does not ask Congress to appropriate a single dollar towards relieving them. The generous citizens of New York have come forward and held a meeting at the Exchange in that city, and agreed to load a vessel with provisions for the use of these destitute people of the Cape de Verdes, who are now living on the bark of trees, the stalks of bananas, and anything else they can pick up to save themselves from utter starvation. Therefore, I trust that there will be no objection from any gentleman in this House to the resolution presented by my colleague. It merely asks that a crew of United States seamen may be given to navigate the vessel, in order that relief may reach those poor people in time to save them from impending destruction. It is not much that is asked, and we ought, I think, cheerfully to grant it.”

This simple, strong appeal proved effective, and the resolution was passed by the large vote of 123 ayes to 24 noes.

Mr. Kelly was again nominated for Congress in 1856, and at the election on November 4th of that year was returned to the Thirty-fifth Congress by an overwhelming majority. Of the 11,599 votes cast in the Fourth Congressional District of New York, John Kelly received 8,319, L. W. Ryckman, 1,497; W. F. Gould, 1,735, and 48 were scattering. Kelly's majority over all was 5,039.

During Mr. Kelly's second term in Congress a savage riot occurred in Washington at the District election in June, 1857. For some time the city

was at the mercy of a gang of professional desperadoes, composed of Washington Know-Nothings, and Plug Uglies of the same party from Baltimore, the latter being the pets and followers of the malignant Henry Winter Davis. The Mayor was powerless to preserve the peace with the insufficient police force at his command, and President Buchanan, on the Mayor's requisition, called out the Marines at the Navy Yard under Major Tyler to disperse the rioters. The military proceeded to the Northern Liberties, where they were attacked by the mob, and several innocent citizens were killed. Major Tyler was finally compelled to return the fire of the infuriated mob, and for some time that portion of the city was the scene of a fierce battle. It was not until the fire of the soldiers was directed in a few cases with fatal effect that the miscreants were driven off and dispersed.

After the disturbance, the Mayor of the city and the Chief of the Washington police, feeling themselves unable to cope with the lawless bands in their midst, appealed to Congress for relief. A bill to establish an Auxiliary Guard for the protection of public and private property in the city of Washington was accordingly introduced in the Senate, and after an extended debate the excellent measure passed that body, and was sent to the House of Representatives for action there. The remedies applied in the city of Baltimore, where still more atrocious scenes of bloodshed annually had occurred under Mayor Swan's Know-Nothing administration, with Henry Winter Davis firing the hearts of his Plug Uglies to a war of extermination against foreigners, presented an example to Washington of the effective way of redeeming the latter city from the scoundrels who infested it. The Legislature of Maryland took the control of the police force of Baltimore from the Mayor, and lodged it in the hands of an independent officer known as Marshal of Police. In the bill creating the office the celebrated George P. Kane was designated as Marshal, and no better man ever lived for a position of that kind. Col. Kane was a gentleman by instinct and education; the purity of his character was universally recognized, and the intrepidity of his nature was perfectly understood by the law-breakers of Baltimore. A man of gigantic stature, he possessed wonderful symmetry and comeliness of person, enormous physical strength, and a courage that would have carried him to the stake to be flayed alive in vindication of an idea or principle he believed to be right. This man did more to redeem Baltimore from the assassins and ruffians who had controlled it than all other men and agencies combined. Under Marshal Kane's magnificent administration the

Monumental City became one of the most peaceable, as it long had been one of the most beautiful of American cities. In after years the people rewarded this destroyer of Know-Nothingism in their midst, first with the office of High Sheriff, and next with that of Mayor of Baltimore.

The bill to establish an Auxiliary Guard in Washington, whose features resembled those of the Maryland Act creating a Marshal of Police in the city of Baltimore, received Mr. Kelly's decided approval and support when it reached the House. In the course of the debate on this bill, April 15, 1858, Mr. Kelly said:

"The proposition before the Committee is that the police laws of this city are of such a character that the citizens of Washington have to ask Congress to alter them in order to protect them from the murderer and assassin. The bill proposes to give to the President of the United States the power to appoint the Chief of Police, and that that Chief of Police, with the consent of the Secretary of the Interior, shall have the power to appoint his subordinate officers. The people here are willing to throw up their charter, given to them by Congress, for the reason, as they say, that they are not able to protect themselves against the criminals that infest the city. The amendment proposed by the gentleman from New York (Mr. Dodd) providing for the selection of Commissioners by the people is, in my opinion, objectionable. Men elected as Americans will, of course, appoint Americans or Know-Nothings to office, and *vice versa*, Democrats will do the same thing. The only way to give this city an efficient police is by passing the bill reported by the gentleman from Virginia (Mr. Goode), placing the power in the hands of the President of the United States to appoint the Chief of Police. Mr. Chairman, in the various arguments that have been made on this bill, all kinds of logic have been brought to bear in favor of gentlemen's different prejudices. The gentleman from Tennessee (Mr. Maynard), in discussing this bill yesterday, referred to a transaction which took place during a former Congress.^[44] He spoke of men who earn their living by the sweat of their brow as a 'parcel of Irish waiters.' Now, sir, I do not think that that expression was called for. These men, whether Irish or German, or belonging to any other country, have the same rights under the Constitution as American-born citizens. It is not to be said that because these men were waiters, they had not their independent rights and privileges as much as the Representatives of the people on this floor. I tell

the gentleman from Tennessee, and other members of this House, that the humble Irishman has his rights under the Constitution, naturalized as he is by your laws, equally with the native-born, and until he commits some act in derogation of the true principles of manhood, it does not become any gentleman to stigmatize him or speak of him in such a contemptuous style.

“The gentleman from Ohio (Mr. Stanton), in speaking on this Bill, attributes the defeat in 1844 of that great and honored statesman, Mr. Clay, who has long since gone to his grave, to the Empire Club in the city of New York, and to the manner in which the election was conducted in that city. Let me tell the gentleman that I was conversant with all those facts, and knew of the transactions which took place in New York in 1844. There was another Club there at that time, and it was a very objectionable one, because all the pugilists, all the fighters, and all the rowdies you could find, were brought together by pay, by solicitations of whatever nature, and were formed into a Club in opposition to the Empire Club at that time. Now, I ask the gentleman if he knows who was president of that Club?”

Mr. Stanton: “I know nothing in regard to that Club. Who was the man?”

Mr. Kelly: “Bill Poole. I am sorry to say he got into a personal difficulty in New York and was killed. Let me say to the gentleman that when both of those Clubs were organized at that particular time, though there were violent men in both, neither one of these Clubs used violence against citizens in going to the polls to exercise the right of suffrage. That cannot be said in this city, for I am reminded of the transactions which took place at the election here last June.”

“The gentleman from Mississippi, (Mr. Quitman,) said, in his speech, that there was no violence in this city; that he had travelled around on frequent occasions, in order to see if some one of the rowdies here would not attack him. Now I know that the gentleman has displayed courage upon the battlefield, and rendered essential service to his country. No man doubts his integrity, his honesty and his bravery; but had he been here last June, he would have met in the streets of this city that which no man desires to meet. I saw a body of young men from eighteen to twenty years of age, driving men of thirty and forty years of age before them like sheep from the field, and firing their pistols among them indiscriminately. Yet there did not

appear to be, so far as I could see, courage enough in the citizens of this city to resent the outrage which was perpetrated upon them at that time.

“Crime, Mr. Chairman, in all cities, whether it be here, or in New York, or elsewhere, unless checked by the physical power of man, will continually manifest itself. Some gentlemen here have argued that you cannot check it by physical force; that moral force must be resorted to. That is all humbug, for such a check amounts to nothing at all. Violence of all description will be committed, unless you have proper officers to prevent it. Then you ought in the present case to organize a police force to meet this exigency, and to arrest the individuals who are in the habit of committing crimes in your city. Now this bill organizes an efficient police, under the jurisdiction of officers of this Government who have the full control of it,—a force which will be the means of protecting individuals who come here to transact business, as well as yourselves, for many of you admit that it is dangerous to leave your rooms at night,—that you are afraid of encountering these marauders who infest the city. The main objection on the other side of the House is that the Chief of Police, who may be appointed by the President, will be partial in his appointments, selecting only partisans, or those who favor his political principles, just as it is supposed the President himself will appoint a man who is of his politics. That argument, in my opinion, cannot hold good. I do not think such a course will be carried out, and I know if I had anything to do with it, I would not be partial at all. I would select men for their character alone. If I saw they were efficient, physically able to do the duties of policemen, and of good moral character, I would appoint them upon such grounds alone, without regard to politics. But, gentlemen on the other side say they are afraid to trust the President. Well, we are afraid to trust them in the city of New York. The case of this city and that of New York, between which some analogies have been made, are not parallel cases at all. This city is under the jurisdiction of the Federal Government. The President and the Congress of the United States are here; Ministers from foreign Governments are here; and the courts here are under the jurisdiction of the Federal Government. The only difference between the appointment of a Chief of Police by the President and by the Mayor is this: in the former case the Chief of Police is responsible to the Federal Government, and if he does not carry out the laws, can easily be reached; while on the other hand if the Mayor does not appoint satisfactorily, the people cannot reach his appointee, in the same manner.”[\[45\]](#)

The Republicans and Know-Nothings were strong enough, with the aid of a few Democrats, who had fine-spun constitutional objections to it, to prevent the passage of this excellent bill by the House, but Mr. Kelly's argument was not successfully answered by any of the opponents of the measure.

An interesting debate took place in the House, May 3, 1858, in relation to the Bureau of Statistics of the State Department, in which Mr. Kelly took a prominent part. This Bureau was established by Congress upon the recommendation of Mr. Marcy during the last Administration. The urgent necessity for such a Bureau was originally pointed out by Mr. Webster in 1842, when he was at the head of the Department. Several volumes upon the Commercial Relations of the United States with all other countries were issued during 1856 and 1857, prepared ostensibly by Edmund Flagg, Superintendent of the Bureau, but in reality Flagg had very little to do with the work. Hugh C. McLaughlin of Virginia, Mr. Flagg's assistant, and who was soon after appointed his successor as Superintendent, was the real compiler, translator and editor of the valuable materials contained in those volumes. But Flagg was Superintendent, and he not only contrived to get his name printed on the title page as such, but to monopolise the whole credit to himself for the work. The volumes were received with remarkable favor by the leading commercial authorities in this country and Europe. Hunt's Merchants Magazine spoke highly of them. In a notice of the fourth volume, the London Athenæum of February 20, 1858, said: "The highest praise is due to the House of Representatives for publishing this comprehensive and really national report, which brings into one view the commercial status of the United States with the entire world."^[46] The celebrated M. Rouher, then Minister of Agriculture and Commerce in France, who subsequently figured so conspicuously under the Empire of Napoleon the Third, expressed unqualified praise of this work of the State Department at Washington. To a friend who sent him one of the volumes, M. Rouher wrote: "This document is executed under the direction of the Secretary of State, by Mr. Edmund Flagg, an officer of the State Department. The Minister of France at Washington had already communicated to the Imperial Government the remarkable Report of Mr. Flagg to Mr. Marcy. It contains abundant and useful information; and I am happy to recognize in it marked improvement over works of the same character previously published by the American Government. A further

improvement will be accomplished when, in accordance with the wish of Mr. Flagg, Congress shall prescribe a continuous, periodical and practically useful publication, like that which my Department has constantly issued for many years.”^[47]

If M. Rouher was in the habit of following the proceedings of the American Congress, his surprise must have been great to find this same Mr. Flagg, who but a few months before had expressed so earnest a desire for the continued and regular publication of the Commercial Relations by the State Department, now haunting the lobbies of Congress, and supplying specious arguments to the opposition or Republican members against the further publication of the work, and in favor of the abolition of the Bureau itself. That which he proclaimed a work of national importance yesterday, he declared to be a useless encumbrance to-day. Flagg’s sudden change of mind was easily explained. Certain irregularities in his accounts had been discovered, and Secretary Cass had compelled him to send in his resignation. *Hinc illae lachrymæ*. The opposition members were always ready to attack the Administration, and Mr. Flagg plied them with frivolous arguments against the Bureau from which he had been discharged. Mr. Nichols of Ohio, and Mr. Washburne of Illinois, two Republican Congressmen, perhaps unaware that Flagg was a man with a grievance, espoused his cause, and while the Appropriation Bill for the legislative, executive and judicial branches of the Government was under consideration, May 3, 1858, they declared that it would be a waste of money to make any appropriation for the Bureau of Statistics in the State Department, and Mr. Nichols made this a pretext to denounce the extravagance of the Administration. After he had made his attack, and elicited no reply, Mr. Nichols was emboldened to go farther, and indiscreetly began to cross-question the members of the Committee of Ways and Means, of which Mr. Kelly was one, and by which the Appropriation Bill had been brought in, and to extol Flagg as a disinterested patriot, who had resigned his office, because he could not conscientiously draw a salary for work that was wholly useless. This was a fatal line of attack for Nichols to pursue, as he soon discovered to his cost. Senator Clay of Alabama, Chairman of the Committee on Commerce in the Senate, had investigated Flagg’s case in the State Department, and Mr. Kelly afterwards had become acquainted with the doings of the latter individual. Challenged to defend the appropriation, Mr. J. Glancy Jones, Chairman of the Committee of Ways

and Means, and Mr. Kelly, a member of the same Committee, completely turned the tables upon Mr. Nichols and Mr. Washburne and after Kelly's crushing rejoinder, Mr. Nichols, the would-be-champion of Flagg, dropped him as he would have run away from the contagion, and made a most ludicrous retreat from the field of his own selection.

To quote Mr. J. Glancy Jones, in his able defense of this item of the Appropriation Bill brought in by his Committee, would occupy too much space here; but the spicy debate between Messrs. Nichols, Kelly, and Washburne cannot be entirely omitted in a memoir of Mr. Kelly's life.

Mr. Nichols: "I cannot take my seat without paying a just tribute to the late Mr. Marcy, and Mr. Flagg, who had charge of the preparation of the volume known as the 'Commercial Relations.' I would enquire of the gentleman (Mr. J. Glancy Jones) whether the former Superintendent did not resign his office under the express declaration that a discharge of the duties of the office was no longer necessary; and whether after that, and during this year, a successor was appointed?"

Mr. J. Glancy Jones: "I do not know what induced the gentleman alluded to to resign the office."

Mr. Kelly: "I have made some enquiry on this subject, and from the best information I could get, I learned that Mr. Flagg was compelled to resign because there were charges made against him, to the effect that he had employed women ostensibly at four dollars a day, and only paid them at two dollars a day, requiring their receipts for four dollars a day. This fact was ascertained by the gentleman who represents the Committee on Commerce of the Senate. When he found that such was the case, he went to the State Department and said, that if Mr. Flagg was not turned out of that office, he would expose the matter to the country. This was the reason that Mr. Flagg was compelled to resign. So far as the Bureau itself is concerned, every gentleman knows that there is no Bureau in the Government that has been so effective in giving the country valuable statistical information. But Mr. Flagg being compelled to resign, now comes to Congress, and makes the effort to abolish a Bureau which has been of so much benefit to the country."

Mr. Nichols: "I beg leave to say that so far as my action here is concerned, Mr. Flagg has nothing to do with it whatever. He has been

connected with that Bureau, but I have spoken to him hardly half a dozen times.”

Mr. Nichols, but a few minutes before, had been extolling Flagg, and coupled his name with that of Secretary Marcy in what he called a “just tribute.” Now he wriggles out of the debate in the following amusing style:

Mr. Nichols: “I desire to conclude what I have to say. I wish the gentleman from New York to understand that, in reference to anything he may say about troubles in the Democratic camp which may have led to the removal of any of its children, I desire to enter into no discussion. I have nothing to do with it, then, or the difficulties of this happy family.”

Mr. Kelly: “I think the gentleman from Ohio is entirely in error. The duty of the statisticians in the State Department is to collate and compile all the reports made by consuls at foreign ports upon commercial matters, and everything which pertains to the welfare and benefit of this Government. It is done not only for the benefit of commercial men, but for the benefit of the community generally, and I think the abolition of that particular branch of the Government would be entirely wrong. The whole expense of keeping it up amounts to very little. I say again that the whole of this matter originated—though I do not attribute it to the gentleman from Ohio—on the part of disappointed gentlemen who had been turned out of office, and in nothing else.”

Mr. Washburne, of Illinois: “My object in asking my friend to yield me the floor is to say a word here in reference to Mr. Flagg. I have had some acquaintance with that gentleman from my connection with this matter during the last Congress, and I am astonished at the charges the gentleman from New York has made here to-day; and I think it is due to Mr. Flagg that the gentleman from New York should state his authority. Those charges go to the country, and reflect severely upon Mr. Flagg.”

Mr. Kelly: “I have made no charge, and shall make no charge against the gentleman.”

Mr. Washburne “Will the gentleman state his authority for what he has said?”

Mr. Kelly: “The State Department itself. If the gentleman desires to have this matter investigated, let him introduce a resolution for that purpose. If

information on the subject be desired for the House and the country, let a resolution be introduced and passed calling on the State Department to furnish it.”

Mr. Maynard: “I should like to know who is the present head of the Bureau?”

Mr. Nichols: “These interruptions have entirely broken the thread of my remarks. With the discussion of family differences and difficulties which have led to the removal of one man and the substitution of another, I have nothing to do, and I desire to have nothing to do with them. I do not know who fills this office. It is nothing to me who does. I find I have occupied about enough of the time of the Committee with this question.”^[48]

The Bureau of Statistics flourished on, and was no longer disturbed by Edmund Flagg. Mr. Kelly had overwhelmingly refuted the charges of Messrs. Nichols and Washburne against the management of the State Department under General Cass.

There was a warm controversy between the Senate and House of Representatives over the appropriations for the naval service for the year ending June 30, 1859. Committees of Conference on the disagreeing votes of the two Houses were appointed, and held frequent meetings. The managers on the part of the Senate were Stephen R. Mallory, Solomon Foot, and Judah P. Benjamin; those on the part of the House were Thomas S. Boccock, John Kelly and F. H. Morse. The conferees finally agreed upon their report. Mr. Boccock submitted the report to the House, June 11, 1858. Of the few amendments in controversy, the House Committee receded from their disagreement to the second and third amendments, relating to an appropriation of fifty thousand six hundred dollars for a new purchase in the Brooklyn Navy Yard. Messrs. Morgan, Grow, Clemens and others energetically opposed this appropriation. Mr. Boccock and Mr. Kelly of the Conference Committee as strongly advocated it. The members of the Conference Committees of both Houses had unanimously approved the report, and each of the managers had signed it. Mr. Kelly answered the objections to this appropriation.

Mr. Kelly: “I will say a word on this matter with the permission of the gentleman from Virginia. The Government owns the land between the Navy Yard and the Marine Hospital. It is now all, or nearly all, a swamp. A part

has been filled in, and filled in, I believe, for the very small price of sixteen cents a yard. As the property now stands, it cannot be of any use to the Government. Even if the Government desires to sell, it would be a sound economy and prudent foresight to first fill it in. It would then command a large price. It extends for a considerable way along what is called the Wallabout, and it shows a complete water-front. If the Government filled it in at the rate contracted for before, they might sell lots there for large sums, which are now of no earthly use to anybody. Until it is filled in the Marine Barracks ordered by Congress cannot be built; and the Marines at that Yard are now quartered in sheds. They are small, and not at all suitable for the purpose for which they have been temporarily put up. I hope, therefore, that this appropriation will be concurred in. I am convinced that it is needed and needed now.”^[49]

The objectors, however, were unyielding, and the report of the Committee of Conference was disagreed to by a vote of 74 noes to 67 ayes.

The interests of Brooklyn always have had a warm advocate in Mr. Kelly, and although in more recent days he has found there some of his most active political opponents, it may be doubted whether those gentlemen have proved themselves truer friends of the general interests of that great city than John Kelly.

In a former chapter of this book allusion has been made to the many gross misrepresentations of Mr. Kelly’s motives and actions to which the press has given circulation. A glaring instance of this bearing of false witness against the neighbor is to be found in a volume entitled *The American Irish*, by “Philip H. Bagenal, B. A., Oxon.” This Mr. Bagenal seems to be, not an American Irishman, but an English Irishman of the London Tory variety, whose booklet smacks of the facile courtier of some Cabinet Minister, not far off from Downing Street or Pall Mall. It is a libel on Ireland and Irishmen at home and abroad, now on Mr. Parnell in Wicklow, and again on Mr. Kelly in New York. Bagenal writes not so well, but after the fashion of Dr. Russell, another English Irishman, familiarly known as “Bull Run Russell.” The latter’s vulgar caricatures of President Lincoln, in his letters to the London *Times*, caused his expulsion from the military lines of the Federal army during the war. Peripatetic book-makers from abroad, who take hasty journeys through this country, generally contrive to pick up a budget of miscellaneous misinformation, which they

cram into misbegotten books, and offer for sale in the London market. Mr. Bagenal's mission appears to have been to contribute an English tract on Irish life in the United States, for English partisan use in Ireland. To say that the alleged facts in this book are frequently untrue, is to characterize the performance very mildly. Mr. Parnell and his followers, according to Bagenal, are enemies of Ireland, and architects of ruin and anarchy only less reprehensible than the dynamiters.

"In New York," says this scribe of the *London Times*, "we find the Irish dying faster than any others, less given to marriage than any others, and more given to hard work and fasting than any others. * * I visited the tenement houses in New York where the Irish population dwell. * * Everywhere the moral atmosphere is one of degradation and human demoralization. Gross sensuality prevails. The sense of shame, if ever known, is early stifled. * * Thus live the descendants of the great Irish exodus of 1845-48. * * They sought such occupation as offered; they underbid labor, adapted themselves manfully to the conditions of industry, or joined the rabble that trooped as 'ballot-stuffers' and 'shoulder-hitters' in the train of the Tweeds, the Morrisseys, and the Kellys of the day; and so became the scourge of American politics. In those bygone days when the Irish-American nation began to grow on Yankee soil, had Government directed and assisted the tide of emigration, hundreds of thousands would have been carried out West; where, accustomed to agricultural pursuits, they would have become quiet and prosperous citizens, instead of fire-brands and perpetuators of the animosity between England and Ireland."[\[50\]](#)

This slanderous picture of the Irish population in New York is followed by an account of Bishop Ireland's noble efforts to build up an Irish colony in Minnesota, and the great West. Mr. Bagenal holds up Mr. Kelly as an enemy of this great movement. What a pity he did not ask Bishop Ireland, with whom, he says, he became acquainted at St. Paul, who were the leading co-workers with that pious churchman in opening up a home for Irish settlers in the new States of the West? Bagenal would have learned from Bishop Ireland, had he sought to know the truth, that John Kelly had aided this philanthropic work by giving to the Bishop one thousand dollars, afterwards increased to nearly two thousand, as a contribution to the St. Paul Catholic Colonization Bureau. Knowledge of this circumstance probably would not have deterred Bagenal, the vilifier of Mr. Parnell, from

describing Mr. Kelly as the enemy to Irish colonization in the West. The typical London snob abroad is revealed in the mendacious sentence concerning “the rabble that trooped as ‘ballot-stuffers’ and ‘shoulder-hitters’ in the train of the Tweeds, the Morrisseys and the Kellys of the day,” and sufficiently proves the Downing Street inspiration of this Tory romancer, who, it appears from his preface, is a writer for the *London Times*.

John Kelly, throughout his whole career, has been an earnest advocate for the settlement on the fertile prairies of the West of the poor emigrants who crowd into the Eastern cities, too often to starve for the want of employment. Twenty-seven years ago he introduced one of the first Homestead bills brought forward in Congress, which was a statesmanlike effort to relieve the overcrowded population of the great cities, and to build up the prosperity and happiness of the struggling masses of his fellow-citizens. He supported this bill in a speech of great vigor, in which he pointed out the advantages of homes in the West to the poor, and sought to place the acquisition of such homes within the reach of every citizen of the United States, who wished to become an actual settler upon the teeming millions of land that then belonged to the Government. Had his bill been passed, the gigantic railroad monopolies of to-day might not be in possession of the mighty landed empire which they, in so many cases, acquired by fraud, and hold by corruption, against the rights of the people of the United States.

On the 18th of January, 1858, Mr. Kelly introduced a bill in Congress to secure homesteads to actual settlers upon the public domain. The bill was read a first and second time, and referred to the Committee on Agriculture. This great measure which Mr. Kelly then brought forward, one of the most beneficent that ever claimed attention in the American Congress, was originally introduced by Andrew Johnson, March 27, 1846, then a Representative in Congress from Tennessee. More than six years elapsed before the House acted on this bill, but the indomitable Andrew Johnson, future President of the United States, persevered in his statesmanlike advocacy of the measure, and the House of Representatives finally passed it May 12, 1852, by a majority of two thirds. The bill, unfortunately, failed in the Senate. The same bill, in substance, was again introduced in the House in 1853 by John L. Dawson of Pennsylvania, where it was passed a second

time by an overwhelming majority. As it had done before, the Senate again rejected the bill, under the mistaken notion that it would weaken some of the old States to allow a flood-tide of population to pour into the new ones.

The next attempt to carry through the measure in Congress, and to bestow happy homesteads on homeless millions of American citizens, was that of Mr. Kelly of January 18th, 1858. About the same time Andrew Johnson, then a Senator, introduced a similar bill in the Senate, and became, as before, its powerful champion. The House, being in the Committee of the Whole, May 25, Mr. Kelly made one of the ablest speeches of his life on the Homestead Bill. The length of the speech, and the scope of this volume, preclude its reproduction here. A few extracts are all that can be given:

“Mr. Chairman,” said he, “I regret that the bill which I had referred to the Committee on Agriculture, in the early part of this Session, has not as yet been reported on, as I would have much preferred addressing my remarks on the homestead question to the bill itself. I will take occasion to observe, in passing, that the Committees of this House have been prompt in making their reports even on matters that sink into insignificance when compared with the question of giving an humble homestead to actual settlers on the lands of the Government. If the Committee should think proper to delay their report much longer, I shall feel it to be my duty, at an early day, to move for their discharge from the further consideration of the subject, and ask leave to bring the bill directly before the House. If the Senate bill does not reach us in the meantime, I may fail even in this way to secure a vote on the question; but I will have the consolation to know that I have done my duty to those of our fellow-citizens who are either too modest or too poor to command much influence in this Hall.”

“The main provision of the bill now before the Committee consists in the liberal appropriation contained in the first section, in the following words: ‘That any person who is the head of a family, or who has arrived at the age of twenty-one years, and is a citizen of the United States, or who shall have filed his intention to become such, as required by the naturalization laws of the United States, shall, from and after the passage of this act, be entitled to enter, free of cost, one quarter section of vacant and unappropriated public lands which may, at the time the application is made, be subject to private entry, at \$1.25 per acre, or a quantity equal thereto, to be located in a body,

in conformity with the legal sub-divisions of the public lands, and after the same shall have been surveyed.’”

“The other sections of the bill are either explanatory of the first, or designed to guard against mistake or fraud in its execution. Its general purport and object is, as its title indicates, to secure homesteads to actual settlers on the public domain.”

Mr. Kelly next enters into a minute history of the vast extent of the public lands of the United States, how and when title to them was acquired, from whom derived, and an interesting resumé of the subject from a period anterior to the adoption of Articles of Confederation between the thirteen original States, down to the latest acquisition of territory in 1854, known as the Gadsden Purchase. After an instructive review of European, and especially of English colonization, he continues as follows:

“But, sir, humanity claims for this bill the serious consideration of every member of this House, more especially of those who, like myself, represent in part any of the large and populous cities of the Union. For the laboring classes, large cities and towns, with superabundant populations, are too often but the portals from wretchedness to death. They can find no employment whereby to earn their bread by the sweat of their brow, and idleness, poverty and crime are the inevitable results. The very shifts they resort to, the avocations they follow in quest of subsistence, even if they desire to live honestly, yield but scarcely sufficient to supply unwholesome, scanty, unnutritious diet; and hence the statistics of city life exhibit a frightful mortality. * * Does not humanity, then, as well as patriotism, invoke our favorable action on a bill which will withdraw from our large cities this overplus population, and by giving a proper incentive to its industry and labor, rescue it from pauperism and death? It is not for the worthless vagrant who is found in every large city, lurking amid the haunts of vice and wretchedness, I appeal. This pauperism strikes down those who are able and willing to work, and, therefore, are fit subjects for the bounty of Congress. It is a truism in political economy that when pauperism siezes upon this class of citizens, the wages of labor are reduced to the cost of subsistence. The whole class must therefore be subjected to the necessity of working, rather to avoid the poor-house than to better their condition. Rescue these and such as these, not only from New York or Boston, or New Orleans or Baltimore, but from every city, and town, and village in the

Union; rescue them from drudgery and death, and transform them into useful and industrious citizens of a free Republic. The earth which God made is man's. Give him, at least, a share of it, a spot for a cot and a garden, and a grave when he dies, else God will hold us as usurpers and faithless stewards, when the great day of reckoning shall come.”^[51]

Nothing in the political career of John Kelly has been more marked than his hostility to the great land cormorants, particularly the railroad corporations, and in nearly all his public utterances from that day to this he has uniformly denounced the venal men who have controlled the lobbies of Congress, and bought legislation by bribery and gifts, whereby they have usurped so vast a part of the public domain. A true history of Congressional grants to those corporations has yet to be written. The annals of Congress show nothing so disgraceful, and so disastrous to the public welfare, as the wholesale donations of the lands of the people to the great railroad monopolists.

In closing this rapid sketch of John Kelly's Congressional career, it may be observed that necessarily many things have been omitted which properly should find a place in his complete biography. The object sought here is to elucidate his character, and the transactions which have been selected for this purpose were among those in which he more especially displayed the bent of his mind, his love of human kind, and the practical business direction of his thoughts and language. Mr. Kelly had not reached his thirty-fourth year when he entered Congress. He had had no former experience in National politics, and was called upon to contend with statesmen of great ability, long service, and with a large following in the House. Two or three terms are required, generally, before members can hope to attain prominence as legislators and debaters in a body where men of so much ability are in rivalry for the palm of superiority. In spite of these obstacles, Mr. Kelly took rank among the leading men even during his first term, and during his second he was placed on the Committee of Ways and Means, the most important committee of the House, was recognized as one of the leaders of his party, and wielded an influence with the Administration scarcely exceeded by any one. Had he remained in the House of Representatives, considering the high position he won there in two terms, and judging from the remarkable ability he has displayed in his subsequent career, in all probability John Kelly would have become one of those few

great parliamentary worthies whose names occupy so large a space in American history. He has given ample evidence that he possessed the requisite qualifications to have succeeded Stephen A. Douglas as leader of the Northern Democracy, when death snatched the sceptre from the hands of that gifted man. Of the calibre of Kelly, the reader has seen the opinions in the preceding pages which were expressed by such weighty statesmen as Lewis Cass, and Alexander H. Stephens. The gauge and measurement which those distinguished men took of him over a quarter of a century ago have been justified by the events of the past fifteen years, and the marvellous grip upon the minds and imagination of the American people which the very name of Kelly has come to possess.

Hardly had he taken his seat in Congress when he was confronted by Wm. H. Seward, as leader of the Banks forces, in the famous contest over the Speakership in the Thirty-fourth Congress, and yet after nine weeks of stubborn battle in the House, John Kelly named a candidate, William Aiken, as competitor against Mr. Seward's candidate, and Aiken came within two votes, in a House containing seventy-four Democrats and one hundred and four Republicans, of beating Mr. Banks for Speaker of the House of Representatives. In his second struggle with Mr. Seward, when the Collectorship of the Port of New York was at stake, Mr. Kelly may be said to have entered the lists almost single handed against a powerful adverse interest in the Senate and House from his own State. He was, nevertheless, completely successful in securing the confirmation by the Senate of Augustus Schell for that office, as he had been mainly instrumental in procuring his nomination by President Buchanan. In a letter to a friend in New York, written some time after, Mr. Kelly said: "Mr. Schell's nomination was opposed very bitterly by a large number of Democrats, and I have no doubt but that it was my influence with Clay, Orr, Dowdell, Shorter, Fitzpatrick, and I might say quite a number of the members of the Senate, that brought about the confirmation of Mr. Schell." John Kelly and Augustus Schell were devoted personal and political friends, although in the factional divisions in New York the former had been a Soft Shell and the latter a Hard Shell Democrat. They stood shoulder to shoulder in victory and defeat, thinking the same things about the Republic, inseparable in affection and fellowship throughout a long and tempestuous period in the politics of the country. In city, State and National conventions of the Democratic party these two men always appeared together, and in their

journeys to and fro they travelled together, roomed together, sat at the same table, and presented a picture to the public eye of more than brotherly affection. In looking at them, as they conversed with each other at such times, one would be reminded of Gales and Seaton in real life, or of the Cheeryble Brothers of romance. The death of Mr. Schell, in 1884, was a grievous blow to Mr. Kelly. All who heard his speech at the memorial meeting for his departed friend at Tammany Hall, will remember the unwonted emotions under which he labored.

Society at the Capital during Mr. Kelly's day in Congress was very agreeable and homelike, and the manners and tastes of the people were formed in the school of frugality and simplicity well befitting a Democratic Republic. Boast as men may of the material progress of the country, the old school which held sway at Washington, during Democratic Administrations, was the nursery of civic virtues, and had about it the flavor of the golden age of the fathers. This was the school Jefferson founded, and Madison and Monroe illustrated. It was the school in which appeared John Taylor of Caroline, Rufus King, William Pinkney, Governor Gore, Josiah Quincy, William Gaston, and Littleton Waller Tazewell. Along Pennsylvania Avenue John Marshall and Daniel Webster might be seen wending their way to market with baskets on their arms, while Chancellor Bibb has gone fishing to the Long Bridge, John Quincy Adams to have a swim in the Potomac, and John C. Calhoun has gone out in the old-fashioned omnibus to Georgetown College to talk philosophy with Father Dzierozynsky.^[52] This society was based on simplicity, the heritage handed down from Revolutionary soldiers, offshoot of freedom and downrightness. There was no charlatanism in Washington then, neither had there been any since Jefferson came to tell the people "we are all Republicans, all Federalists." For fifty years the official rogues could be counted on the ten fingers. How different in that respect since the antique school has passed away. The great wars have blown out the old-fashioned virtues, and money-changers have unhinged the morality of the people. Corruption in high places has prevailed, and it has been in Washington as it was in Rome during the last days of the Empire, when Fabricius and Tully were forgotten, and turgid and loquacious rhetoricians mouthed in the Capitol. The golden age of manners, and tastes, and honest living still survived while the subject of this memoir sat in Congress. To be a gentleman above reproach was glorious. Poverty was no badge of disgrace, for James Monroe had given his fortune

to the country in the war of 1812, and died, “like rigid Cincinnatus, nobly poor.” Henry Clay could never reach the White House, because after the fashion of the simple great ones he would rather be right than President. Webster was an old school patriot, for after Calhoun’s speech in 1833, he modified his views so greatly that he never afterwards denied that the Government of the United States was a compact between sovereign States. The rule of right living was so inflexible that Calhoun relinquished all hopes for the Presidency, rather than have his wife visit Bellona, at the dictation of General Jackson.

Happy days! Fortunate John Kelly! to have been there to witness the antique social phases, and to have come away again before the era was quite passed and gone, and another and a different one had arisen in its place.

FOOTNOTES:

[44] The reference in the speech was to the murder of a waiter named Keating, in the spring of 1856, at Willard’s Hotel, by a drunken Congressman from California named Herbert. Great indignation was aroused by this unprovoked crime, and although after two trials, the jury failing to agree in the first, Herbert was acquitted, his usefulness as a representative was destroyed. “He remained in Congress till the end of his term,” says Gobright in his *Recollection of Men and Things at Washington*, “but failed to be respected by his fellow-members,” p. 164.

[45] Cong. Globe, p. 2, 1st Sess., 35th Cong., p. 1919.

[46] Cong. Globe, p. 2, 1st. Sess. 35th Cong., p. 1919.

[47] Cong. Globe, p. 2, 1st Sess. 35th Cong., p. 1919.

[48] Cong. Globe, P. 2, 1st Sess. 35th Cong., pp. 1918-19.

[49] Cong. Globe, p. 3, 1st Sess. 35th Cong., p. 2,977.

[50] “The American Irish,” pp. 70-1-3.

[51] Cong. Globe, Appendix, 1st Sess., 35th Cong., p. 430.

[52] “Father Curley tells me that John C. Calhoun used to come to the College to talk philosophy with old Father Dzierzynsky.” Extract from a letter of the late Father J. S. Sumner, of Georgetown College, to the author.

CHAPTER VIII.

ELECTED SHERIFF—MASTERS DUTIES OF OFFICE—RE-ELECTED—
NOMINATED FOR MAYOR AGAINST A. OAKLEY HALL—CAUSES OF HIS
WITHDRAWAL—GOES TO EUROPE—VISITS HOLY LAND—INNER LIFE
—HIS CHARITIES—RELATIONS WITH S. J. TILDEN—LEADER OF
TAMMANY—SECOND MARRIAGE—COMPTROLLER OF NEW YORK—
SPEECH AT LOTOS CLUB, ETC.

On Christmas Day, 1858, having been elected Sheriff of the City and County of New York, November 2d of that year, Mr. Kelly resigned his seat in the Thirty-fifth Congress. He remained in Washington at his post until it was necessary to go to New York to enter upon his new office; but in refreshing contrast to those Representatives in a subsequent Congress, the Forty-second, who voted themselves back-pay, he declined, after his election as Sheriff, to draw any salary at all for his service as a member of Congress. The total number of votes cast at the election for Sheriff was 69,088, of which John Kelly received 39,090, and William H. Albertson received 29,837, scattering 161. Kelly was the regular nominee of the Democratic party of the city. His majority was 9,092.

He entered with characteristic energy upon the duties of Sheriff, that most ancient of county officers known to the common law, *Vice-comes* to the Earl, as Blackstone calls him. The difficulties and responsibilities of this office in New York are peculiarly great. The reported cases upon Sheriff's law in that city indicate the immense number of statutes applicable to the office, and the subtleties, refinements, and nice legal distinctions, together with the liabilities, which constantly press upon the Sheriff in the discharge of his duties. As laymen nearly always have been elected to the office, it was the rule, before Kelly's term, for incumbents to rely for guidance upon legal advisers and prompters behind the scenes, whose special knowledge of business was supplemented by professional knowledge of law, and by training and experience in the office. But John Kelly set resolutely to work with his law books, for it is one of the leading traits of his character to perform conscientiously whatever duties are imposed upon him, and he was determined to delegate to no one else a labor which the people had elected

him to do himself. While he was in the office the Under-Sheriff ceased to be the High-Sheriff. After reading one or two good elementary books, he next applied himself to the Code of Procedure, the Revised Statutes, and Reported Cases, and wrote out a syllabus, or private digest for himself, of opinions delivered in the lower Courts and the Court of Appeals in relation to Sheriff's law. To master such questions he worked with unflagging zeal, not only by day but far into the night, during the greater part of his term. In the meantime he acquired familiarity with the routine and usages of the office. Thus equipped, he was perhaps the first Sheriff who thoroughly understood the duties of the office, and discharged them in person. He became a favorite among the members of the bar, and was an authority, theoretically and practically, upon disputed questions of Sheriff's law. In the Sheriff's Court Mr. Kelly himself presided over the intelligent juries there empanelled. He heard arguments of counsel, passed upon authorities cited, was conversant in the law applicable to cases, and in the opinion of leading members of the profession he displayed a judicial mind of high order.

The best body of jurors in the United States is undoubtedly the Sheriff's Jury in New York city. The members of this jury are chosen annually by an eminent Commission of judicial and other high officers, and are selected from among the foremost citizens in the community, whose wealth, intelligence, and established character afford a guarantee of their freedom from improper influences. Large fines for absence are imposed, and cheerfully paid. An annual banquet, known of all men, *ubique gentium*, as the Sheriff's Jury's Dinner, is provided for with the ample sum thus accumulated. Delmonico's choicest menu is laid under requisition, and a distinguished and brilliant company is always brought together.

That accomplished and discerning gentleman, Mr. Rosewell G. Rolston, President of the Farmers' Loan and Trust Company of New York, was one of the members of the Sheriff's Jury during Mr. Kelly's term. He once expressed to the writer of these pages his high respect for the Sheriff, and descanted upon his sturdy qualities, saying, that while he was a stern and austere man to look at, he was, nevertheless, brimful of kindly human nature. After mentioning some occurrences which had come under his own observation, he said, with no little earnestness, "John Kelly is a love of a man, a grand fellow undoubtedly."

Under-Sheriffs had presided at the trial of Sheriff's cases before Mr. Kelly's entry into the office. The Jury was surprised now to see the usual rule broken, and the new Sheriff going upon the bench himself. The more experienced members gave each other a smile of astonishment and a knowing wink, for they suspected that Kelly was led away by zeal, and by ignorance of the mysteries of the law, into whose knotty labyrinths he would be plunged presently by wrangling lawyers. But Mr. Rolston and his fellow-jurors quickly discovered that the imperturbable Sheriff behaved like a veteran under legal fire, and the lawyers themselves were surprised to find him not only familiar with questions at issue, both of traverse and demurrer, but practically master of the situation. He had broken the precedent, and what had been before a fiction was now a fact, a Sheriff of New York who knew more about his office than any of his subordinates. John Kelly made a reputation for honesty and capacity as Sheriff, which in the whole history of the office has never been excelled by any man who has occupied it. The best evidence of this is found in the fact that at the earliest moment when he was eligible under the Constitution of the State, namely, at the expiration of the term of Sheriff Lynch, his immediate successor, John Kelly was renominated and re-elected Sheriff of New York. He is the only man since the foundation of the Government who has been elected twice to this important office. In the early day, before the Hamiltonian or monarchical features of the State Constitution had been abolished, and the Jeffersonian or elective principle had been substituted for them by constitutional amendment, the Governor and Council held the appointment, not only of judicial and other great officers, a most fruitful source of corruption and centralization, but they were likewise clothed with the power to appoint Sheriffs and County Clerks in the several counties of the State. But twice only, in the early history of the State, did the Council of Appointment at Albany select the same men to fill a second term as Sheriff of the city and county of New York. Marinus Willett was appointed Sheriff of New York in 1784, and served until 1787. He was re-appointed in 1791, and held until 1795. Benjamin Ferris also held the office by appointment from 1808 to 1810, and again from 1811 to 1813. On the 6th of November, 1864, John Kelly, who had filled the office so faithfully from 1859 to 1861, was re-elected Sheriff of New York, an unprecedented honor, as well as endorsement of his official integrity, now bestowed for the first time in the history of the city, by the people themselves, upon any individual.

At this election there were three candidates in the field, two Democrats and a Republican, but after an exciting canvass John Kelly led the poll by a plurality of nearly 6,000, his Republican competitor coming next. The whole number of votes for Sheriff was 106,707, of which Kelly received 42,022, John W. Farmer 36,477, and Michael Connolly, commonly called the "Big Judge," 28,099. The number of scattering votes was 109. Mr. Kelly's second term expired December 31, 1867. That it was a repetition of the first one in his fidelity to the important interests and duties confided to his charge, was universally declared at the time, without one whisper of dissent. In the fierce conflicts of party fifteen years after his first term as Sheriff, and seven years after the second, when his talents and commanding position in the community had made him a formidable antagonist, John Kelly's official integrity as Sheriff was called in question for the first time by certain political opponents, whose misconduct he had exposed, and whose arbitrary acts he had resisted. These tardy shafts of malice fell harmless at his feet.

In the year 1868, eleven months after he had ceased to be Sheriff a second time, a still handsomer testimonial to the stainlessness of his character was tendered to him than that implied in his re-election as Sheriff; an emphatic endorsement of his qualifications for the highest civic preferment was received by him when the Democratic Union of New York nominated him for Mayor of the city against A. Oakey Hall, the candidate of the Tweed Ring. In a laudable and patriotic attempt to drive the Ring from power at the Charter election of November, 1868, New York's best citizens,—merchants, bankers, tradesmen, mechanics, and members of the various professions, turned to John Kelly to lead them, to the man whose admirable administration of the trusts he had previously held as Alderman, Congressman, and Sheriff, afforded satisfactory proof of his fitness to grapple with the Ring, and if elected, to crush it, and restore honesty and economy in the various municipal offices.

Among those who looked to Mr. Kelly at this interesting and critical hour in the history of New York, as a safe leader against the notorious triumvirate of Tweed, Sweeny and Connolly, were Samuel J. Tilden, Andrew H. Green, Augustus Schell, and still another—tell it not in Gath! mention it not in the streets of Ascalon! for it is surprising to relate—Nelson J. Waterbury himself. Yes, in the very next year after John Kelly had ceased to be Sheriff,

this gentleman, who has since lavished so much savage abuse upon him for mythical misdeeds as Sheriff, the self-same Nelson J. Waterbury was an enthusiastic supporter of John Kelly for Mayor of New York.

The support which Mr. Tilden was disposed to bestow upon Mr. Kelly was a more important incident of that eventful campaign. For a long time they had been intimate acquaintances, and Tilden not only looked upon Kelly as a man of invincible honesty, but recognized in him a born leader of men. It was a most unfortunate thing that Mr. Kelly's health, at this particular juncture, was so much impaired that it was not possible for him to stand the strain of such a contest, or, indeed, of any contest at all. The blackest chapter in the history of New York was about to be written. He felt the magnitude of the occasion, and rose from a sick bed to go meet the people half way, when they called him to lead them in the fight. No personal sacrifice could be too great, not even life itself, when the stakes were the reformation of the public service, and the rescue of a million people from the corrupt domination of such a Ring. "You will never live to reach the army," said Voltaire to the feeble and emaciated Mareschal de Saxe, as the leader was setting out for Fontenoy. "The object now," replied the fiery commander, "is not to live, but to go." But Mr. Kelly, however willing to act his part, soon found that nature's barriers are not to be overcome. The hand which had rejoiced in its strength was relaxed and powerless under wasting illness, and like that of Old Priam, *telumque imbelle*, no longer could strike an effectual blow. He was, indeed, destined to smite the Tweed Ring a death-blow, but not now, nor until four years had come and gone, when, with health restored, and energies all on fire, he drove them from Tammany Hall, and inscribed his name among the benefactors of New York. He lived, like Saxe, to fight and win his Fontenoy.

From early life Mr. Kelly had suffered from bronchial troubles, which always were increased by public speaking. His mind is intensely active. "I must be occupied in some way," he once said to a friend, "and I can't sit still five minutes without doing something. I cannot be an idler."^[53] Whatever he undertook to do, his faculties became concentrated upon the task until it was accomplished. His occupations for a long time had been engrossing and laborious, and his health had suffered under the strain. "For twenty years," to repeat the remark of the editor of the *Utica Observer*,

quoted in a preceding chapter of this volume, "he had devoted several hours of every day to the pursuit of literature and science," and at length his constitution was seriously impaired. Domestic afflictions also came upon him about this period, and his physical maladies were increased fourfold.

John Kelly had entered into wedlock when a very young man, and for twenty years his circle of domesticity was unclouded by a single shadow. His wife, *née* McIlhargy, was the daughter of an Irish adopted citizen of New York, and an interesting family, a son and two daughters, grew up to the verge of manhood and womanhood about him. Mrs. Kelly, whom the present writer knew well, and greatly respected for the excellent but unostentatious qualities of her character, was a good wife, a devoted mother and a pious Christian woman. In the year 1866 she fell a victim to consumption. Her son Hugh, a bright and winning young man, just as he had turned his twenty-first year, succumbed to the same disease, and followed his mother to the grave. Symptoms of consumption also appeared in the daughters, and it was evident that death had marked them both for its early victims. To a man of John Kelly's strongly affectionate nature, wrapped up in his home and family, these visitations falling upon him like unmerciful disasters, one after another in quick succession, proved well nigh irreparable. His health already impaired, gave way entirely, and his friends were seriously apprehensive of his own early demise.

It was in the midst of these afflictions that he was nominated for Mayor against A. Oakey Hall. He was placed in nomination by the Democratic Union, which held its convention at Masonic Hall, November 18, 1868, and he received on the first ballot 240 votes, to 51 for John W. Chanler, and 1 each for John McKeon and Fernando Wood. On the second ballot John Kelly received every vote in the convention, and was declared the unanimous nominee for Mayor. A committee was appointed by the chair, Mr. Roswell D. Hatch, to notify Mr. Kelly of his nomination, and to invite him before the convention. The chairman of this committee was Mr. Nelson J. Waterbury. After some time Mr. Kelly entered the hall escorted by Mr. Waterbury, by whom he was presented to the convention in appropriate terms, as the reform candidate for Mayor.

He was warmly received, and made a brief speech, vigorously denouncing the Tweed and Sweeny Ring, which had usurped control of Tammany Hall. He referred in terms of praise to those honest Democrats,

many of whom he saw before him, who formerly like himself had been identified with the Wigwam, but who had retired from it in disgust, as he himself had done when the Ring obtained control. "I see many gentlemen in this convention," said Mr. Kelly, "who formerly were associated with me in Tammany Hall, and who felt the same grievances there which I myself have experienced. I have no desire for this nomination, but while I have not sought it, I will only say this, I shall stand by those who have so generously nominated me for Mayor, and if elected, I will discharge the duties of the office honestly and faithfully. In accepting your nomination I fully realize that both yourselves and myself will have to work strenuously against the corrupt men opposing us, if we expect to secure victory. But by working together in good faith we can succeed, for the people of New York feel the importance of the contest, and the necessity of putting down the bad men who have obtained control of the city government. I accept your nomination, and if elected will do the best in my power to realize all your legitimate expectations."^[54]

Abram R. Lawrence was nominated for Corporation Counsel. The candidacy of Mr. Kelly greatly alarmed the Ring leaders and their Republican allies. The latter sought to control the Republican convention which was held the next day, and force through a straight Republican ticket for Mayor and Corporation Counsel, as the most effective way to secure the election of A. Oakey Hall. But fortunately there was a reform element among the Republicans, as well as among the Democrats, and the opponents of the Ring were in a majority in the Republican city convention. That excellent citizen, Mr. Sinclair Tousey, was President of this convention. The main struggle was between those who favored the endorsement of John Kelly for Mayor, and, therefore, wished the convention to adjourn over, and those who advocated the prompt nomination of a straight Republican ticket. The latter class was led by Charles S. Spencer, who vehemently demanded immediate action. But the opponents of Spencer prevailed, and secured an adjournment to the following Monday. "It was understood," remarked the *Herald* of November 20th, "that the party of compromise was engaged in fixing up quite a neat little arrangement, by which the Republicans would endorse the nomination of John Kelly for Mayor, in consideration of having Mr. Shaw substituted for Mr. Lawrence as candidate for Corporation Counsel. The compromisers gave out that Spencer and the party of action were simply acting in the

interest of Tammany Hall in endeavoring to have the Republican convention make regular nominations.”

In this campaign the *Herald* opposed John Kelly, and championed A. Oakey Hall for Mayor. This was not evidence of any complicity on the part of that paper in the misconduct of the Ring, for in 1868 there was no positive proof in possession of the public of the criminality of the Ring, and hence the *Herald* or any other journal was not justly obnoxious to unfavorable criticism at that early day in the history of the plunderers for advocating the election of Hall. “The Ring,” says Mr. Tilden in his history of its overthrow, “became completely organized and matured on the 1st of January, 1869, when Mr. A. Oakey Hall became Mayor. Its duration was through 1869, 1870 and 1871.”^[55]

The morning after Mr. Kelly’s nomination the *Herald* declared for A. Oakey Hall and against Kelly, in one of those plausible leading articles by which it has so long and so remarkably influenced public opinion for or against men and measures. The reference to Mr. Kelly as a nabob was an adroit campaign stroke, and although he was living quite unostentatiously in a modest three-story brick house at the corner of 38th Street and Lexington Avenue, an impression was created that he was surrounded by princely opulence, in the fashionable quarter among the millionaires. The *Herald* editorial was as follows:

“John Kelly is a good citizen and a respectable man; but he has already been elected by the Tammany Democracy, to which he owes all his past political favors, to the offices of Councilman, Alderman, member of Congress, and twice to the valuable position of Sheriff of New York, being the only man, we believe, who has held that lucrative office a second term. John Kelly was brought up a lad in the *Herald* office, when he first came to New York, and was well brought up; but he went into politics in spite of his early training. We supported him for office while he was poor and lived in the locality of the Fourteenth Ward. Now that he has made himself a millionaire, and lives like a nabob in the high locality of one of the most fashionable avenues of uppertendom, we think he should be satisfied, and give place to others who have not enjoyed such good fortune.”

“If the Democrats nominate A. Oakey Hall, as it is said they will, as their candidate for Mayor, he will no doubt be elected by a large majority. He

will suit those who take a pride in the dignity of the city, because he is a man of superior ability, a profound thinker, an eloquent talker, and understands thoroughly the details of the municipal government.”^[56]

The Ring men got thoroughly frightened after the adjournment of the Republican City Convention without a nomination, for it was becoming quite clear that independent citizens, both outside and inside of the respective political parties, meant to support Mr. Kelly for Mayor against the Ring candidate. This state of things caused the *Herald* to discard special pleading respecting the “nabobs of uppertendom,” and to redouble its attacks on Kelly. He was now denounced as a deserter for having retired from Tammany Hall, and joined the opponents of William M. Tweed. “The fight,” said the *Herald*, “is to be made against the Democratic organization with the object of breaking down Tammany, and thus giving the death-blow to the regular Democracy in its stronghold. The *Tribune*, *Times* and *World* are co-laborers in this work—the two former openly, and the latter in an underhanded but not less vindictive manner. They are preparing to unite on John Kelly, who has deserted the Democratic organization for the purpose of leading the Republican forces in the battle. District Attorney A. Oakey Hall will be the Democratic nominee, and will no doubt be elected; but it will be one of the greatest fights we have ever had over a Charter election, as the breaking down of the Democratic organization at this end of the State would be the death-blow of the party, and is therefore a stake worth playing for by the Republicans, who feel the loss of power in New York very severely.”^[57]

Against this pretended but sham regularity, not only Mr. Kelly, but Mr. Tilden also revolted. “Weighty pressure,” says Tilden, “was brought on me from powerful men all over the State to ‘save the party.’ I denied that the system of organization then in use in the city had any moral right to be considered regular, or to bind the Democratic masses. I told the State Convention that I felt it to be my duty to oppose any man who would not go for making the government of this city what it ought to be, at whatever cost, at whatever sacrifice. If they did not deem that ‘regular,’ I would resign as chairman of the State Committee.”^[58]

The exertion made by Mr. Kelly in leaving a sick bed to go before the Democratic Union City Convention to accept its nomination for Mayor,

increased the illness from which he suffered. His physician called eminent doctors into consultation, and it was the opinion of them all that his continuance in active political movements would have a fatal result. This professional decision was communicated to Mr. Kelly by that eminent physician, the late Dr. Marion Sims. Thus admonished that the excitement of the campaign would kill him, Mr. Kelly, on the 27th of November, reluctantly sent in his withdrawal from the Mayoralty contest to the Executive Committee of the Democratic Union, and the vacancy was filled by the nomination of Mr. Frederick A. Conkling.

Mr. Kelly, who was a sufferer from insomnia, soon after sailed with his two daughters for Europe. He made an extended tour in Europe, Asia and Africa, visiting, among other places, the Holy Land. He first went to Ireland as a pilgrim would return to the home of his fathers, spending some time in the beautiful Island of Saints, where Christianity made its only bloodless conquest in the world. During fourteen hundred years, while other Christian nations have rushed back into infidelity and again become Christian, Ireland has never lapsed into infidelity, nor into a scoffing, Godless philosophy, the invariable accompaniment of unbelief and paganism. After visiting the various capitals of Europe,—London, Paris, Vienna, Berlin, Madrid, St. Petersburg, and other places, he repaired to Rome, the city of the soul, the Niobe of nations, shrine of saints and martyrs, of doctors and confessors, where he spent a considerable period in rest and retirement, and in viewing its wonderful ruins, monuments, and churches. Repairing to Holy Land, Mr. Kelly remained for some time at Jerusalem, the cradle of Christianity; which Titus, in fulfilment of prophecy, left not a stone upon a stone of; where Christ had walked about among the people, and where He died upon Calvary.

In contemplating scenes associated with the earthly life and death of the Redeemer, the traveler no doubt derived comfort in his own bereavements, dignified by such a fellowship of suffering as was there. What a lesson of humility the ignominious Cross must have preached to his reflective mind. He was leading a contemplative life, and his letters at this period dwell much upon the Mount of Olives, the Way of the Cross, and the Holy Sepulchre. He had read somewhere in allegory of the contest in which the trees of the forest are represented as debating among themselves who should be their king. Had the contest occurred in the days of the Redeemer,

small chance the ignoble tree of the Cross would have had to win the crown. Mr. Kelly had read Cardinal Wiseman's beautiful thoughts on the subject. "Apply the allegory," said he once in a circle of his friends, "and let us enter some forest of Judea filled with stately trees, lofty, tapering pine, and royal cedar, and hear the proud possessor give orders as to how their worth should be realized into wealth. He says to the forester: 'See that elegant and towering tree which has reached the maturity of its growth, how nobly will it rise above the splendid galley and bear itself in the fell fury of the wind, without breaking or bending, and carry the riches of the earth from one flourishing port to another. Cut it down and destine it for this noble work. And this magnificent cedar, overcasting all around it with the solemnity of its shade, worthy to have been built by Solomon into the temple of God, such that David might have sung its praises on his inspired lyre; let it be carefully and brilliantly polished, and embarked to send to the imperial city, there to adorn those magnificent halls, in which all the splendor of Rome is gathered; and there, richly gilded and adorned, it shall be an object of admiration for ages to come.' 'It is well, my lord,' replies his servant, 'but this strange, this worthless tree, which seems presumptuously to spring up, beneath the shadow of those splendid shafts, what shall we do with it? it is fitted for no great, no noble work.' 'Cut it down, and, if of no other use, why, it will make a cross for the first malefactor!'"

Strange counsels of men! The soaring pine dashed the freight that it bore against the rocks, and rolled a wreck upon the beach. The noble cedar witnessed the revels of imperial Rome, and fell by the earthquake, or in the fire kindled by the barbarians, charred into ashes. But that ignoble tree, spurned by proud man and put to the most ignominious of uses, bore the price of the world's redemption upon Calvary, its every fragment has been gathered up, and treasured and enshrined, and in every age it has been considered worth all that the world dotes on, and sets its heart on. An Empress crossed the seas and searched among the tombs of the dead for that material wood of the Cross of Christ. For that holy rood was built a magnificent church on Mount Sion. For it the Emperor Heraclius made war on the King of Persia; and when he had recovered it, bore it as his Master had borne it before, barefoot and in humble garb to Calvary. For that tree Constantine the Great built a noble church, yet standing among the ruins of the palaces of Rome, and brought the very earth from the Savior's own land, as though none were worthy to be there save that upon which had first

fallen the precious blood of redemption. For eighteen hundred years this relic has been the most priceless treasure of Christians. Its smallest fragment has been enshrined and vested in gold and precious stones, and housed and sheltered in magnificent temples piled up with the richest materials and noblest productions of art. The ignoble tree which the world despised has conquered the world itself.

Mr. Kelly's correspondence at this time made it apparent that he had ceased to feel interest in the busy trifles of politicians, and that his thoughts were directed to problems of the moral world, to reveries upon the mysteries of redemption, like that outlined in the preceding allegory upon the Cross, and to the works of mercy, both spiritual and corporal. He brought back from Palestine souvenirs and patristic relics of much interest. He had familiarized himself with the topography of the hallowed scenes of Holy Land, and those who have heard him describe them and relate the history and traditions connected with them, have been struck with his reverence as a narrator, as well as with his closeness as an observer of manners, customs and places. While he was abroad unfounded rumors reached New York that John Kelly had withdrawn from the world, in order to spend the remainder of his days in monastic retirement. Perhaps this story originated from the circumstance that he travelled much in the company of clergymen in Europe. Vicar-General Quinn of New York was his companion on the Continent. The late Bishop McGill of Richmond, Virginia, a man of ascetic tastes and profound learning, often shared Mr. Kelly's carriage in the latter's drives about Rome. Another thing which may have given color to the rumor was the fact that Mr. Kelly had educated, and was still educating, many young men for the ecclesiastical state, not only American youths, but those of Irish and German and Swiss nationalities. While he was in Switzerland his attention was directed by his daughters to a pious little boy, the son of a poor gardener, who with another boy of wealthy parentage, served at the altar every morning. The wealthy man's son soon departed for the University, when Mr. Kelly sent for the son of the gardener, and finding that he wished to become a religious, told him that he would afford him the means to carry out his purpose, and amid the grateful tears and prayers of the boy's parents, he sent him to a renowned German University, and defrayed all his expenses until he was graduated. That boy has since become a learned scholar and minister at the altar. While Mr. Kelly was in Rome he became warmly interested in the American College,

a noble seat of learning in that city for the training of young ecclesiastics for the American Missions, and he generously established a bursary in the College. He gave to its President, Dr. Chatard, who since has been raised to the Episcopate, five thousand dollars for the maintenance of this charitable Kelly foundation. It reflected no credit upon the managers of the New York Cooper Institute meeting, held in 1884, to denounce the spoliation of the Propaganda, of which the American College at Rome is a part, to have omitted one of its benefactors, and so prominent a representative man as John Kelly, from the list of the officers and speakers of that meeting. Those managers were then burning incense to Monsignor Capel, a clerical gentleman of know—ledge, not knowledge, who thinks American Catholics are too illiterate yet awhile to aspire to a University.

The beautiful pictures in stained glass, which adorn the windows of St. Patrick's Cathedral in New York, are, with the exception of the examples in the French Cathedral in Chartres, perhaps unsurpassed in modern times, as figured scenes from the Scriptures and lives of the saints. In this pictorial religious epic is a beautiful window placed there by John Kelly in memory of his lost ones, or more correctly of those members of his family who have been called to the better life. "Before quitting the Sanctuary," says the writer of a pamphlet descriptive of the exterior and interior of the Cathedral, "we will bend our steps towards the Lady Chapel. The window in the first bay represents the Presentation of the Blessed Virgin in the Temple. The high priest, in gorgeous vesture, advances to receive the child, while St. Joachim and St. Anne modestly remain standing behind. The friends of the family are assembled to witness the ceremony. This bears the inscription, 'John Kelly—in memoriam.'" [\[59\]](#)

Some years before the completion of the new Cathedral, and while Mr. Kelly was in Rome, he gave an order to a celebrated artist in that city of art treasures to execute for him four great oil paintings representing the Baptism of our Lord, the Marriage feast of Cana, the Return of the Prodigal Son, and St. Patrick preaching at Tara. He afterwards embraced two additional scenes from sacred history in his scheme, the Ascension of Our Lord, and the Assumption of the Blessed Virgin. The artist, Galliardi, produced a noble work after the best masters. These six magnificent paintings were sent from Rome to America as a present from Mr. Kelly to

St. Patrick's Cathedral, and are the only paintings in canvas upon the walls of that grand church.

When he was in England he visited a region inhabited almost entirely by miners—English, Irish and Welsh. Those people were, to a great extent, ignorant of the truths of Christianity, and there were no facilities in the wild mountain region they inhabited to improve their moral condition. Working in the mines day and night, and constantly exposed to death in the midst of their subterranean toil, these poor people appealed to friends at a distance to send them a clergyman to minister to their spiritual wants. The appeal was answered, and the Reverend Mr. Dealy arrived there to open a mission a short time before Mr. Kelly visited that part of England. The clergyman found himself destitute of every worldly appliance for a proper ministration of the functions of his spiritual office, no church, no school-house, no charitable home or asylum for the sick and helpless, all things, in a word, wanting, and no adequate means to provide them. He was an excellent and zealous man, and he stated his situation, and the necessities of the people to Mr. Kelly. He told him that if he had the money to build a church and school-house, incalculable good might be done. He poured his story into sympathetic ears. Help was promised, and faithfully was the promise kept. Mr. Dealy some time after, upon Mr. Kelly's invitation, set sail for America, and took up his residence in the latter's house. When Mr. Kelly reached home he organized a movement among those of his immediate friends, whose opulence and charity admitted of the appeal, and in the course of a few months Mr. Dealy, as he informed the writer of these pages, was the fortunate possessor of a purse of over twelve thousand dollars, inclusive of Mr. Kelly's own handsome donation. Those poor miners in England soon had their church, and a school for their children, and their pastor had reason to bless the day when he first made the acquaintance of the subject of this memoir.

After John Kelly had re-entered the field of politics, and even when immersed in public affairs, his charity and philanthropy continued to be the controlling principles of his conduct. During the past five or six years he has been a frequent lecturer in various cities of the Union. His lectures, respectively upon the Sisters of Charity, the Early Jesuit Missionaries in North America, and upon the Irish Settlers in North and South America, were replete with historical information and sound practical instruction, and

wherever he appeared on the platform as a lecturer he always drew crowded houses. Mr. Kelly realized from his lectures, which he delivered repeatedly in the North, South and West, over fifty thousand dollars, and this immense sum he gave in charity to educate and clothe the poor, to build schools, or to lift the burden of debt from charitable institutions. His heart was in his work. He would not allow one penny of the proceeds of his lectures to be diverted from the sweet uses of charity for his traveling expenses, but in every instance, wherever he went to lecture, he insisted on paying his railroad fare, and hotel bills, out of his own pocket.

Bagenal, the London traducer of the American Irish, with unblushing mendacity, classes John Kelly as a leader of “shoulder-hitters and ballot-stuffers,” and ignorantly accuses him of being an enemy of Irish colonization in the West. The simple truth is that Kelly is one of the originators and prime leaders in the movement to get poor emigrants out of the overcrowded Eastern cities, and has contributed thousands of dollars to make their colonization in the West a success.

Dr. Ireland, Bishop of St. Paul, Minnesota, one of the great pioneers in this benign scheme, while speaking kindly of Mr. Bagenal in a letter to the present writer, still shows how erroneous he is in his strictures upon Mr. Kelly. The Bishop’s comment upon Bagenal, is as follows: “He is mistaken, of course, in his remarks about Mr. John Kelly. But I do not think he will be sorry to be set right. He mixes up Mr. Kelly with the average politicians of New York—not knowing, as I know, Mr. Kelly’s exceptional qualities, his sterling honesty, his true love for his fellow-Irishmen, and his general nobility of character.”^[60]

When he retired from politics in 1868, Mr. Kelly had resolved to enter upon that field no more. Chastened by domestic affliction, and loss of health, the plan of his life was changed. Public station had lost its charm for him. To feed the hungry, clothe the naked, and open the doors of colleges, or advanced schools, to those whose talents were good, but who were too poor to gain admittance, these things afforded to him his greatest pleasure. He sought out the companionship of holy men, and of holy books. Thomas à Kempis became his *vade mecum*. He took more delight in the pages of the Following of Christ than he had ever known in the conflicts of politics, either in the halls of Congress or the city of New York. It was not altogether surprising, therefore, that people’s conjectures should consign him to the

prospective seclusion of a monastery, and that rumors to that effect should have gained circulation. The *New York Times*, on one occasion, shortly after Mr. Kelly's second marriage, made editorial reference to these rumors, and spoke of him as that remarkable individual who had escaped being a monk at Rome, in order to become the nephew of a Cardinal in America.

These revelations of the inner life of John Kelly are not laid before the public without a great deal of reluctance. Some may think it were better to keep them back until after his death, and the writer knows perfectly well that no one else would prohibit their publication at any time, or under any conceivable circumstances more sternly than John Kelly himself. But these pages have been written without consultation with any human being in the world, and recollecting the unparalleled and shameful abuse which this man has been subjected to for doing his duty as God has given him to see it, the writer is resolved to tell the truth about him, and let the unprejudiced reader know something of his real character. Indeed hardly a tithe of those charities and good works of John Kelly which are within the personal knowledge of the present writer, have been mentioned in these pages. During the war for the Union, especially, were the kindly impulses of his nature displayed. He went about among the hospitals visiting and cheering the sick and despondent, supplying articles for their relief and money for their wants, and doing what he could for the wounded. He did not confine these ministrations to the hospitals in New York, but went to Washington and got a pass from Edwin M. Stanton, Secretary of War, whom he had known well in former years, to visit the Army of the Potomac, and particularly the camp hospitals. Thither he repaired, and extended his aid not only to New York soldiers but to those of other States, with characteristic zeal and liberality. A letter was published in the *New York World*, November 1st, 1875, from Mr. James Murphy, in which reference is made to one of Mr. Kelly's visits to the army in Virginia.

"I well recollect," said the writer, "that thirteen years ago, when I was a soldier in the Second Army Corps of the Army of the Potomac, and stationed at Stafford Heights, Virginia, opposite Fredericksburg, I had the pleasure of meeting Mr. John Kelly. His mission was one of the noblest that man ever followed. He was going round from hospital to hospital, and from tent to tent, visiting the sick and wounded of the poor and neglected soldiers of the New York regiments, to see to their wants, and alleviate their

sufferings as much as lay within his power, and questioning them as to their treatment as compared with the treatment of the soldiers of other States.” Many persons in the border States, as those adjoining the scene of military operations were called, who were guilty of no disloyal acts, were nevertheless made victims of spies and detectives, and they and their families suffered great hardships. One of these was Mr. John Henry Waring, a prominent and wealthy citizen of Prince George’s County, Maryland, whose property was confiscated, whose large family, mostly ladies, were banished, and who was himself imprisoned for the war in Fort Delaware. This was the work of Baker, the notorious detective, and a more cruel persecution hardly occurred during the war. Mr. Kelly was appealed to on behalf of Mr. Waring, and after he was satisfied that injustice had been done to that excellent citizen, he went to Washington and saw Mr. Lincoln, and Secretaries Stanton and Montgomery Blair, on behalf of the Waring family and estate. But Baker had poisoned the mind of Stanton against the Warings, and, notwithstanding the Secretary’s regard for Mr. Kelly, he refused the clemency that was asked. Mr. Kelly returned to New York, and enlisted in Mr. Waring’s favor the powerful co-operation of Governor Morgan, Archbishop Hughes, Thurlow Weed, James T. Brady, and about fifty other leading men, and, thus strengthened, he renewed the appeal for justice and executive clemency. Postmaster General Blair had become warmly interested in the case, and to him Mr. Kelly confided the petition of the citizens of New York named above, and Mr. Blair in conjunction with Mr. Kelly ceased not to press the case until Mr. Waring was liberated, his family were recalled from banishment, and his beautiful home and plantation on the Patuxent river were restored to him.

Mr. Kelly returned from Europe in the fall of 1871, much improved in health, but not yet restored to his old vigor. The present writer gave to Mr. J. E. Mallet, of Washington, D. C., who was going to Europe, a letter of introduction to Mr. Kelly, while the latter was abroad. Although they were near each other several times in Europe, Mr. Mallet did not become acquainted with Mr. Kelly until they accidentally met on the same steamship, the *Republic*, in returning to America. In a letter published in the *Baltimore Catholic Mirror*, Mr. Mallet gave an interesting account of this voyage, and of the amusements improvised on shipboard. “One evening,” said he, “we organized a musical and literary entertainment. The chairman made a speech, a lady played a fine musical composition, a gentleman gave

a recitation, a young bride sang a beautiful ballad, Hon. John Kelly, of New York, sang in excellent style an amusing Irish song, then a duet was sung by two ladies, some one sang a French song, Father Sheehy sang an Irish ballad on St. Patrick, and the entertainment concluded, and the assemblage dispersed during the reading by the Rev. Dr. Arnot, of one of his old sermons.”

“A valued friend had given me a letter of introduction to Mr. Kelly, to present in France or Switzerland, but I met that gentleman only on the wharf at Liverpool, and then almost accidentally. Mr. Kelly has travelled throughout Europe and the Holy Land, and is one of the most interesting travelling companions whom I have ever met. I was particularly pleased with his manner of presenting the true history of, and reasons for certain religious and national practices in Ireland and Italy, in opposition to the theories and suppositions of certain of our fellow-voyagers, who ignorantly calumniated the one, and ridiculed the other.”

During the three years of Mr. Kelly’s absence in Europe, New York had been given over to every form of official rascality and plunder. No sooner had he reached the city than he was besieged by leading citizens, such as Mr. Tilden, Mr. Schell, Mr. Hewitt, Mr. Belmont, Mr. Chanler, Mr. Clark, Mr. Green and others, all of whom urged him to take the lead in a movement for the overthrow of the Tweed Ring. To each one of these gentlemen he said that it was not in accord with the plan of life which he had marked out for himself for the future, to re-enter the field of active politics. But his friends redoubled their importunities. They told him there was no other man in New York, scarcely one in the United States, so well fitted as himself to head such a movement, and that in the lifetime of but very few persons did so grand an opportunity offer itself to serve the people as that which now awaited him. His friends finally prevailed, his private plans were changed, and his memorable reappearance in New York politics occurred in the year 1872. “My health remains about the same as when I saw you,” said Mr. Kelly, in 1872, in a letter to the present writer. “I was compelled to take part, for the reason that my old associates would not take No for answer. My active participation has not helped me much in point of health, nor does it seem possible for me to live in New York without being more or less mixed up in politics.” In an interview published in the *New York World*, October 18, 1875, Mr. Kelly explained more fully how he was

induced to return to politics. Details omitted, the salient points of that interview were as follows: "When I returned from Europe in the fall of 1871, it was my intention to have nothing to do with politics at all. I had been sorely afflicted by the loss of my family, and I wanted to spend the rest of my life as a private business man. I was met by a number of leading men, who told me that during my absence the Democratic party in the city had become utterly demoralized, and that the Grant Republicans, taking advantage of this state of affairs, had come into full possession in this great Democratic city, and they begged me to assume an active part. I had hundreds of the leading men in the city here at my house, asking me to take hold and help them up. After much importunity, I consented, and threw my whole heart into the work. I suppose I have some foresight. I think I generally see things pretty clearly, and this is probably why they trust to my judgment. Whenever I fail to win their confidence it will be an easy matter for them to dispense with me. I am not commissioned as a leader by any constituted authority. But as what power and influence I have depend entirely upon the good will and confidence of the people who choose to recognize me as a leader, and listen to my advice, I am wholly in their hands, and they can keep me or reject me any day."

Mr. Kelly's part in public affairs prior to 1872 had been creditable and marked by ability, but there were other public men who, in like circumstances, had attained equal or greater distinction. In the year 1872 he was called upon to prove whether he was endowed with that highest of all the gifts of Heaven, the capacity to lead men in a supreme emergency, and it is not the language of eulogy to say that he displayed consummate ability as such a leader; and that his courage, coolness and good judgment enabled him to achieve results which no other citizen of New York, with similar resources at command, and similar obstacles in his way, could have accomplished.



yours truly
John Kelly

yours truly
John Kelly
(AT THE AGE OF 50 YEARS.)

In a city of a million inhabitants, where a Government had prevailed for years, such as disgraced Rome in the days of Caligula, when the tyrant made his horse a Roman Consul; or in the epoch from Tiberius to Nero, when folly, crime and profligacy ran riot in all departments of the Empire, such as Tacitus describes so vividly in the Annals, and in the immortal Life of Agricola; in such a state of affairs it was an enormous task for John Kelly to head a successful movement against a Ring intrenched in office, with millions of stolen money at command, and backed up by a purchased Legislature. This task he undertook and accomplished, and history will record the fact on its imperishable page that the gallant attack upon the Ring in the Courts and Legislature, by Charles O'Connor and Samuel J. Tilden, was not crowned with final success until John Kelly carried the war into Tammany Hall, and drove the Ring politicians from its portals. O'Connor and Tilden scotched the snake in 1871, and John Kelly killed it in 1872. Tammany Hall, the cradle of American Democracy, whose patriotic Sachems in the year 1819 were addressed in a speech by Andrew Jackson, [\[61\]](#) and in long friendly letters at the same period by Thomas Jefferson, the elder Adams, and James Madison, [\[62\]](#) was rescued from disgrace and placed again in control of honest men in 1872 by John Kelly. Not only the political organization, but the Tammany Society was wrested from the control of the Ring. No political contest in the history of the city of New York was more stubbornly fought on both sides, or has been followed by happier results to the people at large. If great public service entitles a man to rank among the worthies of the Republic, John Kelly won that title when he succeeded in expelling the Ring men from Tammany Hall. His victory marked an epoch. The Board of Sachems of the Tammany Society for 1871, and the Board for 1872 tell the story of this great revolution:

1871. —	1872. —
<i>Grand Sachem:</i> WILLIAM M. TWEED.	<i>Grand Sachem:</i> AUGUSTUS SCHELL.
—	—
<i>Sachems:</i>	<i>Sachems:</i>

RICHARD B. CONNOLLY,
PETER B. SWEENEY,
A. OAKLEY HALL,
JOSEPH DOWLING,
SAMUEL B. GARVIN,
ETC.

CHARLES O'CONOR,
SAMUEL J. TILDEN,
JOHN KELLY,
HORATIO SEYMOUR,
SANFORD E. CHURCH,
AUGUST BELMONT,
ABRAM S. HEWITT,
ETC.

On the retirement of Mr. Belmont from the Chairmanship of the National Democratic Committee, in 1872, that distinguished position was tendered to Mr. Kelly at the meeting of the National Convention in Baltimore. But domestic affliction had again visited him about that time, in the death in New York of his only surviving daughter, his elder daughter having died some time before in a city in Spain, where her father had taken her in a vain pursuit of health. Cast down by these afflictions, Mr. Kelly declined the Chairmanship of the National Committee of his party, but suggested his old friend Mr. Schell, who was elected Chairman. "Who is John Kelly?" asked some of the younger delegates at Baltimore, when they heard his name mentioned as their first choice by the New York delegation. They were informed by Mr. Schell that Mr. Kelly was detained at home in the house of mourning, but that he was a great leader in New York politics, and a true patriot in public life; and that he had sat in Congress before many of those young men were well out of the nursery.

It was about this time that the Committee of Seventy set out to reform the city government, but those worthy old gentlemen soon became engaged in an amusing scramble for office, and beyond putting their chairman, General Dix, in the Governor's chair, and another of their number, Mr. Havemeyer, in that of Mayor, they did not set the river on fire, nor perform any of the twelve labors of Hercules. As soon as the Committee of Seventy became known as office-seekers, their usefulness was at an end. John Kelly sought no office, for he had to fight a battle with office-holders, then a synonym for corruptionists, and he appreciated the magnitude of the struggle more correctly than to leave it in anybody's power to say that the Ring men and the Reform element, the latter marshalled by Tilden and himself, were fighting over the offices. A mere scramble for office between the Ins and Outs is always a vulgar thing. When they became place-hunters, the Committee of Seventy ceased to be reformers. Kelly, with better statesmanship, sought no office, and would accept none. When every other

event in his life has been forgotten, his memorable battle in the County Convention of 1872 will still be remembered. A fiercer one was never fought in American politics. To employ the words of Mr. Tilden, in his history of the overthrow of the Tammany Ring, Kelly had to confront on that occasion, “an organization which held the influence growing out of the employment of twelve thousand persons, and the disbursement of thirty millions a year; which had possession of all the machinery of local government, dominated the judiciary and police, and swayed the officers of election.”^[63]

Harry Genet was leader of the Ring men in the Convention. Prize-fighters and heelers swarmed upon the floor; and when Samuel B. Garvin was again placed in nomination for District-Attorney, the fighters and heelers roared themselves hoarse with applause. Mr. Kelly took the floor to oppose Garvin, when he was interrupted by Genet. He replied to the latter in scathing language, arraigned him and Garvin with the utmost severity, and although hissed by the hirelings of the Ring, and interrupted by volleys of oaths, John Kelly kept the mob in sufficient restraint until he caught the eye of the chairman, and moved an adjournment to 3 o'clock the next day. Mr. Schell, who was in the chair, put the motion to adjourn, and it was carried, in spite of the protests of the mob.

The next day the same emissaries of the Ring were there to overwhelm the Convention again, but this time Kelly was prepared for them. He had a force stationed at the doors of Tammany Hall, and no man, not a delegate to the Convention, and not provided with a delegate's ticket, was allowed to enter the building. The police and city authorities were on the side of the desperadoes, but no policeman was allowed inside the premises. This bold stand of Mr. Kelly had the desired effect. By his personal intrepidity, and readiness to resist attack, he cowed the rowdies, and no others but delegates got into the Convention. Garvin was defeated, and Charles Donohue was nominated for District-Attorney. Abram R. Lawrence was nominated for Mayor. It was in that day's struggle that the backbone of the Ring was broken, and it ceased to be a compact organization, and melted away after that day's defeat. Havemeyer of the Committee of Seventy was elected Mayor, with Lawrence a close second, and O'Brien a bad third. Phelps beat Donohue for District-Attorney. But Reformed Tammany, in spite of predictions to the contrary, polled a surprisingly large vote, and although it

did not elect, it was a vote of confidence in John Kelly, and discerning men saw that the future belonged to the old organization. Mr. Havemeyer, who had been an excellent Mayor in early life, now proved a failure. His defiance of the Supreme Court in the case of Police Commissioners Charlick and Gardner raised a storm of indignation about his head, and led to his reprimand by Governor Dix, who threatened his removal from office. Charlick and Gardner had been indicted for a violation of the election laws, and Mr. Kelly was very active in bringing on their trial. They were convicted by the Jury, and sentenced by Judge Brady to pay a fine of \$250 each, but conviction carried with it a still severer penalty, forfeiture of their offices and disability to fill them by reappointment. The Mayor's attempt to reappoint them was an act of surprising folly, but when the Governor's reprimand reached him, with the statement that his age, and near completion of his term of office, alone saved him from removal for contumacy, Mayor Havemeyer's rage vented itself in an extravagantly abusive attack on John Kelly. He held Mr. Kelly responsible for the trial of Charlick and Gardner, and after astounding the community by defying the Supreme Court with a vain attempt to re-instate the guilty officials, he brought the matter to an impotent conclusion by pouring out a torrent of abuse upon John Kelly, and assailing his record for honesty when he was Sheriff of New York. During all the long years which had elapsed since Mr. Kelly had held that office, not one syllable had ever been uttered derogatory to his exalted character for honesty as Sheriff, until Mayor Havemeyer made his reckless charges. Smarting under a sense of humiliation after the Gardner-Charlick fiasco, the Mayor allowed bad temper to get the mastery of his judgment, and the explosion of wrath against Mr. Kelly followed. The animus of the attack was perfectly apparent on its face, and the good sense of the people was not imposed upon by the revengeful ebullitions of the angry old gentleman. Mr. Kelly promptly instituted a suit for damages, but on the very day the trial began, by a remarkable coincidence Mayor Havemeyer, stricken by apoplexy, fell dead in his office. The passionate events of the moment were forgotten, and a sense of sorrow pervaded the community. Mr. Havemeyer's long and honorable career was remembered, and the unfortunate passage in his last days was generally, and justly imputed to the misguided counsels of his friends.

The Tammany Democrats were completely victorious at the election of 1873. Those able lawyers, Charles Donohue and Abram R. Lawrence, were

elected to the Supreme Court. The late William Walsh and the late Wm. C. Connor, both excellent men, were elected County Clerk and Sheriff. Again, in 1874, victory perched on the standards of Mr. Kelly. This time its dimensions were larger. In addition to a Mayor (Mr. Wickham), and other city officers, a Governor (Mr. Tilden), and other State officers, were chosen by overwhelming Democratic majorities.

Mr. Kelly had been the first man to suggest Mr. Tilden's nomination for Governor. His splendid services in the war on the Ring pointed him out as the fit candidate of his party. Tired out, after his long labors, Mr. Tilden, in 1874, went to Europe to enjoy the first holiday he had allowed himself for years. But such was his confidence in the judgment of Mr. Kelly, that a cable message from that friend was sufficient to cause him to cancel his engagements in Europe, give up his tour, and take passage in the first steamer for New York. The Canal Ring was in motion against Tilden's nomination, and Kelly, who had found this out, thought there was no time for delay. Tilden at first expressed disinclination for the office, but the Tammany Chief had set his heart on his nomination, and the author of these pages has heard Mr. Tilden say that Mr. Kelly's persistency finally controlled his decision, and won his acquiescence. One of the leading delegates to the Convention of 1874 was Mr. William Purcell, editor of the *Rochester Union*. "To John Kelly," said Purcell editorially, shortly after the election, "more than any other man does Governor Tilden owe his nomination and his majority at the election. Governor Tilden was personally present at the nominating convention, in close counsel with Mr. Kelly, than whom he lauded no man higher for his personal honesty, his political integrity, and his purity of purpose."

Mr. Tilden was a constant visitor at Mr. Kelly's house during this period, and no two men could have evinced more respect and friendship for each other. The last time Mr. Tilden attended a meeting in Tammany Hall was at the election of Sachems on the third Monday of April, 1874. The late Matthew T. Brennan and others ran an opposition or anti-Kelly ticket, and so anxious was Mr. Tilden for the defeat of this movement that he came down to the Wigwam, and took an active part in favor of the regular ticket. He sat with Mr. Kelly, and when the result was announced warmly congratulated him upon the victory.

In the latter part of January, 1875, a few weeks after Mr. Tilden's inauguration as Governor, the author spent a morning at his residence in Gramercy Park, and there met ex-Governor Seymour and Mr. Kelly, in company with Governor Tilden. The conversation of these three distinguished men, in the abandon of social intercourse around the hearthstone of Gramercy Park, was very agreeable and entertaining. The author was an attentive listener and observer, and afterwards, on the same day, wrote out in his diary his impressions of these three celebrated New Yorkers. Although ten years have elapsed since those impressions were written, they are here reproduced in the exact words in which they were then put down in the diary, without the alteration of a single sentence:

[Conversed with Messieurs Seymour, Tilden and Kelly at 15 Gramercy Park to-day. Big fellows all of them, but entirely distinct types. Let me see if I can depict them.

Horatio Seymour is a man well advanced in life, tall, well-shaped, though rather spare in build, with a beaming open countenance, a bright speaking eye, expressive mouth and a large nose. The marks and lines of the face and forehead are deep and strong. His language is quite Saxon in its selection and character, words of one or two syllables prevailing. His expression of thought was clear enough to be taken down by a stenographer as prepared utterances. His range of subjects is large, and his treatment of each ready and versatile. It is conversation all the time, not platform or stump-speaking. The fault with him seems to be one which any person of such eminent parts might be liable to—it is an occasional tendency to diffusion, a Narcissus-like disposition to dwell on the shadow mirrored in the wave; not vanity, but an introspective play of thought. His mental bent is speculative, which perhaps accounts for his sometimes presenting a thought under a great variety of aspects. He throws out an opinion, and follows it up by a profusion of suggestive considerations. Instead, however, of pausing after the stroke was dealt, he would now and again keep on elaborating his points until the conversation began to expand into a disquisition. The key remained conversational still, while the range was widening. But let an interruption occur, and the ex-Governor knew how to conclude with a hasty stroke or two. His descriptive power is good, but not so good as his reach and closeness of observation into general principles, and his capacity to

grasp and develop causes and effects. He is more of a philosopher than a delineator, and has humor too, which draws the laugh at will.

Governor Tilden is a spare, close-cut man, of rather a nautical appearance. You might mistake him in a crowd for a weather-beaten old tar retired from the deck of a man-of-war, to enjoy a little needed repose. His movements and quiet speech suggest the idea to a stranger of a cold, formal, negative man, reticent, receptive, and not easily to be enlisted in ordinary matters. Five minutes conversation with him will suffice to upset such an opinion. First you will most probably be struck with his eyes, which have an indefinable expression. It would be spectral, if it were not now melancholy, and again indicative of a womanly tenderness. There is a peculiar play in them which expresses a great deal. His voice is low, and one might suppose, till he begins to converse, that he is a better listener than talker. The forehead is gnarled and concentrated, and on phrenological principles would not indicate a marked presence of the intellectual faculties, considered by itself; but if you draw an imaginary line from the tip of the ears across the head, it is evident that the brain power from the brows to this line is proportionately very large, and phrenologically very strong. His nose is a decided aquiline, the mouth full but compressed, and the chin prominent, and indicative of a marked preponderance of the vital forces. His conversation is more nervous than Seymour's, but not so copious. He seems better pleased with the suggestion than elaboration of ideas. He can, however, when you don't want to talk but to listen, throw an analytical strength into his expressions which sustains his reputation for sagacity and vigor. Governor Tilden is classical in diction. The right word is used all the time, although not a shadow of art is perceptible in the language. He seems bent on convincing you by what he has to say, and not by his manner of saying it. His method of reasoning is logical and exhaustive, and yet it is analytical and not synthetical. He leaves his listener to draw conclusions. He is less given to generalization than to subtle methods of mastering subjects. He has a quiet way of talking, and of saying trenchant, sententious things. Governor Tilden strikes me as a man who would be very slow to gain popularity by dash of manners or exterior conduct, but as having grit in him, and a genius for accomplishing what he undertakes. He is already named in several quarters as a prominent Democratic candidate for the next Presidency.

John Kelly, leader of Tammany Hall, remains to be described. He is a very different man from Seymour or Tilden. An English traveler once heard Daniel Webster on the stump in an interior New England town. As he gazed at “Black Dan” with his massy brows playing with ponderous thought, and his great arm and big body swaying back and forth in obedience to the ideas he was expressing, the first impression of the Englishman was: “Why this man Webster, with his herculean frame and sledge-hammer fist, would have proved the most formidable gladiator that ever entered the arena—if Providence had not given him a still bigger head than body. He is a magnificent creature considered as an animal, but a still more magnificent man.” Kelly answers this description. The New York *Herald* once compared him to General Grant on account of his quiet manners and reticence. He stands two or three inches under six feet, weighs about two hundred and thirty or forty pounds, is active and firm in step and movement, and from his leonine aspect must be the envy of those who delight in the manly art of self-defence. His forehead is massive and broad, with a wealth of phrenological development; over his physiognomy are the lines of decision and benevolence of character. The under jaw is large and firmly set, imparting to his face an air of command and resolution. In conversation he is modest and direct, and seldom speaks of himself. That he is a man of action is at once revealed to the observer. He has humor and a keen appreciation of the amusing side of human nature. His manners are quiet and frank, but underneath there is discernible a cool and commanding spirit. A mingled air of *bonhommie* and sternness proclaims to all that he knows how to command obedience as well as respect, and if once fairly aroused no man can confront an enemy with sterner mien, or more annihilation in his glance. Those who have seen him in stormy public place, where such qualities alone avail, have often witnessed this quiet man’s transformation into the fiery ruler of his fellows. [\[64\]](#)

The extraordinary victories of the Tammany Democracy for several years after Mr. Kelly became its leader, at length aroused jealousies and rivalries, and it began to look as though the successful leader had enemies in Printing-house Square. Perhaps the editors thought they should have been consulted more frequently in regard to nominations and other matters, and perhaps Mr. Kelly made a mistake in not oftener seeking their advice. At all events, an animated newspaper fire was opened upon him in 1875. He was called a boss, a dictator; “one man power” was furiously denounced; and so

savage was this onslaught, that if the editors had not modified their expressions after election, and even begun again to speak handsomely of him, one might have imagined that John Kelly was a veritable Ogre, a lineal successor to Tweed, instead of the destroyer of Tweedism. But it was all only a custom of the country at elections, and not an expression of the editorial conscience. No man occupying a high place ever escapes these fusillades; John Kelly formed no exception to the invariable rule. At the election of that year the Tammany ticket was badly defeated. Replying to these denunciations against the Tammany Chief, Mr. Abram S. Hewitt, then Chairman of the General Committee of the Tammany Democracy, made a speech, October 30, 1875, in the course of which he said:

“The assertion that John Kelly is a dictator is an insult to Tammany and its members. All organizations must have leaders, and no one but John Kelly could have done the work that he has performed. The city of New York owes to that calumniated man honors that statues could not adequately pay. There is no desire in John Kelly’s breast so strong as to be relieved from his present onerous position but if some one of respectability was not found to do such labors, the city of New York would be soon as uninhabitable as a den of wild beasts.”^[65]

One of the shrewdest political observers who has figured during recent years in New York politics, was the late Hugh J. Hastings, editor of the *Commercial Advertiser*. As a Republican he was opposed to Democrats, but he had the blunt candor to speak of John Kelly in the following manner:

“On the ruins of Tweed rose Kelly, of Tammany Hall, and Tilden, Hewitt, and Cooper joined his Court, and were numbered among his legions. Under Kelly the condition of society has improved in the city, and we might add the municipal government,—all know there was great room for improvement. Kelly has ruled the fierce Democracy in such a manner that life and property are comparatively safe. It is a fearful responsibility to hold this wild element in check. Beasts of burden may easily be managed by a new master. But will the wild ass submit to the bonds? Will the unicorn serve and abide his crib? Will the leviathan hold out his nostrils to the hook? The mythological conqueror of the East, whose enchantments reduced wild beasts to the tameness of domestic cattle, and who harnessed lions and tigers to his chariot, is but an imperfect type of the man who can control the wild, whiskey-drinking and fierce spirits that make up the worst

elements of this great city. It requires a great man to stand between the City Treasury and this most dangerous mass. It demands courage, activity, energy, wisdom, or vices so splendid and alluring as to resemble virtues. Again we say, dethrone Kelly, and where is the man to succeed him?”^[66]

The spirit of faction, the curse of New York politics from the beginning of the century, was again distracting the Democratic party. New York and Albany are natural political antagonists, as were Carthage and Rome of old.

The Constitutional Conventions of 1821 and 1846, by enlarging the elective features of government, had greatly relieved New York, and greatly diminished the power of the Albany Regency, but the love of power is inbred in man, and special legislation at the State capital still holds the giant metropolis in political leading strings. During Mr. Tilden’s administration as Governor, he and his old friend Mr. Kelly became involved in unfortunate differences as leaders of rival wings of the Democratic party of the State. It were useless here to recapitulate the story of this disastrous breach between two statesmen who had done so much when acting together to purify the public service; each occupying the place he held at the wish, and by the powerful assistance of the other; Kelly in Tammany at Tilden’s urgent request, and Tilden called back from Europe by a cable dispatch from Kelly to run for Governor of New York. It were worse than useless to revive the bitter memories of the strife. Let them be buried in oblivion. A few weeks before the St. Louis Convention in 1876, Mr. Tilden called upon Mr. Kelly, and talked over old times. Before leaving, the Governor humorously remarked:

“Now John, you are my sponsor, or political godfather. You found me not inclined to take any office two years ago, and you insisted that I should take the nomination for Governor. No matter what differences may have arisen since, remember John, you are my sponsor.” Mr. Kelly smiled, but was non-committal. But that visit, and graceful reminiscence of a happier day in their political lives did its work well. Let the brilliant Philadelphia editor, Alexander McClure, tell the sequel. In a letter to his paper from St. Louis, announcing Mr. Tilden’s nomination for the Presidency, Mr. McClure said:

“The work of the Convention was then done, but it was electrified by the appearance on the main aisle of the full-moon, Irish face of John Kelly, the Anti-Tilden Tammany Sachem. Those who hissed and howled at him

yesterday, now greeted him with thunders of approval, and called him to the platform. When he appeared there a whisper could have been heard in any part of the hall, and when he gave in his adhesion to Tilden and Hendricks, and pledged his best efforts for their election, he was crowned and welcomed as the returning prodigal of the household.”^[67]

Right nobly did John Kelly keep that pledge. Rutherford B. Hayes came in from the rural districts of New York 30,000 ahead of Samuel J. Tilden. When he reached the Harlem River he found that Tammany Hall had given Mr. Tilden 54,000 majority in the city of New York, and had wrested the Empire State from the Republicans. President-elect Tilden sent a message of congratulation on that memorable election night to John Kelly, and his warmest salutations to the invincible tribe of Saint Tammany, as “the right wing of the Democratic Army.”

By changing dates and names, it will be found that Mr. Kelly’s services in the Cleveland campaign of 1884 were an exact repetition of his services in 1876. He gave the same loyal support to Grover Cleveland that he had given to Samuel J. Tilden. He held his forces in hand magnificently, and if the high honor may be attributed to any one man of carrying New York through the most desperate conflict ever waged within her borders, safely out of the very jaws of defeat, to the Democratic column, that honor belongs to Honest John Kelly. To save Grover Cleveland, Kelly sacrificed every man on his local ticket, every dear friend who bore the Tammany standards on that eventful day, which decided the destinies of the United States for the next four years.

When John Kelly was appointed Comptroller of the City of New York by Mayor Wickham, in 1876, the debt of the municipality which had been uniformly accumulating under his predecessors until it reached over a hundred million of dollars, was first arrested in its upward course, and brought into a line of rapid reduction. In four brief years he had reduced the debt \$12,000,000, thus justifying the encomiums of the press at the time of his accession to the office. The New York *Herald* of December 8, 1876, the day after his appointment, said editorially:

“Mr. Kelly will make a very good Comptroller. He has firmness, honesty and business capacity. He is the right man in the right place, and a great improvement on Mr. Green. He will guard the treasury just as jealously as

the present Comptroller, without being impracticable, litigious and obstructive. The people of New York will be satisfied with Mr. Kelly.”

The New York *World* of the same date, after dwelling editorially upon his great ability, said:

“Mr. Kelly’s honesty and integrity are unquestioned, even by his bitterest political opponents. He is a native of New York city. Beginning life as a mechanic, by his energy and industry he very soon made himself a manufacturer and a merchant. He sat for one term in the Board of Aldermen, and was twice elected to Congress. At Washington he handled questions of national importance with ability and decorum, and by the force of his native good sense soon took rank above many men who had more experience than he in the national councils. He is best known to New Yorkers of the present day as the leader of the Tammany organization, as the man who took hold of that ancient society after it had been deservedly defeated, disgraced and overthrown under the management of members of the old Ring. He reorganized it, filled it with new life, and weeded out the men who helped to bring reproach upon it. The property-holders and taxpayers of this city are to be congratulated that the administration of their financial affairs has fallen into such worthy hands, and will be entrusted to a man of Mr. Kelly’s perspicacious brain and known probity.”

The New York *Evening Express*, of the same date, referred to Mr. Kelly’s eminent fitness for the office, and to his services in the election of Mr. Tilden to the Presidency, and said, editorially: “Speaking in a political sense only, Mr. Kelly has well earned this office, and even a higher one, for to him more than any other man is the credit due for the immense Democratic majority in this city, which gave the state to Governor Tilden.”

The New York *Sun*, of the same date, said editorially:

“Mr. Kelly is an honest and capable man, willing to do a great deal of hard work, well fitted to look after the important and varied business of his office, and the financial interests of the city. He is the most popular man of the party that governs this city, and stands well with the community at large. He will make a good Comptroller. When the nomination of Governor Tilden was made in St. Louis Mr. Kelly promised to do all in his power to insure the success of the people’s choice. During the campaign Mr. Kelly’s labors were arduous and continuous. He gave time and strength and money, and

even deferred his marriage until the fight should be over. That Mr. Kelly might have secured the Mayoralty or any other local office for himself, had he so desired, is no secret. That he was urged against his will to take the Comptrollership is asserted by his friends as a fact.”

An interesting event in Mr. Kelly’s life is incidentally alluded to by Mr. Dana in the preceding article from the *Sun*. This was his second marriage, which took place on the 21st of November, 1876. His wife is an accomplished lady in every sense of the word, the good helpmeet, such as the Scripture describes. The following, account of the wedding, is taken from the *New York World*:

“As announced in *The World* of yesterday, promptly at the hour of 8 in the morning, the ceremonies began that were to end in the marriage of Mr. John Kelly to Miss Teresa Mullen, a niece of Cardinal McCloskey. About 7.30 the very few who were to participate in the event assembled at Cardinal McCloskey’s house in Madison avenue, where, in the private chapel of His Eminence, the marriage was to take place. This alone was a compliment of the highest order in Church etiquette, doubtless owing to the relationship of the bride to His Eminence. The little company invited to witness the ceremony was gathered together in the parlor of the mansion. The party consisted, besides Mr. Kelly, of Mr. Francis D. Cleary, brother-in-law of the bride; Mr. Edward L. Donnelly, Colonel George W. Wingate, and Mr. Kelly’s nephew, Hugh Kelly. Above stairs was assembled the bride with her two sisters, Mrs. Francis D. Cleary and Miss Mullen. At the hour appointed the Rev. Father Farley made his appearance at the parlor door, and announced that all was ready. The gentlemen at once arose and proceeded to the chapel on the third floor, Mr. Kelly and Father Farley being last. On the way to the chapel Mr. Kelly was joined by the bride, and, arm in arm, the couple slowly passed up to the double *Prie-Dieu*, before the altar under the escort of Father Farley. Meantime all had taken their respective positions in the beautiful little chapel, in the order peculiar to Catholic Church etiquette. All knelt in silent prayer for some few moments, when the venerable Cardinal made his appearance, preceded by the Rev. Father Farley, Very Rev. Vicar-General Quinn, and one handsome little boy dressed like a miniature Cardinal, who acted as candle-bearer to His Eminence.

“The Cardinal in his scarlet robes then took his place before the altar, with the Vicar-General to his right, and Father Farley and the acolyte to his left. Immediately behind His Eminence knelt the future husband and wife, side by side. After a moment’s silent prayer the Cardinal began the services. Laying off the mozetta, the Vicar-General and Father Farley enrobed His Eminence. The amice, alb, cincture, pectoral cross, stole, cope and mitre having been placed upon his head and shoulders, the Cardinal turned to perform the marriage ceremony. The vestments worn were white and gold. The ring was blessed, and the Cardinal said: ‘John Kelly, do you take this woman to be your lawful wife?’

‘I do.’

‘Do you promise to love and cherish her until death?’

‘I do.’ And so likewise vowed Teresa Mullen to love and honor John Kelly until death.

“A few more prayers, and His Eminence turned from the kneeling couple, leaving them man and wife. The crozier, mitre and cope were laid aside; and His Eminence, putting on the chasuble, commenced the nuptial Mass, *pro sponsis*. The gospel of the Mass is the recital of the marriage of Canaan, when Christ changed the water into wine. The Mass progressed slowly to the communion, when the newly-married received the Sacrament. Just after the *Pater Noster*, the two kneeling on the step of the altar, His Eminence read from the missal, with mitre on head, the long prayer imploring from God harmony and peace in the domestic relations of the newly-married, and praying that if God should bless them with children, they might be brought up in the fear of the Lord. This over, the Mass soon ended. After the Mass the little congregation and the clergy withdrew, leaving the Cardinal, and Mr. and Mrs. Kelly together. A few kind words of encouragement, and advice, and congratulations were administered by the Cardinal; and, while he remained to say a few prayers, Mr. and Mrs. Kelly joined their friends, and received their well wishes.”

In concluding this volume the author regrets that he has not found room for more of Mr. Kelly’s speeches. They are all full of good sense, and

occasionally they display a high order of eloquence. The present plan did not admit of their introduction. One, however, must be included, as it illustrates the witty side of his character, and was spoken of by those who heard it as a very happy after-dinner speech. It was made before the Lotos Club, January 11, 1879, at the dinner given to Mayor Cooper, soon after that gentleman had entered upon his duties as Mayor of the city of New York.

The following is the report in the *Herald* of January 12, 1879:

“The seating capacity of the large dining room of the Lotos Club was taxed to the utmost last evening. Mayor Cooper, and the retiring Mayor, Smith Ely, Jr., being the guests of the club. About ninety members and guests found seats at the tables, and nearly as many more, who were present during the delivery of the speeches, had to content themselves with standing room. Mr. Whitelaw Reid, president of the club, presided at the middle table, and at the heads of the upper and lower tables, respectively, sat the vice-presidents, Noah Brooks and Dr. Charles J. Pardee. Among the persons present as members or guests were Postmaster James, Chauncey M. Depew, Augustus Schell, John Kelly, Judge Noah Davis, Robert B. Roosevelt, Peter Cooper, Charles H. Chapin, Paul Du Chaillu, Dr. Isaac I. Hayes, Colonel Thomas W. Knox, George Osgood, Frederick B. Noyes, Moses Mitchell, Drs. Hammond, Arnold and Callen, and General Barnum.

COMPTROLLER KELLY'S SPEECH.

Mr. Kelly was very cordially greeted when, in answer to a pressing call for ‘a few words,’ he rose to speak.

“*Mr. President and Gentlemen of the Lotos Club:*— I have read frequently in the papers of the Lotos Club, but never before had even the honor to know where it met after it left Irving Place, and when asking to-night where the Lotos Club was, I was informed that it was directly opposite the Union Club. I do not know what progress the Lotos Club has made in life since its organization, but certainly you are at a point in this city—on Fifth avenue—where they say the aristocracy live. If this is a specimen of the aristocracy I am entirely content to mix with them at all times. (Applause and laughter). As the president of the Club has said, you have a mixture here of all kinds, and that political discussions are never

brought among you. I will say that that is a very friendly state of society when you can come together and talk of everything but politics. I have always noticed in life, particularly in public affairs, that the first topic broached was politics, and it usually commenced by abusing somebody. (Laughter). Now that has been my misfortune. I got along very well in my early political life. I had very little said against me, but I found after a few years that I was about as bad a fellow in the estimation of some people as could be found in this community, or any other. (Laughter). But it don't worry me a bit. (Laughter). I have got to that state of mind that I feel if a man is conscious that he is trying to do his best, as well as he can understand it, he need care very little what may be said about him. (Applause). A man's conscience should at all times be his master. (Applause). Now, I do not think that politics should be brought into discussion here. Mayor Cooper has a very important duty to perform. Probably he can hardly realize yet the amount of labor he must go through, and no man can tell until he gets into the Mayor's office. I suppose our friend Ely here, when he first entered on his duties, considered it a light place, but he was not there long before he saw that the labor was immense. I do not mean to say that the intellectual labor is immense, but the responsibility connected with the office. I am exceedingly anxious, so far as I am concerned, that Mayor Cooper's administration may be successful. (Loud applause.) Mayor Cooper is not the representative of a party; he leaves the party behind him. And he undoubtedly will be successful, because I sincerely believe that he has the full interest of the people at heart, and that he will do his best to serve them. (Applause.) I have said so since his election, and I said so before his election. People have various opinions about parties. Our friend Reid here sometimes scolds, but probably if he knew the truth he would not say such things about public officers as he does. (Laughter.) I do not mean to say that he will allow himself to be prejudiced or biased, but he will get a notion in his head, and say, 'That fellow is not doing right, and I will take him to task for it,' and so he goes at it. (Laughter.) Mayor Cooper now has the support of the press of this city, but he will probably find that before the end of his term the press will begin to find fault with him. Then Mayor Cooper will say, 'I have not done anything in particular that I know of that they should abuse me. Damn the fellow; I will go and see him.' (Great laughter.) I do not mean to say that Mr. Cooper will do that either, because he is a very sensible man, but I

know that our friend Ely did it repeatedly. (Great laughter.) I have often gone into his office after he came in in the morning. He had read the papers at home, and was full of them. Down he comes to the office, slaps his hat on his head, and off he goes to the *Times*. The *Times* man tells him, 'Well, we will look into this thing.' (Laughter.) He has not got a satisfactory answer from the *Times*, and off he starts for our friend of the *Tribune*. Then Mr. Reid says, 'Well, Mr. Ely, I don't know; there are various opinions about this matter. I cannot give you a positive answer about it. I will look into the thing, and let you know.' (Laughter.) So, Ely goes the rounds. Back he comes disconsolate. He says, 'I have seen all these fellows of the press, and they are all alike, they are abusing me for nothing. They can't do that. I have been in the leather business, and I refer them to that trade. Go and ask Schultz; go and ask any fellow down in the Swamp whether I ever took anything that didn't belong to me.' (Laughter.) Then he becomes a philosopher and says, 'What is the use of talking? They are only one man. Each controls his paper, and has individual opinions. The 'boys' are with me. (Loud laughter.) I will throw myself on the 'boys.' (Renewed laughter.) 'They can say what they please about me.' After a few days pass down he comes to the office again, and says, 'The *Times* is raising the devil this morning,' and so the thing goes on. (Laughter.) Now, gentlemen, I will say this. You have a very large city. Some people in public office must be censured. It is necessary, probably, sometimes that they should be, for it often has a beneficial effect. There is a large number of people who will say that there has been no reform in the city government, and will never take the trouble to find out whether there is or not. During the time Mayor Ely has been in office great progress has been made; but I venture to say that, while the debt of the city has been reduced \$6,300,000 inside of two years, by the end of the term of the present Mayor, if things should continue in the same way, as there is no reason why they should not, you will find that the debt will have been reduced from \$3,000,000 to \$4,000,000. (Applause.) That will be an accomplishment of \$10,000,000 inside of four years. (Applause.) Yes; I venture to say that if I remain in office—whatever has occurred, let that pass; I do not refer to it—but if he and I work together in the interests of the city, the debt in the next two years will be reduced \$8,000,000. (Applause.) I wish Mayor Cooper all the success in public life that any friend of his can wish him, and I assure him and his friends that so far as the official business of this city is concerned, there will be no

disagreement between us on matters which are really in the interest of the people. (Long continued applause.)

Speeches were made during the evening by Dr. Isaac I. Hayes, Chauncey M. Depew, Robert B. Roosevelt and Judge Noah Davis.”

As this volume goes to press Mr. Kelly, who has been indisposed recently, is again recovering his health. His severe labors in the recent Presidential campaign brought on an attack of his old trouble of insomnia. He is now steadily improving, and rides horseback for one or two hours every day. Referring to his sickness, the *New York Times* of December 12, 1884, contained the following remarks:

“The substantial shoes of Mr. John Kelly stand unoccupied in Mr. Kelly’s Sixty-ninth street mansion, and their owner is taking all the ease which ill-health and restlessness will admit of. Those shoes are the object of a great deal of attention. In all the 50,000 voters in the Tammany Hall organization, there is not one fit to succeed him as the head of the party.”

The *Times* might have added that there is no one in Tammany Hall who desires to succeed Mr. Kelly, and that he has held the leadership of that ancient organization nearly five times as long as any other leader in the whole history of Tammany. But there are other men of no mean ability in the ranks of that organization. They are all the friends, and not the rivals, of the subject of this memoir.

The chief events of John Kelly’s past life are, at least in outline, now before the reader. The task which the author set out to perform is discharged, to tell the truth about a distinguished citizen, and to let him speak for himself, both in his public and private career, during the past forty years.

Mrs. Kelly, and two bright little children, a daughter and son, have brought the sunlight back again to John Kelly's home, where, after this imperfect sketch of his remarkable career, we leave him a happy man, and an honored citizen.

THE END.

FOOTNOTES:

- [53] *New York World*, Oct. 18, 1875.
- [54] *New York Herald*, November 19, 1868.
- [55] Life of S. J. Tilden, by T. P. Cook, p. 101.
- [56] *New York Herald*, November 20, 1868.
- [57] *New York Herald*, November 22, 1868.
- [58] Life of S. J. Tilden, by T. P. Cook, p. 121.
- [59] A Description of St. Patrick's Cathedral, p. 37.
- [60] Extract from a recent letter of Bishop Ireland to the author.
- [61] Niles's Register, Vol. 16, p. 28.
- [62] Niles's Register, Vol. 17, pp. 387-8.
- [63] Life of S. J. Tilden, by T. P. Cook, p. 129.
- [64] Extract from Author's Diary for 1875.
- [65] *New York Herald*, October 31, 1875.
- [66] *New York Commercial Advertiser*, November 20, 1878.
- [67] *Philadelphia Times*, June 30, 1876.

Transcriber's Notes

- pg v Changed: gratify this curioisity
to: gratify this curiosity
- pg 44 Changed: attempts to stifile the voice
to: attempts to stifle the voice
- pg 49 Changed: upon a confinding people
to: upon a confiding people
- pg 57 Changed: in the colums of at least
to: in the columns of at least
- pg 59 Changed: the oppresssd were wiped away
to: the oppressed were wiped away
- pg 62 Changed: the waterfall murmering
to: the waterfall murmuring
- pg 124 Changed: the teritorial legislation known
to: the territorial legislation known
- pg 171 Changed: been working in a conmon
to: been working in a common
- pg 180 Changed: render this movemont effective
to: render this movement effective
- pg 190 Changed: month of March, 1550
to: month of March, 1850
- pg 190 Changed: United States will never entruss
to: United States will never entrust
- pg 221 Changed: figured so conspicuously under
to: figured so conspicuously under
- pg 258 Changed: respective politcal parties
to: respective political parties
- pg 263 Changed: the world doats on
to: the world dotes on
- The accents on resumé and née, and the open single quotation mark before 'What is the use ... on page 307, were printed that way.

*** END OF THE PROJECT GUTENBERG EBOOK THE LIFE AND
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